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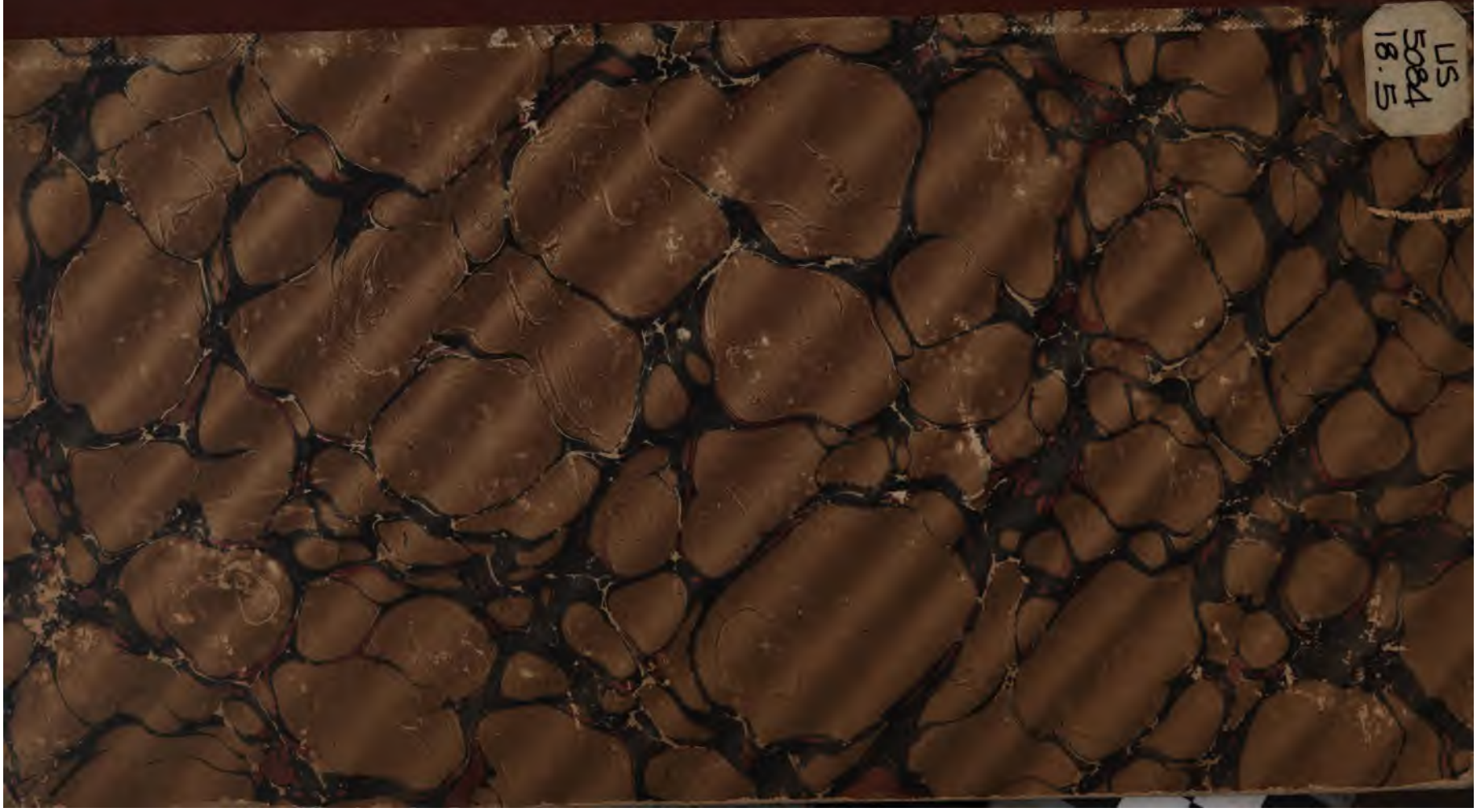
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Inquiry into the Somers Mutiny - 1843

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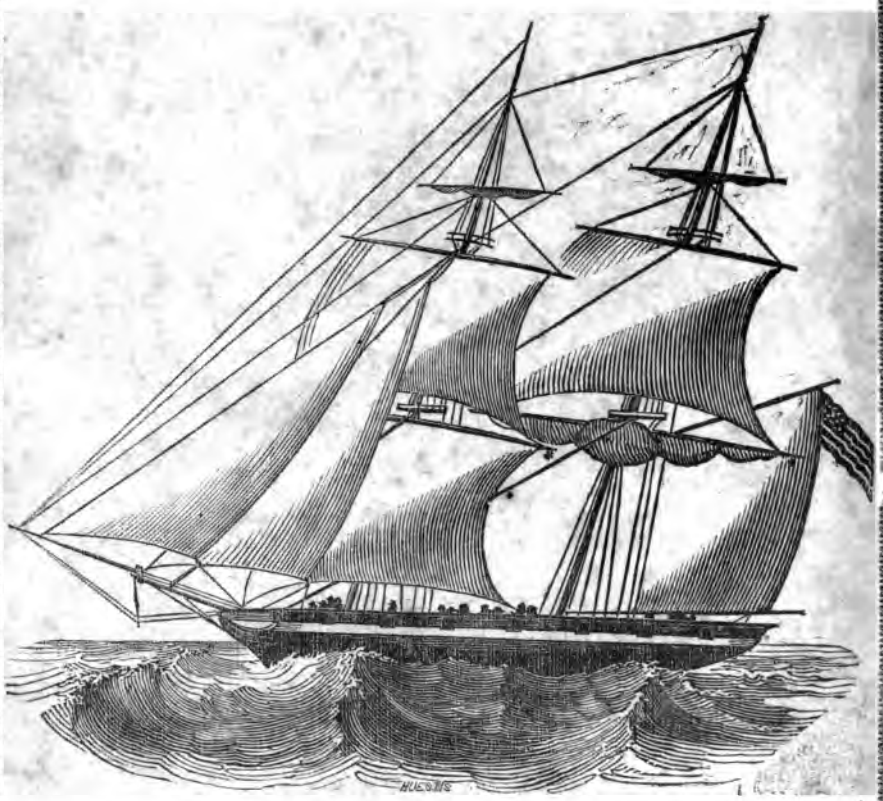
CLASS OF 1890

OF BOSTON

INQUIRY

INTO

THE SOMERS MUTINY.



WITH A FULL ACCOUNT OF THE EXECUTION OF

SPENCER, CROMWELL AND SMALL.

NEW-YORK:

GREELEY & McELRATH, TRIBUNE BUILDINGS.

PHILADELPHIA: BURGESS & ZIEBER.

BOSTON: REDDING & CO.

Tribune Print. 160 Nassau-st.



COMMANDER MACKENZIE.

☞ The above Portrait of Commander Mackenzie was taken by an excellent artist, while attending the sessions of the Court of Inquiry. It conveys a generally correct impression of his appearance though from it he appears older than he really is, and his face is represented broader than it is in reality.

PROCEEDINGS

OF THE

COURT OF INQUIRY

APPOINTED TO INQUIRE INTO THE

INTENDED MUTINY

ON BOARD THE

UNITED STATES BRIG OF WAR SOMERS,

ON THE HIGH SEAS;

HELD ON BOARD THE UNITED STATES SHIP NORTH CAROLINA LYING AT THE NAVY YARD, NEW-YORK;

WITH A FULL ACCOUNT OF THE EXECUTION OF

SPENCER, CROMWELL AND SMALL,

ON BOARD SAID VESSEL!

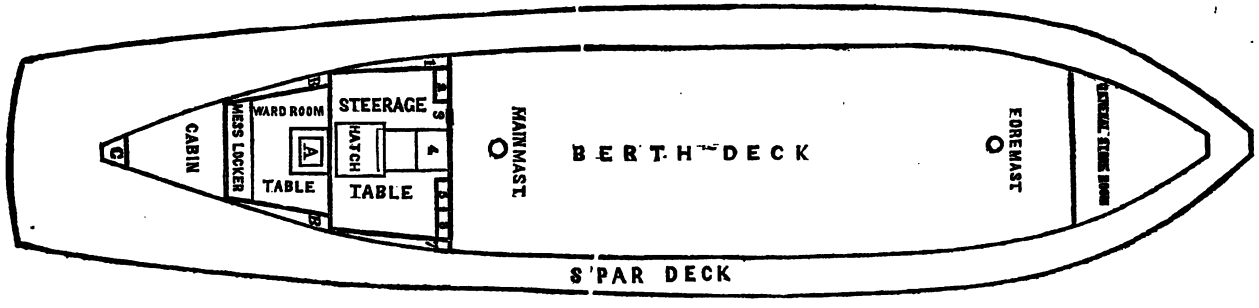
REPORTED FOR "THE NEW-YORK TRIBUNE."

NEW-YORK:
GREELEY & McELRATH, 160 NASSAU-STREET.
TRIBUNE BUILDINGS, OPPOSITE THE PARK.

1843.

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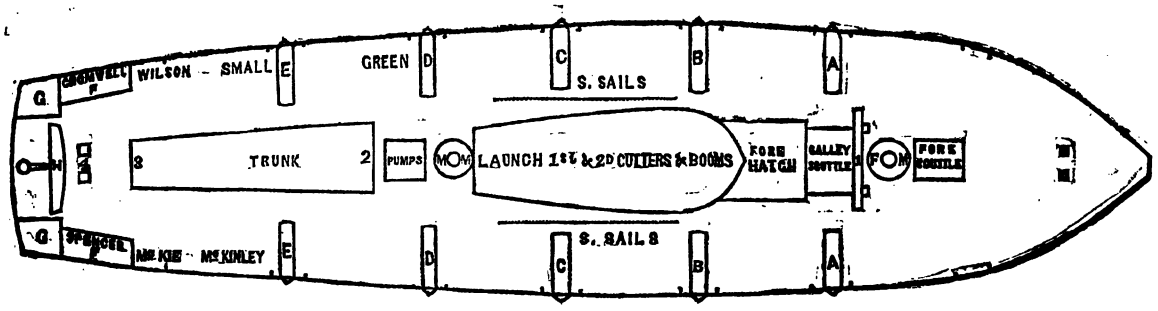


SECTION REPRESENTING THE BERTH DECK.

The above is a longitudinal section of the vessel giving an accurate representation of the Berth Deck, which is 50 feet long by 17 wide. On this deck the great body of the crew slung their hammocks. The steerage is four feet long and 14 wide. Mr. SPENCER's hammock was slung in the steerage over the door leading from the berth deck through the steerage to the ward-room. A space of six feet by three in the steerage is taken up by the pumps and a table; and seven midshipmen were confined to the remainder. The ward-room is ten feet by six, and in it a space of four feet by three is occupied by a table under which is the entrance to the magazine occupying the whole space beneath the ward-room.

In the ward-room were four officers; on the starboard side Lieut. Gansevoort slept on a bunk; on the larboard slept the Doctor, while the Purser and Master swung in hammocks. In the cabin slept the Commander—the rear being occupied by pantries, lockers, &c. The vacant space in the cabin was eight feet in width at the breadest end, and four at the narrowest; the length being eight feet. The following references will sufficiently explain the engraving above:

A...AN ENTRANCE TO MAGAZINE.
B. B...BUNKS.
C...PANTRY.
1...BREADROOM.
2, 3...LOCKERS.
4...PUMPS.
5...DOOR INTO STEERAGE.
6...LOCKER.
7...SAIL-ROOM.



SECTION REPRESENTING THE SPAR DECK.

§ This cut represents the upper deck of the Somers and exhibits the position of the prisoners while in irons, the space left for working the vessel and the entrances to the rooms below. The following will sufficiently explain the whole:

No. 1—Just behind F. M., the foremost represents the place of the bitts. The whole space behind this to M. M. the mainmast, to the dotted lines at the sides is occupied by the launch cutters, and over them the booms, spare spars, sails, &c.

No. 2—Is the entrance to the steerage from deck, and the space to 3 is occupied by the trunk raised about two feet from deck, in which are two skylights.

No. 3 is the entrance to the Cabin, and from 3 to 4 is the only clear passage across decks.

No. 4 designates the position of the binnacles.

A. B. C. D. and E. show the position of the guns and gun-slides.

F. F. are the arm-chests on which Spencer and Cromwell were kept after confinement. The places of the other prisoners are marked by their names.

G. G. Roundhouse—the top being on a level with the bulwarks.

H. The wheel and fixtures.

It will be seen from these engravings that the only space in the vessel where prisoners could be kept was that which those in confinemsnt occupied. After having disposed of the officers on deck the entrances from below by which officers could have come up could easily have been guarded by two men. Below there was, of course, no place to confine the prisoners as will readily be seen.

By the extract from the log book given above it will be seen that at the time of execution the Somers was *four* days sail from St. Thomas, and there was reason to fear that her arrival might have been retarded by adverse winds.

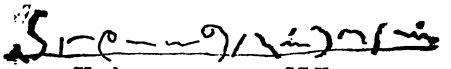
The following are the ages of the Officers and Men on board:

Officers, of 20 and upwards	8	Men, of 19 and upwards...	1
"	19	".....	1	"	18	".....	18
"	17	".....	1	"	17	".....	20
"	16	".....	2	"	16	".....	23
Petty Officers, of full age..	8	"	15	".....	16
Cooks and Stewards, of do	8	"	14	".....	3
Men, of 20 and upwards...	5	"	13	".....	3
SPENCER, CROMWELL and SMALL.....					3
Total number of the Crew.....					120

SPENCER'S PROGRAMME :

The following is faithfully copied from the paper found in Spencer's locker.

Sɕlaιv	Tο βε κεπl νολενς νολενς
Π Sπενcέρ	Sιβλευ
Ε Ανδρευς	Slρεμελ
Δ M'κενλυ	Sκoll
U'αλες	Vαν Βρυνl
	Sμιθ
	Uιllμορε
	Γαζελυ
Δουlφυλ	Βλακυελλ
Uιλλcον +	ροδμαν
M'κεε +	Χλαρκ
Uαρνορ	Χνενλες
Γρεεν	Χελευν
Γεδνευ	Sελσορ
Vαν Vελσορ	Χορνεν
Sυλλιναν	Δικενσον
Γοδφρεy	Θε Δοκlερ
Γαλλια +	Γαρρεβρανlζ
'ουαρδ +	Uαλl'αμ



Uεελ - - -	M'Χεε
Αρμ χ'εσl - -	M'Χενλυ
Χαβιν - - -	Sπενκερ Sμαλλ Uιλλcον
Uαρδ ρoομ - -	Sπενκερ
Slεεραγε - -	Sπενκερ Sμαλλ Uιλλcον

Θοcε δουlφυλ, μαρκεδ + υιλλ προβαβλυ βε ινδυκεδ lο Γοιν, βεφορε θε προγεκl ις καρριεδ ινlο εκεκυlιον.

Θε ρεμαινδορ οφ θε Δουlφυλ, υιλλ κροβαβλυ Γοιν υεν θε θινγ ις δονε ; ιφ νοl, θευ μυcl βε φορcεδ.

Ιφ ανυ νοl μαρκεδ δουν, υιc' lο Γοιν αφlερ il ις δονε, υε υιλλ πιχ ουl θε βεcl ανδ διcποcε οφ θε ρεsl.

In the above it will be seen that the Roman Italic capital *S* is always used instead of the Greek *Sigma* (Σ), and the Roman Italic *l* instead of the Greek *tau* (τ). The following is an accurate translation of the characters into English—letter for letter. It will readily be understood, bearing in mind that the Greek υ υ' φ and Γ, answer respectively to the Roman *y w f* and *j* :—

Serlain	To be kepl nolens volens
P Spencer	Sibleu
E Andreus	Slremel
D M'Kenlu	Skoll
Uhales	Van Brunl
	Smith
	Uillmore
	Gazelu
Doulphul	Blakuell
Uillson X	rodman
M'Kee X	Chlark
Uarnor	Chnenles
Green	Cheleun
Gedneu	Selsor
Van Velsor	Chornen
Sulliuan	Dikenson
Godphrey	The Dokler
Gallia X	Garrebranlz
Houard X	Ualham
Ueel - - - -	M'Chee
Arm chesl - -	M'Chenlu
Chabin - - -	Spenker Small Uillson
Uard room - -	Spenker
Sleerage - - -	Spenker Small Uillson

Those doulphul, marked X uill probablu be induked to Goin, bephore the progekl is karried inlo ekekulion.

The remaindor oph the Doulphul, uill probablu Goin uen the thing is done ; iph nol, theu musl be phorced.

Iph anu nol marked doun, wish lo Goin aphler il is done, ue uill pich oul the besl and dispose oph the resl.

The following is a *fac simile*, both as to shape and size, of Small's name, erased under the word 'Steerage' above:—



THE SOMERS MUTINY.

FIRST DAY.

WEDNESDAY, Dec., 28, 1842.

The Court of Inquiry, appointed by the Secretary of the Navy to examine the facts connected with the recent alledged attempt at mutiny on board the U. S. Brig-of-War Somers, met to-day at 11 o'clock A. M. on board the U. S. receiving ship North-Carolina, at the Navy Yard. The Court consists of the following distinguished officers:

The President, Captain CHARLES STEWART, commander of the Home Squadron. His flag-ship is the fine razee Independence, temporarily at this port, and under sailing orders.

The second member, Commodore A. J. DALLAS, commander of the Pensacola Navy Yard, and attending the session of this Court under special orders from the Navy Department.

The third, Commodore JACOB JONES, Port Admiral, commander of all the vessels afloat in this harbor. His flag ship is the North Carolina, on board of which the Court is held.

The Judge Advocate is Hon. OGDEN HOFFMAN, now U. S. Attorney for this Southern District of New-York. He was formerly attached to the Navy for some years, and was on board the United States with Decatur in his celebrated action about the middle of the last war, in which he captured the frigate Macedonian.

The ship North Carolina, on which the Court is held, lies at a few yards' distance from the wharf in winter quarters, and has on board about 900 persons, including a large number of boys at the Naval School. About 150 of these, embracing those who have parents or friends in the vicinity, were dismissed on Saturday for the holidays; and as we went on board, about 25 others were receiving their two shillings each with *liberty* till sunset, for holiday diversion.

The ship is in her winter trim, with hatchways housed and every part made as comfortable as stoves and abundant fuel can possibly effect. She is kept in the neatest order, her armory is well filled and the arms burnished and well arrayed, and the strictest discipline is maintained throughout.

Commodores JONES and DALLAS were present at an early hour, and the Judge Advocate came in at some fifteen minutes before 11. Capt. STEWART came on board at 11. There were present at the opening of the Court quite a number of officers, among whom we noticed Captains Perry, Sands and Cooper, Pursers Stockton and Buchanan, and Messrs. Sanders and Campbell of the Army. Of the officers of the North Carolina were present the courteous Captain FRANCIS H. GREGORY, Commander Wetmore, Lieutenants Hunt, Gibson, Gray and Ward, Acting Sailing Master, Passed Midshipman Eld, Purser Macauley, the Chaplain, Stockbridge, Surgeon Jackson, and Capt. Douglass and Lieut. Kintzing of the Marines, and S. Claxton, Commodore's Secretary.

Commander ALEXANDER SLIDELL MACKENZIE of the Somers, appeared in full uniform. He is a man of medium hight, with a fine head covered rather thinly by light auburn hair, a high forehead, and of an amiable and pleasing rather than stern and commanding presence.

After administering the oath to the several members of the Court, the Judge Advocate read the warrant from Secretary UPSHUR, constituting the Court, and authorizing it to inquire into all the facts touching the alledged mutiny on board the Somers, and the conduct of Commander MACKENZIE in ordering the execution of Midshipman PHILIP SPENCER and of SAMUEL CROMWELL and ELIJAH SMALL, and *to report to the Department its opinion as to the right and propriety of those proceedings.* [This gives them far greater power and invests their decision with far greater consequence than usually belong to the proceedings of

Courts of Inquiry. Their judgement will, in point of fact, decide the question. The law is that they shall have no power to express an opinion on the merits of the case unless specially ordered so to do, as in this case they are ordered in their warrant.]

Some conversation then took place concerning the arrangements for conducting the inquiry. The Judge Advocate asked Com. Mackenzie if he had drawn up a narrative of the transaction.

He replied that he had prepared an official statement which he had forwarded to the Navy Department at Washington, and of which he had a copy.

The Judge Advocate said that it appeared no original papers were here—that they were on file in the Navy Department and might now be on their way to this city, as they had doubtless been forwarded, and he believed no mail had arrived this morning from South of Philadelphia.

Com. MACKENZIE said that all the witnesses in the case but two were present, and asked leave to be assisted in his defence by Mr. John Hone, not as Counsel, but to take minutes of the proceedings of the Court.

He was allowed by the Court to do so. Arrangements were then made for future sessions of the Court. The Judge Advocate wished that as late an hour in the morning for their meeting as would be convenient might be appointed, as all his official correspondence with the authorities at Washington must be attended to before he could conveniently attend. It was arranged that the Court should meet at half-past 11, and continue its sessions till half-past 3 or 4 o'clock, according to circumstances.

The Court then adjourned till Thursday, at 11 o'clock, A. M.

The proceedings of this Court will be of the most important nature, not only to the reputation and interests of those immediately concerned, but to the honor, duties and rights of all officers of the Navy. The following are the names of the crew now in irons, of whom the first four were brought home in irons, and the others arrested immediately on the arrival of the Somers:

Names.	*Age.*	*Born.*	*Rate.*
Daniel McKinley,	20	Boston	Landsman
Benjamin F. Green,	19	Portland	Apprentice
Charles A. Wilson,	22	New-York	Sail master's mate
Alexander McRea,	17	Ireland	Apprentice
Chas. J. Goldenham,	18	Boston	do
George W. Warner,	21	New-York	do
Charles Van Velzer,	18	do	do
Richard Hamilton,	17	Philadelphia	do
George Kneavels,	17	New-Haven	do
Edmund Gallia,	22	Malta	Old seaman
Eugene Sullivan,	17	Providence	Apprentice
Henry Wiltham,	23	New-York	Old seaman

The following are the officers of the Somers who will doubtless be examined:

Commander Mackenzie,
Lieutenant Gansevoort,
Sailing Master M. C. Perry,
Assistant Surgeon R. W. Lincock,
Midshipmen Henry Rogers, Egbert Thompson, C. W. Hayes,
Acting Midshipmen A. Delonde, John Tillotson,
Clerk O. H. Perry,
Purser's Steward J. W. Wales.

The following are the articles of the Naval law of the United States in reference to Mutiny on board of men-of-war:

ARTICLE 24—LAW OF 1789—*Mutiny and Sedition.*

Any officer, seaman, marine, or other person, who shall disobey the orders of his superior, or begin, excite, cause, or join in any mutiny or sedition in the ship to which he belongs, or in any ship or vessel in the service of the United States, on any pretence whatsoever, shall suffer death, or such other punishment as a court martial shall direct; and, farther, any person, in any ship or vessel belonging to the service aforesaid, who shall utter any words of sedition and mutiny, or endeavor to make any mutinous assembly, on any pretence whatsoever, shall suffer such punishment as a court martial shall inflict.

ARTICLE 13—LAW OF 1800.

If any person in the Navy shall make or attempt to make, any mutinous assembly, he shall, on conviction thereof by a court martial, suffer death; and if any person aforesaid shall utter any seditious and mutinous words, or shall conceive or connive at any mutinous or seditious practices, or shall treat with contempt his superior, being in the execution of his office, or, being witness to any mutiny or sedition, shall not do his utmost to suppress it, he shall be punished at the discretion of a court martial.

ARTICLE 14.

No officer or private in the Navy shall disobey the lawful orders of his superior officer, or strike him, or draw, or offer to draw, or raise, any weapon against him while in the execution of the duties of his office, on pain of death, or such other punishment as a court martial shall inflict.

SECOND DAY.

THURSDAY, Dec. 29, 1842.

After a short time spent in consultation in an adjoining room the Court assembled at half past 11, in the Captain's Cabin on board the North Carolina.

Commander MACKENZIE said he wished it distinctly understood that he asked the aid of Mr. Hone only to assist in taking minutes of the proceedings, as it had been said he had asked for Counsel.

The Court said that Mr, H. could be retained for any purpose Capt. Mackenzie might require.

Capt. MACKENZIE said he asked no assistance in cross-examining witnesses or for any other purpose than in taking minutes of the proceedings of the Court.

Capt. STEWART then presented the papers that had been received from the Navy Department.

The JUDGE ADVOCATE read the minutes of the proceedings of yesterday.

Capt. STEWART asked if Capt. Mackenzie had yet prepared a narrative of the transaction.

Capt. MACKENZIE: I have; but I forwarded the original document to the Department at Washington. I have sent out for a copy of it which will be here in a few moments.

Capt. STEWART—No narrative has been received from the Department. Are there any witnesses in this case present?

Capt. MACKENZIE—None but one or two summoned to prove matters not connected with the transactions on board the ship.

Capt. STEWART—All witnesses present will be required to retire from the Court.

Capt. GREGORY was requested to detail an officer to attend the Court for the preservation of order, &c. A packet of papers was produced by the Judge Advocate, which had been received from the Department; but on examination they

were found to have nothing to do with the case and were ordered to be sealed and returned.

Capt. Stewart handed to Capt. Gregory a list of men and officers of the Somers, whose attendance he was directed to summon. He ordered also a proper watch to be kept up on the Somers where the prisoners were in irons.

The copy of Capt. Mackenzie's narrative was then brought in and produced.

The Judge Advocate proceeded to read it, which he did in a low tone of voice and with great rapidity. As the Court decline to allow either this or any other official document to be copied for the press, we can only present a sketch of it, from such notes as we could take under the unfavorable circumstances already mentioned.*

Capt. STEWART suggested the propriety of not proceeding farther with the narrative, since it was evident that the copy had not been compared with the original; and he preferred that its reading should be delayed until an authentic copy should be received.

The Judge Advocate said that it would be a safer course to do so; and it was resolved upon.

The officer announced that the officers of the Somers were all present, and brought forward Mr. WALES for examination.

The Judge Advocate suggested that the whole statement of Capt. Mackenzie ought to be made before any witness should be examined. He said that Capt. M. was supposed not to know whether any part of his statement would be contradicted or not; and if he should first present the whole of it he would be liable to whatever contradiction should afterward appear. But if only a part of it should be read, and then the rest postponed till after the examination of witnesses, this rule would be violated.

The President of the Court thought Capt. Mackenzie could withhold whatever part of the statement he chose.

Com. Dallas was in favor of suspending proceedings until the rest of the statement should be read.

Capt. Mackenzie said that half an hour would be sufficient for him to procure the desired copy.

The Court was accordingly suspended for half an hour.

At the expiration of the half hour, Capt. Mackenzie said some confusion had occurred which prevented his producing the draft of the narrative at present. He said that he did not know until yesterday that the copy of this document would be required before the Court; and in the haste with which it had been copied by his friends, unavoidable errors had occurred which he greatly regretted. It should be ready, he said, to-morrow.

After making up the record of proceedings the Court adjourned to Friday at 11½ o'clock.

* Owing to an imperfection in Commander MACKENZIE'S Narrative its reading was interrupted, and that portion which properly belongs here as a part of the Court's proceedings on the Second Day we have placed among the business of the day following, when the reading was resumed and concluded. This is done in order to impart to the document that interest which a separation must necessarily lessen.

THIRD DAY.

FRIDAY, Dec. 30.

The Court reassembled at 11 o'clock, and was called to order by the President.

Capt. MACKENZIE came in and, in answer to the President, said that his narrative was now ready.

The Judge Advocate read the minutes of yesterday, and Capt. Mackenzie presented his narrative, which he said would be found both accurate and complete.

The Judge Advocate then proceeded to read the narrative, of which we present as accurate a sketch as possible.

Com. Mackenzie's Narrative.

U. S. BRIG SOMERS, NEW-YORK, Dec. 19, 1842.

Since my arrival at this port I have been diligently engaged in preparing for the Department at Washington a full and detailed narrative of all the circumstances connected with the mutiny on board the U. S. brig-of-war Somers on her recent voyage from Africa; but having been frequently interrupted, especially by the solicitude of friends, I have been forced to relinquish my first intention and to confine myself entirely to a sketch of the principal occurrences. After leaving the Azores and Madeira in October I proceeded, according to orders, to Teneriffe and Porto Pray.a—Thence I went to Liberia expecting to find the U. S. sloop-of-war Vandalia. But on arriving there I learned that she had sailed on the 5th of October for the United States as I understood. The despatches with which I was entrusted for her being thus rendered of no use were left with the U. S. Agent, whose receipt for them is enclosed. On the 11th of November I sailed for the United States via St. Thomas, where I thought it necessary to take in a supply of bread, water and other refreshments. On Saturday, the 25th of November, Lieut. Gansevoort came into the cabin and informed me that he had learned from Midshipman Wales that a conspiracy existed on board the ship to capture the vessel, to murder the Captain, bring over as many of the crew as possible, murder the rest and convert the vessel into a pirate; and that Midshipman Spencer was at the head of the conspiracy. This, Lieut. G. said, had been told to him by Midshipman Wales, whose narration was as follows:

On the night of the 25th of November, between 6 and 8 o'clock in the evening, Wales said he was aroused by Spencer, who asked him to go upon the booms, as he had something to say to him. He got up, and, on arriving at the booms, he was asked by Spencer, "Do you fear death? do you fear a dead man? do you fear to kill a man?" Wales, with admirable coolness, induced Spencer to go on, took the oath of secrecy, and entered into all his plans. Spencer told him that he had about 20 men in his plot; that they would easily get possession of the ship, murder the Commander and officers, and commence piracy. He gave Wales

all the details of his plan, which were admirably suited for his purpose, and arranged much better, Mr. Wales said, than he could have done it himself. As an inducement to embark in the enterprise, Spencer said that a large box of wine on board contained a large amount of gold and other treasure. His object was to go to the Isle of Pines, where one of his associates, who had been a pirate before, had a confederate; that he would attack no vessels that he could not capture, and destroy all he captured; that he would select from them such females as were proper, use them, and then dispose of them; that he had all the details of the plan drawn out on a paper, which was in the back of his cravat. He showed money to Mr. Wales, and, before separating, threatened him with instant death if he ever revealed what he had told him.

Such, proceeded Capt. Mackenzie, was the purport of the information which I received from Lieut. Gansevoort. To me the whole affair seemed so monstrous that I treated it with ridicule, and believed that Spencer had been amusing himself and Wales with some story of piracy he had learned from some novel or tale of murder. Still I could not help feeling that it was sporting with a serious subject and that my duty required me to be upon my guard, and I resolved closely to watch the movements of Spencer. I directed the first Lieutenant to observe him very narrowly. I learned that in the course of the day Spencer had been in the ward-room for some time, and had busied himself in examining a chart of the West Indies, and that he had made some inquiries concerning the isle of Pines. The Lieutenant told him that he believed it was a place much frequented by Pirates, and drily asked him if he had any acquaintances there? Spencer passed the day sullenly, and was often observed to be examining a paper, and writing with a pencil, and making rings with his penknife. Lieut. Gansevoort soon after made some excuse for following him to the foretop, when he found him engaged in working some love devices upon his arm. He expressed a desire to learn the rate of the Chronometer, and was referred to the Master of Marines. He was frequently seen engaged in holding secret conferences with Boatswain Cromwell and Small, and was known to have given money to different persons of the crew. He had also incited the steward to steal brandy, which he had given to the crew, and with which he had once or twice got drunk himself.

Capt. Mackenzie thought it due to the ward-room officers to state the circumstances connected with their having brandy on board. When the vessel was first equipped, I told the first Lieutenant that it was my desire that no liquor should be used in the steerage of the vessel; and gave as a reason for this that the obligations of hospitality always fell upon the Captain and his under officers, and that upon such occasions all should have their share. This hint had its intended effect, and I never had occasion to use compulsion. Knowing that Lieutenant Gansevoort viewed the matter in the same light, I did not interfere with the arrangements of the ward-room; and if I had done so it would only have been in the way of friendly advice. It now appears that when the vessel was oredred to the Coast of Africa, a supply of brandy had been ordered on board by some who had previously been on the same voyage, and who thought it would be a good defence against the malaria of that coast. By accident, as I then thought, but by design, as subsequent developements have made probable, the steward ordered the brandy from two different grocers, so that double the quantity required was brought on board. None of this was used by the mess or by any others than Spencer and those whom he endeavored to corrupt.

Spencer had the faculty of throwing his lower jaw out of joint and of thus playing with it a variety of musical airs; and he was frequently found thus amusing the crew. In his intercourse with me he was servile to the last degree; but among the crew I learned that he was loudly and blasphemously vituperative against me, and that he had often abused me in the most outrageous and violent terms, and declared that it would give him real pleasure to roll me overboard from the round top. I found that he had drawn a representation of a *black flag* and asked members of the crew what they thought of it; that he had often said the vessel could be easily taken; that he had not long before examined the palms of the hands of one of the midshipmen, to tell his fortune, and had predicted for him a speedy and violent death.

These things induced me to look back over all I had heard or observed of the Somers. When young Spencer first reported himself to me for duty on board my vessel I gave him my hand and welcomed him on board. I heard not long after that he had been involved in difficulty when on the Brazil Station, and that he had been dismissed for drunkenness. Upon hearing this I earnestly desired his removal from my vessel—principally on account of the young men I had with me; two of whom were connected with me by blood, two by alliance, and four were entrusted to my especial care. The circumstance of his connection with a high and distinguished officer of the Government, by enhancing, if possible, his baseness, increased my desire to get rid of him.

On this point, I beg that I may not be misunderstood. I revere authority, and in this Republican country I regard its exercise as an evidence of genius, intelligence and virtue. *But I have no respect for the base son of an honored father.* On the contrary, the conduct of that man who sullies by his crimes the pure fame and the high honor of his parent seems to me to be far more base than one equally guilty from an humbler station. But I wish nothing to do with baseness in any shape; least of all on board a vessel belonging to the United States. On this account I wished to get rid of Spencer. Two others soon after joined the vessel, and thus seven were obliged to occupy the space fitted only for five. I had heard that Spencer had expressed a willingness to be transferred and hoped that he would now consent.

I desired Lieut. Gansevoort to state to Mr. Spencer that if he would apply to Commodore Perry to detach him from the Somers I would second his application. The application was accordingly made and I seconded it, earnestly urging that it might be granted in order to secure the comfort of the young officers. Commodore Perry, however, declined to detach Midshipman Spencer but said he would consent to detach Mid. Rogers. I could not, however, consent to part with Mr. Rogers, whom I had long known to be an accomplished seaman, a gentleman and an officer of the highest attainments both in and beyond his profession.—

The Somers accordingly sailed with seven in the steerage; they could not all sit down together at the table; two of them had no lockers but slept upon the steerage deck, and subjected themselves to considerable inconvenience, to all which, however, they readily submitted without the slightest murmur or complaint, and performed every duty which fell to them to the perfect satisfaction of all the officers.

All these things I called to recollection and endeavored carefully to review the whole conduct of Spencer. I had treated him precisely as I treated other Midshipmen; though I had perhaps reproved him somewhat less than the others for slight deviations from the strict line of his duty. This arose from my conviction that there could be but little hope of essentially serving one who had proved to be so decidedly his own enemy. I observed that he was in the habit of associating but little with the other officers, but that he was continually intimate with the crew. He was often in the habit of joking with them and smiling whenever he met them, with a smile never known but on such occasions; and I had frequently observed in him a strange flashing of the eye.

Recalling these things in addition to what had been revealed, I resolved at once to make myself sure of his person, though I thought that I would first let Mr. Wales have another interview with him and obtain further knowledge of his mutinous plans. If he was really in earnest enough, however, was already known.

In the evening I gave orders to Mr. Perry, my Clerk, to have all the officers come aft upon the quarter-deck. When they were brought up, I approached Spencer and addressed him thus: "I understand, sir, that you aspire to the command of the Somers." With a deferential air he replied: "Oh, no, sir!" "Did you not," said I "tell Mr. Wales that you had a mutinous project on foot—that you intended to kill the Commander and the officers of the Somers, and such of the crew as you could not seduce to your plans, and to enter upon a course of piracy?" "I *may* have told him something like it," he replied, "but it was *only in joke*." "You admit, then, that you told him of such a plan." "Yes, sir," "This, sir," I continued, "you must know is *joking* upon a forbidden subject. This joke, sir, may cost you your life. Be pleased, sir, to remove your neckhandkerchief." He did so. I took it and opened it, but there was nothing in it. I asked him what he had done with the paper that was in it? "The paper," he said, "which had been in it contained my day's work; and I destroyed it." "It is a strange place, sir," said I, "to keep your accounts." He acquiesced with an air of the greatest deference and blandness. I said to him, "Your design was to make yourself commander of this vessel. You must have been aware that you could compass it only by passing over my dead body and over the dead bodies of all the officers of the Somers. You had laid out for yourself, sir, a great deal to do. It is my duty to confine you." Turning to Lieut. Gansevoort, I said, "Arrest Mr. Spencer, and place him in double irons." Lieut. Gansevoort stepped forward and received from Mr. Spencer his sword. Mr. Spencer was then ordered to sit down: he did so. Double irons were then put upon him, as were also hand-cuffs for the sake of greater security. I directed Lieut. Gansevoort to place a watch over Mr. Spencer, and to give orders to put him to instant death if he was detected in speaking or holding any communication with any of the crew. The nature of these orders was told to Mr. Spencer. At the same time, I directed him to allow him every possible indulgence consistent with his safe keeping. The task was executed by Lieut. Gansevoort with the greatest kindness and humanity. While he watched with an eagle eye over all his movements, and was ready at a moment's warning to take his life upon a violation of those conditions on which his safety depended, he attended to all his wants, covered him with his own garment from the squalls of rain by which we were visited, and ministered in every way to his comfort with all the tenderness and assiduity of a woman.

The officers were then remanded to quarters; the crew and batteries were inspected, the orders were repeated, and the retreat was beaten. The officers of the watch were all directed to be fully armed with cutlasses and pistols, with rounds of ammunition, and every thing was put in order for the night.

On searching the locker of Spencer, a razor case was found in it, which he had recently drawn from the Purser. On opening it there was no razor within, but in its stead a piece of paper in which was rolled another. On the inner paper was written a string of characters, afterwards found to be Greek letters, with which Spencer was known to be familiar. It fortunately happened that there was on board another individual who was well acquainted with the Greek—one whose knowledge of this as of everything else, was devoted wholly to the service of his country. The Greek characters, on being converted into our own language by Mr. Henry Rogers, proved to contain the plan for the proposed mutiny. There was a list of the different members of the crew, some of whom were marked certain and others doubtful; some were marked to be *kept* at all events, and others to be destroyed. These were designated who were to do the work of murder in the various apartments; others were to open the arm-chest, and the stations of all were assigned.

The following day was Sunday, and all were to be inspected at 10 o'clock. I took my station aft for the purpose of observing Cromwell and Small as they should come along upon the quarter-deck. The persons of both were faultlessly clean and neat—they being determined that their appearance should provoke no reproof on account of a fault in that particular. CROMWELL stood up to his full stature, carrying his battle-axe firmly and steadily; his cheeks pale, but his eye fixed to starboard. He wore a determined aud a dangerous air. SMALL presented a very different figure. His appearance was ghastly, his manner uneasy; he shifted his weight from side to side, and his battle-axe from hand to hand. His eye was never for a moment fixed, but always turned from me. I attributed his conduct to fear; though I now believe the business upon which he had entered was repugnant to his nature, but that his love for money and rum was too strong for his fidelity. Five bells, or 10 o'clock, was the time for Divine service. The First Lieutenant asked if he should call the roll. I told him it would be best to wait till the time was up. Five bells truck and all were called to muster. The crew were all present, were unusually attentive, and their re-

sponses were more than ordinarily full and audible. In the examination their countenances exhibited nothing to excite distrust.

In the afternoon the sky-sails and studding-sails were set. Gasely, one of the best of the apprentices, was sent aloft on the royal yard to make some alteration in the rigging. At once a sudden jerk was given to the brace by Small and another, who has not been discovered, and the fore-topmast, with the topsail, gallant-staysail and head-gaff-topsail, at once came down. Gasely was on the royal yard. I scarcely dared to look to see the spot where the boy should fall.—The next moment his shadow appeared at the mast-head, and I presently discovered him examining, with admirable coolness, what was to be done.

I did not dare to believe this carrying away of the topmast the work of treachery: but I knew that an occasion of this sort, such as the loss of the boy, which should create confusion and interrupt the duty of the officers, would be sought by them if they were bent on the prosecution of the enterprise. All possible measures were taken to prevent confusion. The rigging was immediately restored and the sails bent afresh. Every member of the crew was employed, and all things were made to go on with regularity. To my astonishment upon the occurrence of this disaster all the conspirators who were named in the programme of Spencer, no matter in what part of the vessel they were engaged at the time, immediately mustered at the mainmast—whether animated by some new-born zeal to serve their country, or intending to carry out their designs, I cannot say. This circumstance at once confirmed my belief in the continued existence of the danger. The eye of Spencer traveled continually to the mast-head, and he cast quick and stealthy glances about, as he had not done before. The wreck was soon cleared away, and supper piped.

After supper the same persons mustered at mast-head, and the sails were set. After quarters they dispersed. Still I did not think it safe to leave Cromwell at liberty during the night, which was emphatically the season of danger. After consulting with Lieut. Gansevoort, I determined to arrest Cromwell. An officer was sent to guard the rigging. I met Cromwell at the foot of the Jacob's ladder, going aft, and stopped him. I asked him about the conversation he had had with Spencer. He denied that it was he, and said, "It was not me, sir; it was Small." (Cromwell was the tallest man on board the vessel and Small the shortest.) Cromwell was immediately put in irons. Small being thus accused by an associate, was also ironed. The utmost vigilance was enjoined upon the officers. All were armed, and either myself or the First Lieutenant was constantly on deck.

The next morning, which was Monday the 28th of November, two crimes of considerable magnitude came to light. One of the men had been detected in stealing from a boat and the Steward had stolen money and given some of it to Spencer. This was no time to relax the discipline of the ship, and both the men were punished to the extent of the law. It was soon after found that a man named Waltham had told McKinley where three bottles of wine were placed and offered them to him. McKinley was stationed near the arm-chest and reported this to the First Lieutenant. Punishment of Waltham, however, was postponed till the next day. Punishment of the other two being over I thought that a fit opportunity to endeavor to make an impression upon the crew. I had good reason to think that the danger of the conspiracy was not over. I believed that a majority of the crew might be said to be in general disaffected and disposed to resist discipline. Some mysterious agency had evidently been at work since the departure of the Somers from New-York; and this was now disclosed. I explained to the crew the general nature of Spencer's plot and the atrocious character of the designs he had formed. I took especial care not to betray a suspicion that I thought any particular one of them was deeply implicated, but exhorted all of them to repent of their intentions and attend faithfully to their duty. I took good care to assure them that the majority of the crew must at all events share the fate of the officers. I strove to divert their minds from the pictures of successful vice which Spencer had presented to them. I brought up before them the images of friends at home; I endeavored to impress upon their minds the endearing nature of those ties of kindred from which Spencer had sought to sever them forever, and expressed the hope that within three weeks we should all be again among our friends. I thanked God that he had provided them all with dear friends who were deeply interested in their welfare, and that they had the prospect of so soon being once more among them.

The effect of my address on them was various. Many of them seemed delighted at their narrow delivery, and others seemed struck with horror at the thought of the terrible danger they had escaped. Some seemed overwhelmed with terror at the anticipation of punishment that awaited them. Others were overcome by thoughts of returning home, and wept profusely at the mention of the friends they hoped so soon to see. I could not help believing that all the crew were now tranquil, and that the vessel was again safe. Having observed that Spencer was endeavoring to hold intelligence with some of them, I directed the faces of all the prisoners to be turned aft, and that no tobacco should be allowed them when the supply they had upon their persons at the time of their arrest should be exhausted. I told them that I would see that they had every thing necessary for their comfort; that each should have his ration; that they should be abundantly supplied with every thing necessary for their health and convenience. But I told them that tobacco was only a stimulant, and that, as I wished their minds to become as quiet and tranquil as possible, I could not allow them to use it.

The day after Spencer's tobacco was stopped, his spirit gave way. He would sit for a long time with his face buried in his cloak, and when he raised his head his face was bathed in tears. He was touched by the kind attention of Mr. Gansevoort. He told him that he was not then in a state to speak of anything, but that he would the next day tell him all—would answer any question that might be put to him.

On Tuesday after quarters, all hands were again called to witness punishment, and Waltham was punished to the extent of the law for offering three bottles of wine to McKinley. I then spoke to the crew of the necessity of conforming in all particu-

lars to the orders of the vessel which were known. I told them that every punishment inflicted on board must be made known to the Secretary of the Navy, and that the less they were in amount the greater would be the credit that would attach to the Commander and the crew. But the whole crew, I soon found, were far from tranquil. They collected in knots upon the deck; seditious words were heard among them, and they assumed an insolent and menacing tone. Some of the petty officers were examined and found to be true to the colors, but it was the general impression that the vessel was far from being safe.—There was reason to fear that on that very night a rescue would be attempted. I obtained a variety of intelligence concerning conferences among the disaffected. Individuals whom I had not supposed to be implicated were found closely associated with several who were known to be among the disaffected, and several times there were symptoms that they were about to strike the blow. Mr. Wales once detected C. A. Wilson in drawing out a hand-spike from its place; and on presenting his cocked pistol at him, he only offered some lame excuse. I became exceedingly anxious, and remained constantly on deck. At 12 o'clock the watch was called. McKinley, Green and one or two others missed their muster: they could not be asleep, and why they should be absent just at that time, when they never had been before, was not easy to be seen. When they appeared, they all had some lame excuse. They probably had agreed to meet at that time and to commence some act of violence.—Green said he could not get aft. I sent him forward and ordered him to take the forward lookout for four hours. I directed a close watch to be kept up and distributed the others in a similar manner.

At 4 o'clock others missed their muster. I heard of this with the greatest uneasiness. Where, I asked, was this to end? If the men upon a bright night like this seem mutinous and disposed to undertake the rescue of those confined, on a bad night, in a storm, in the midst of utter darkness, how much greater will be the probability of a rescue? If all suspected should be ironed, would the danger be over? What sympathy might not be felt for the prisoners? These matters crowded upon my mind. I considered the imminent peril which hung over the lives of the officers and crew; I thought of the seas traversed in every direction by merchantmen, unharmed and defenceless; I thought of what was due to the interests of commerce, to the safety of the lives of thousands upon the deep, to the sanctity of the American Flag entrusted to my care, and to my own honor. All these considerations impressed me with the absolute necessity of adopting some farther means of security for the vessel which had been given to my charge.

I took counsel with the First Lieutenant, and was fortified in my purposes by finding his opinion identical with my own. In so grave a case, involving so many interests and such high responsibilities, I felt desirous of having the opinion of all my officers upon the matter, though not a shadow of doubt remained on my mind of the guilt of the prisoners, should their execution be deemed necessary. I did not forget that the officers were still boys, and that all the responsibility of the proceeding must rest upon the older and higher officers. Still I felt desirous to have their opinion, and accordingly addressed them the following letter:

U. S. BRIG SOMERS, Nov. 30, 1842.

Gentlemen: I am desirous of availing myself of your counsel in the very responsible position in which I find myself placed. You are aware of the circumstances which have resulted in the confinement of Midshipman SPENCER, of Boatswain's mate CROMWELL, and of Seaman SMALL; and I purposely abstain from entering into details concerning them. Necessarily ignorant, as I am, of the extent of disaffection among the crew who have so long been tampered with, and knowing the suspicion which attaches to some of the crew who are at large, I address you and ask your united counsel as to the best course now to be pursued; and I call upon you to take into deliberate and dispassionate consideration, the conduct which will be necessary for a safe continuance of the remainder of our course, and to enlighten me with your opinion as to the proper method to be pursued.

I am, your obedient servant,

ALEX. SLIDELL MACKENKIE, Commander.

Lieut. Gansevoort, and others.

After I had written this letter, but before I had sent it, at about 9 o'clock, Wilson, being foiled in his attempt to get up an outbreak at night, and feeling that he was narrowly watched and was no longer left at liberty, came forward and made some lame and worthless confession, and requested that he might not be put in irons. I told him that if he had made any *real* confession, in sincerity and truth, he should not be molested; but that it was an insult to his officer to offer him so lame a story as that he had told. Nothing more could be got out of him, and he was immediately put in irons. While on the African coast I knew that he had procured an extraordinary knife, broad in the middle, and running to a point. He had made it very sharp on both sides. It was a singular weapon, of no use except to kill. He had been seen also the day before sharpening his battle-axe with a file, and had brought one part of it to an edge. This was a thing never allowed or known before on board. McKinley was now arrested. He was evidently the individual in every way the most formidable of all concerned. McKee was also put in irons. They were made to sit down; and when the irons were put on, I walked around the batteries, followed by Lieut. Gansevoort, and made a careful inspection.

On the receipt of my letter the officers immediately assembled and entered upon the examination of witnesses, who were sworn and their testimony written down. In addition to this each witness signed the evidence he gave. In this employment the officers passed the whole day without interruption, and without taking the least food. I remained, myself, in charge of the deck. The officers were excused from watch duty and the watches were so arranged that two in succession fell to me. On the 1st December the First Lieutenant presented me with the following letter:

U. S. BRIG SOMERS, December 1, 1842.

SIR: In answer to your letter requiring our counsel as to the best course to be pursued with regard to the prisoners SPENCER, CROMWELL, and SMALL, we have the honor to state, that the evidence which has come to our knowledge after the most careful, deliberate and dispassionate consideration which the exigency would allow, is of such a nature as to call for the most decided action. We are convinced that in the existing state of things it will be impossible to carry the prisoners to the United States. We think that safety our lives, and honor to the flag entrusted to our charge, requires that the prisoners be put to death, as the course best calculated to make a salutary impression upon the rest of the crew. In this decision we trust we have been guided by our duty to God, to our Country, and to the Service.

Respectfully, your obedient servants.

Lieut. GANSEVOORT, and others.

Com. Mackenzie.

I at once concurred in the justice of this opinion, and made preparations to carry the recommendation into effect. Two other conspirators

were almost as guilty as the three singled out for execution: they could be kept confined without extreme danger to the ultimate safety of the vessel. The three chief mutineers were the only ones capable of navigating and sailing the vessel: by their removal, all motive to capture the vessel and carry out the original design would be at once taken away. Their lives were justly forfeited and the interests of the country, the safety of the sea, and the honor of the flag required the sacrifice. *In the necessity of my position I found my law:* and *in that necessity I trust for justification.* I thought it best to arm the petty officers: on this point only the First Lieutenant differed from me; and I found that he was of the same opinion with some of the petty officers themselves;—they said that since I could not tell whom to trust, it would be best to trust no one. I made up my own mind, and judged of the characters whom I could trust and determined to arm them. I ordered to be issued to each a cutlass, a pistol and cartridges. I ordered preparations also to be made for the execution of the three. All hands were called to witness punishment. The whips were arranged, the officers were stationed about the deck, and the petty officers were directed to cut down every one who should let go his whip or fail to haul when ordered.

I put on my full uniform, came on deck and proceeded to execute the most painful duty that ever devolved upon any officer in the American Navy—the announcement to the prisoners of the fate that awaited them. I approached Spencer and said to him: "You were about to take my life, Mr. Spencer, without provocation, without cause or the slightest offence. You intended to kill me suddenly—in the night while I was buried in sleep, without giving me a single moment to send one word of affection to my wife, one prayer to God for her welfare. Your life is now forfeited: and the necessity of the case compels me to take it. I do not intend, however, to imitate you in the mode of claiming the sacrifice. If there be in your breast one feeling true to nature, you will be grateful for the premature disclosure of your horrible designs. You surely ought to be thankful that you have been prevented from the terrible deeds you meditated. If you have any word to send to your Father, any satisfaction to express to him that you were not allowed to become a Pirate, as you ought to do, you will have ten minutes granted in which to write it." Midshipman Thompson was then directed to note the time and inform me when it had expired.

Spencer seemed overcome with emotion. He burst into a flood of tears, sank on his knees, and said he was not fit to die. I repeated to him his catechism, and begged him to offer sincere prayers for the divine forgiveness. I recommended to him the English Prayer-Book, assuring him that he would find in it something suited to all his necessities. Cromwell fell upon his knees, protesting his innocence, and invoking the name of his wife. Spencer declared that Cromwell was innocent, and begged that this might be believed.—This, I confess, staggered me; but the evidence of his guilt was conclusive. Lieut. Gansevoort said that there was not a shadow of doubt of it. The petty officers said he was the one man from whom real apprehension was entertained. He was at first the accomplice of Spencer, and was then urged on by him, and had been by him turned to his account. I tried to show him how Spencer had endeavored to use him, and told Spencer that he had made remarks about him he would not consider flattering. He expressed great anxiety to know what they were. I told him Cromwell had said of him and another person that there was a "d—d fool on one side, and a d—d knave on the other," and told him that Cromwell would have allowed him to live only so long as he could have made him useful to himself. This roused him, and from that time he said no more of Cromwell's innocence.

Subsequent circumstances made me believe that Spencer wished to save him, probably from the hope that he would yet get possession of the vessel and carry out his original design; and perhaps that Cromwell would in some way effect his rescue. He endeavored at the same time to persuade me that Small was only an alias for some one else, on his list—though this was proved to be false. Small alone was the one we had set down as the poltroon of the three; yet he received the announcement of his fate with great composure. He was asked what preparations he wished to make. He said he had none: "Nobody cares for me," said he, "but my poor old mother, and I would rather she should not know what has become of me."

I returned to Spencer. I asked him what message he had to send to his friends. He said "None. Tell them that I die wishing them every blessing and happiness. I deserve death for this and my other crimes. There are few crimes I have not committed. I am sincerely penitent for them all. I only fear my repentance is too late." I asked him if there was any one whom he had injured to whom he could make reparation—any one who was suffering obloquy on his account? He said "No; but this will kill my poor mother." I did not know before that he had a mother, and was touched by his allusion to her. I asked him if it would not have been far more dreadful if he had succeeded in his attempt—if it were not much better to die as he would than to become a pirate and steep himself so terribly in blood and guilt. He said, "I do not know what would have become of me if I had succeeded." I told him that Cromwell would soon have made a way with him, and that McKinley would probably have destroyed them both. He said he "feared this would injure his father." "Had you succeeded," I replied, "the injury you would have done him would have been much greater." If it had been possible to take him home, as I at first intended, I told him that he would have got clear, as in America a man with money and influential friends would always be cleared;* that the course I was taking would injure his father less than if he should go home and be condemned yet again escape. He said that he had attempted the same thing on board the John Adams and the Potomac; but had been unsuccessful. He asked if I had not exaggerated the danger. I told him "No; that his attempts to corrupt the crew had been too widely successful; that I knew of the existence of the conspiracy but did not know how extensive it was." I recapitulated to him his acts.

* Perhaps this is an extreme and erroneous opinion, and not just. But I am merely stating facts—what passed on the occasion.

He was startled when I told him of his stealing brandy. He admitted the justice of his fate but asked me if I was not "going too far and too fast. Does the law justify you?" said he. I replied that his opinion was not unprejudiced; that I had consulted all the officers and they had given their opinion that it was just—that he deserved death. He asked "what would be the manner of his death." I explained it to him. He requested that he might be shot. I told him that it could not be—that he must be hung. He admitted that it was just. He objected to the shortness of the time and requested that an hour might be given to prepare. I made no answer to this but allowed much more than the hour he asked for to elapse. He requestdd that his face might be covered. I granted his request and asked him what it should be covered with. He said a handkerchief. In his locker was found a black one which was put on his face. Cromwell and Small made the same request, and frocks were taken from their lockers with which their heads were covered.

Spencer asked for a Bible and Prayer Book: they were given to him. He said, "I am a believer—but do you think that my repentance will be accepted?" I called to his mind the thief on the cross, and told him that God's mercies were equal to all his wants. He kneeled down and read from the Prayer Book, and asked again if I thought his repentance would be accepted, saying that his time was short. I told him God not only understood his case but could suit his grace to it. He begged that I would forgive him. I told him I did most sincerely and cordially, and asked if I had done any thing which made him seek my life or whether his hatred was unfounded. He said he thought it was only fancy. "Perhaps" he added, "there was something in your manner which offended me." I read over to him what I had written down. He wished me to alter the passage in which I said that he "offered *as an excuse*, that he had attempted the same thing on the John Adams and Potomac." He only mentioned it as a fact, he said.

More than an hour had now elapsed. Spencer, as he met Cromwell, paused and asked to see Mr. Wales. As he passed Cromwell he said not a word of his innocence, nor did he make any appeal in his favor. Spencer said, "Wales, I hope you will forgive me for tampering with your fidelity." Wales replied, overcome with emotion, "I do forgive you from the bottom of my heart, and I hope God will forgive you also." Wales was weeping, and Spencer in passing met Small at the gangway. He extended his hand and said, "Small, forgive me for having brought you into trouble." Small answered, "No, by G—d, Spencer, I caanot forgive you." Spencer repeated his request.—Small said, "How can you ask that of me after having brought me to this? We shall soon be before God and shall there know all about it." Spencer said "You must forgive me—I cannot die without it." I went to Small and asked him not to cherish any resentments at such a time, and asked him to forgive him. He relented—held out his hand to Spencer and said, "I do forgive you—and may God forgive you also."

Small then asked my forgiveness. I took his hand and expressed my forgiveness in the strongest terms. I asked him what I had done that he should seek my life; if I had been harsh either in deed or word to him. He exclaimed, "What have you done, Capt. Mackenzie? What have you done to me? Nothing—but treated me like a man." I told him of the high responsibilities under which I acted; of the duty I owed my Government and the ship with which it had entrusted me; of his offence toward his Commander and the boys he intended to put to death, and of the high duty I owed to the flag of my country. "RIGHT!" he exclaimed, "God bless that flag and prosper it!" "Now," said he, "give me a quick and easy death." Spencer said to Lieut. Gansevoort that his courage had been doubted; but he wished him to bear witness that he died like a brave man. He asked what would be the signal for his execution. I told him that I was desirous of hoisting colors at the instant to show that the flag of the Somers was fixed to the masthead; and that I intended to beat the call to hoist colors and then roll off; and at the third roll a gun would be fired as the signal. He asked leave to give the signal. I at once acceded. He asked if it was the gun under him. I told him it was but one removed. He asked if it would be fired by a lock and wafer. I was told that preparations had been made to fire it with a match; and immediately ordered a supply of live coals and fresh coals to be passed constantly; and then assured him that there should be no delay.

The time was now wearing away. Small requested leave to address the crew. Spencer having had leave to give the signal, was asked if he would give Small the leave he asked. He said yes. Small then said:

"*Ship-mates and top-mates:* Take warning by my example. I never killed a man but only said that I would do it, and for that I am about to die. Going in a Guineaman brought me to this. Take warning and never go in a Guineaman." Turning to Spencer, he ssid, "I am ready to die; are you?"

Cromwell's last words were, "tell my wife that I die innocent; I die an innocent man." From the appearance of this man in assuming to be innocent, it would seem that Spencer took all the risk of the affair, and Cromwell intended to profit by it.

I placed myself where I could take in the whole deck with my eye. No word was given by Spencer. He finally said he could not give the word, and wished me to do it. The word was accordingly given and the execution took place.

The crew was ordered aft when I addressed them. I called their attention to the fate of the young men who had just been hung in their presence. I spoke of the distinguished social position Spencer had held at home, and held up before them the career of usefulness and professional honor to which a course of faithful duty would have raised him. After having been but a few months at sea, he had criminally aspired to supplant me in a command I had earned by thirty years of faithful service. Their own future fortunes, I told them, were within their own control; I opened to them the stations of respectability and of future honor to which they might rise, but told them it could only be step by step, in a regular course. I called their attention also to Cromwell's course. He had received a handsome education, and his handwriting was even elegant; but he had also failed through his love of gold. The first $15 he had received from Spencer had bought

him, and the hope of great plunder had secured the purchase. An anecdote had been told to me by Collins of Cromwell, which carried its own moral with it, and which I desired Collins to repeat. He did so: he told them that he once went to India with Cromwell, and that they took on board there a keg of doubloons for Mr. Thorndike. Collins alone knew of its being aboard, and kept it a secret till they went ashore. He then told Cromwell of it, who laughed at him, and said that if "he had known about it, he would have run away with the keg." I told the crew they had only to choose between the two—Collins and Cromwell. Small also had been brought up to better things, but had not been able to resist temptation, and had died invoking blessings on the flag of his country.

All hands were then called to cheer ship and gave three hearty cheers. Three *heartier* cheers never went up from the deck of an American ship! In that electric moment I verily believe the purest and loftiest patriotism burst forth from the breasts even of the worst conspirators. *From that moment I felt that I was again completely master of my vessel, and that I could do with her whatever the honor of my country required.*

Dinner was piped, and I noticed with feelings of pain that some of the boys, as they passed the bodies, laughed and sneered at them. I still desired that Spencer should be buried in a coffin, and gave orders to have one built. But Lieut. Gansevoort offered to relinquish a mess chest he had for that purpose, which was soon converted into a substantial coffin. The watch was set, and the bodies were lowered. They were received by their messmates, to be decently laid out for burial. The Midshipmen assisted in the duty. Spencer was laid out clothed in his complete uniform, except his sword, which he had forfeited the right to wear. I noticed that upon the hands of one of the others a seaman had tied a ribbon, with the name upon it of that Somers who so distinguished himself by his gallantry, patriotism and skill. On Cromwell's face a sabre-cut was visible, and on removing his hair four or five more were discovered; which showed that he had been where wounds were given. He was said to have been in a slaver, and in Moro Castle in Havana; and it was the general impression that he had been a pirate.

A squall of rain soon sprang up, which rendered it necessary to cover the bodies with tarpaulins. They were arranged according to their rank, and all hands were called to bury the dead. The American Ensign was lowered to half-mast. Night had now set in. All the lamps were lit and distributed among the crew and placed in the bows, in the gang-way, and in the quarter boat. The service for the dead was read and the bodies were committed to the deep. The offices were closed by reading that beautiful prayer, so suitable to the occasion, "Preserve us from the dangers of the seas and the violence of enemies. Bless the United States:—watch over all that are upon the deep, and protect the inhabitants of the land in peace and quiet, through Jesus Christ our Lord."

In reading this I sincerely thanked God for the protection of the Somers, and felt a firm faith that he would sanction the deed of that day. On the following Sunday, the 4th of December, after the laws for the government of the Navy had been read, according to invariable custom on board the Somers, I took occasion to allude to the lessons to be drawn from the fate of those who had suffered. I led the minds of the crew back to their youthful days and showed them how they had trampled under foot the wise counsel and admonitions of their friends. In Small's locker were letters from his mother, expressing the joy she felt that he was so happy on board the Somers. (This was before Spencer had joined.) There was also a Bible, in the leaves of which he had copied some verses from the Sailors' Magazine, in praise of its holy precepts. These verses I read to the crew. I thus showed them how Small valued his Bible, but that he did not resist temptation. I urged them to read it closely and attend faithfully to its precepts. I endeavored to show that there could be no such thing as honest Atheism. I held up before them how Spencer had injured many people, and especially his parents. He had lacked filial piety and piety towards God—two principles which would never have suffered him to go astray. In conclusion, I called on them, as they had given three cheers for their country, now to give three cheers for God—as they would do by singing his praise. The colors were then hoisted, and above the American Ensign was raised the Banner of the Cross—the only flag that ever floats above it from any vessel under my command. The 100th Psalm was sung, after which the crew dispersed. I could not help, on that day of peaceful Sabbath worship, contrasting the condition of my vessel with that she would have presented had she fallen into pirate's hand. Nor could I avoid observing the marked effect produced upon the ship's company by the proceedings. I was satisfied at once that all danger was past and the mutiny broken for ever.

In closing this Report there yet remains the pleasing duty of adverting to the conduct of the under officers. The first Lieutenant, throughout the whole difficulty has borne himself with courage, and sustained a lofty and chivalrous part. Always armed, his pistol often cocked—only in a single instance has any accident occurred; and that arose from the accidental discharge of his pistol while arresting Cromwell. Next in rank to the Commander on board the vessel, he was my equal in the discharge of every duty. Never since the existenee of the Union has a commander been more ably and zealously seconded by a First Lieutenant. Where all behaved so well, it may seem invidious to particularize; yet I cannot avoid reference to the conduct of Purser Heiskell, and Surgeon Hicock. Both were in delicate health, and the latter especially was not in a fit condition to go to sea. He had returned in the Dolphin from the coast of Africa, and had suffered from the fever in the River Nunez. But he did duty through the difficulty. Both obeyed the order to go armed and keep watch without the slightest murmur.

I would respectfully suggest that the thanks of the Department be presented to all the officers of the Somers. The opinions they gave were their own; if they were erroneous—the responsibility is not theirs. The opinions, the acts and the responsibility are mine alone and I freely meet that ordeal to which my conduct will undoubtedly be subjected trusting to that consciousness of rectitude in my own bosom which has never for one moment forsaken me, or wavered in the slightest degree.

I submit that J. W. Wales by his coolness and presence of mind and firm integrity, has rendered

to the American Navy a memorable service. I had some difficulty with him at Porto Rico; and on that account he was singled out and tampered with; but he remained true to the flag of his country. A Purser's post or a handsome pecuniary recompense would be a small compensation for the services he rendered.

Sergeant Gartry proved himself worthy the noble corps to which he belonged. He rose from his hammock, where he had been confined by sickness, and did duty through the whole affair; and when this was done his malady returned and he was again disabled. I respectfully suggest that Sergeant Gartry he promoted to a Second Lieutenancy in the Marine Corps. I also recommend the other officers to the notice of the Department. I believe that their promotion will be beneficial to the Navy. If they prove to be unworthy of it, the service they have now rendered cannot be injured by that. It will be remembered in the Navy that when a mutiny occurred and they remained faithful to their trust, their services were not forgotten; if they prove unworthy of it, this will not be recorded with it.

If it be deemed that I have had any merit for the preservation of the Somers from the treacherous toils by which she was surrounded, both since and before her departure from the United States, I respectfully beg that it may accrue without reserve to my nephew, Mr. Perry; and that he be placed in the situation left vacant by the death of Mr. Spencer. I pledge myself for the entire faithfulness and zeal with which he will discharge its duties. For myself, I only ask that, whatever may be thought of the services rendered to the flag of my country, which should be the first considered, my own honor may also meet with due consideration. I ask only that I may not be deprived of my command until I am found to be unworthy of it.

ALEX. SLIDELL MACKENZIE.

The reading of the narrative occupied till 1 o'clock, after which the Court proceeded to the examination of witnesses, as follows:

EXAMINATION OF WITNESSES.

JAMES W. WALES, sworn by the President, testified as follows: I was Purser's Steward on board the Somers in her late cruise. I was informed on the night of the 25th of November last of an intended mutiny on board that vessel. I was standing forward by the bitts when Mr. Spencer came forward, and, after some few remarks relative to the weather, requested me to get on top of the booms, telling me at the same time that he had something *very important* to communicate to me. I accordingly got on top of the booms with him and he commenced the conversation by asking me if I 'was afraid of death?' I was then alone with him. "Was I afraid of death—and did I fear a dead man and dare I kill a person," were the questions he asked me. I was very much surprised at these remarks and looked up to see if he was in earnest; I found that he was very serious and very much in earnest in what he said. I replied that I was not particularly anxious to die quite yet, that I had no cause to fear a dead person and that did a man sufficiently abuse or insult me, I thought I could muster sufficient courage to kill him if necessary. Mr. Spencer replied, "I do n't doubt your courage at all; I know it." "But," said he, "can you keep a secret? and will you keep one?" "If so," he added, "take the oath." He then dictated an oath, of which I cannot recollect the whole; but the purport of it was that I should never make known to any person the conversation which was about to take place between us. I took the oath as directed by Mr. Spencer. The oath was merely administered by word of mouth, no Bible being used. He then went on to state that he was leagued with about *twenty* of the brig's company, to take her, murder all her officers and commence pirating. The plan and stations of the men, he said, he had all arranged in secret writing, done up in his neck handkerchief. He requested me to feel of his neck-handkerchief. I did so and there was a rumpling which showed that there was paper in the back part of it. He went on to state to me the plan he should pursue. The affray would commence some night when he had the mid-watch.—Some of his men would get into a fight on the forecastle. He (Spencer) was to bring them up to the mast and call Mr. Rogers, the officer of the deck, to pretend to settle the difficulty.—As soon as Mr. Rogers had got to the gangway they were immediately to seize and throw him overboard. They would then have the vessel in their own possession. The keys of the arm-chest, he said, he could lay his hands on at any moment. The arm chest was to be opened and the arms distributed to his men. He was then to station his men at the hatches to prevent any one from coming up on deck, and he should proceed to the cabin and murder the Commander with the least noise possible. He should then proceed with some of his men to the ward room; and then murder the ward-room and steerage officers. He stated that the officers had no arms in the ward room with the exception of the First Lieutenant, and all the arms that he had there was an old cutlass, which he should secure before the affray commenced.

This accomplished, he said he should go on deck, have the two after guns slewed around so as to command, from a raking position, the deck. He would then cause all the crew to be called on deck, and select a number from them such as would suit his purposes; the remainder he should cause to be thrown overboard. (The words "suit his purposes" were the very ones he used.) This done, he should commence clearing the deck, beginning by throwing overboard the launch and all the spare spars and rigging of the vessel, as they only tended to lumber up the deck; that should they stand in need of any spare spars or rigging, they could take them from vessels that they would capture.

This done, the brig was to proceed to Cape San Antonio, or to the Isle of Pines; and there take on board *one who was familiar with their intended business, and who was ready and willing to join them.* The name of this person was not mentioned. This done, they were to commence cruising for prizes; that whenever they took a vessel, after taking from her that which would be of use to them, they were to murder all on board and scuttle the vessel, so as to leave no traces of her. Should there be any females on board of the vessels they would take, they would have them removed to the brig for the use of the officers and men—using them as long as they saw fit, and then making way with them.

Spencer then called up ELISHA SMALL, seaman

on board. He came and stood by the railing, but did not get up on the booms. (This was before I made any reply to what he said—because I *could not* reply.) He commenced talking to him in Spanish, but I could not tell what they were talking about, as I did not understand the language. Small looked surprised, however, at what he told him. I saw Small's face very plainly. Spencer then remarked to Small, in English, "O, you need not be under any apprehension of fear on his (witness's) account, as I have sounded him pretty well and find he is one of us." Small seemed pleased, and remarked that he "was very glad to hear it." Small was then called away to execute some order. Before going Spencer told him that he (Spencer) should have the mid-watch that night, and wished to have some farther conversation with him (Small) relative to their plans; and desired Small to 'see that foretop-man' meantime. (He did not name him.)

Small then left. Spencer made overtures to me, saying that if I would join them he would give me the post of third officer in command. He then went on to state that the Commander had a large amount of money on board. This, he said, with what the Purser had would make a pretty little sum to commence with. He then asked me what I thought of the project. I thought it prudent to dissemble as much as possible in order to gain further information, and told him that I was favorably disposed towards it. My duty then called me away. Spencer remarked that we would have another interview on the morrow, when he would show me the plan he had drawn up. He followed me to the gangway saying that if I lisped a syllable of what he had communicated to me I should be murdered; that if he did not do it himself those connected with him would; that go where I might my life would not be worth a straw. I said "No, I would not make any mention of it." This conversation lasted upwards of an hour—nearly two hours. It was contrary to the rules of the ship to sit on the booms at all; we were on the centre out of sight. I recollect no other part of the conversation which occurred there. I took the first opportunity that I could to make the matter known to Commander Mackenzie. It was about 9 o'clock at night when I left Mr. Spencer, and he went below to turn in. It was very light—moonlight I think, though I will not be sure. I proceeded as far aft as the cabin, intending to communicate the intelligence to Commander Mackenzie, but I observed that Small was watching me closely. Seeing this I turned back and thought I would try to get into the wardroom, but there I was again put off; for Spencer put up his head and wanted to know "what the devil I was about, cruising around there," or something to that amount. Spencer's hammock was hung right over the ward-room door, and to reach the door I had to pass by it. I made no reply but pretended to be getting into the Purser's store-room. I then went on the first deck again. About one hour after I went again to the steerage and found Spencer still awake. I had returned there with the intention of getting into the ward-room. I saw that the lights were out and that the ward-room gentlemen had retired.

I then let the matter rest till morning, but did not go to sleep, though I tried. In the morning, as soon as I could get in, before breakfast, (about 7 o'clock I should think,) I communicated the matter to Purser Heiskell, and then went on deck and told the First Lieutenant that the Purser wished to see him immediately in the ward-room. I merely gave the Purser to understand that there was a mutiny on foot, and wished him to get it to the Commander as soon as possible. I condensed Spencer's statement, and went up to the First Lieutenant of my own accord, for fear the Purser would neglect it. I was watched as closely as possible by Small, Cromwell, Wilson, McKinley and Spencer, and therefore kept out of the way of the officers as much as possible. These men I frequently noticed clubbing together, and I believe they knew I was playing them false. I had no farther interview with Spencer, though I endeavored to do so. He was continually engaged with the forecastle-man—Benj. F. Green—on the foretop, so that I could not see him. Spencer was arrested on the evening of the 26th November. I could get no chance previously to talk with him. Green was an apprentice on board. Spencer was put in irons, and was immediately asked if such a thing had occurred.

Previous to the arrest of Mr. Spencer, I had heard nothing from any of the other men nor had seen any thing to implicate them—after my conversation with Spencer; though I had on the 26th seen him talking with Cromwell, Small, Neville, Wilson and McKinley, near the Jacob's ladder. They were all collected together; I was in the gangway, and could hear none of their conversation, which was carried on in the usual tone.

I saw Commander Mackenzie and Spencer together on the quarter deck just previous to Spencer's arrest. The conversation which occurred between them, so far as I can recollect, was this: The Commander told him that he understood he (Spencer) aspired to the command of that vessel; and that he did not know how he could accomplish his object except by riding over the dead bodies of her officers. I heard nothing more of the conversation except that Mr. Spencer said 'Yes, sir,' and then I was sent away to attend to getting out some irons. That was all of the conversation I heard. I brought the irons on deck. After they were brought up no conversation took place.—Spencer's sword was taken away, and the irons put upon him, to which he appeared willingly to submit. At the time the irons were put on, some of the officers were on the quarter deck. The men were at quarters; the officers were all called out—and some of the men, I do not recollect who they were, were stationed at the guns. After he was ironed, Spencer was taken to the larboard arm-chest. This was about 6 o'clock, I think—the time for evening quarters. Mr. Spencer was then alone.

After this I observed dissatisfaction among the men. When an order was given it had to be repeated several times, and even then they obeyed it sullenly, as if they did not care a farthing whether the order was executed or not. Cromwell, whose hammock was slung next to mine, was called by some officer to go on deck, and went muttering—but I could not understand what he said. The same evening I observed Wilson, McKinley and three or four others collected on the forecastle talking together: and when the officers went toward them they would separate and go to other parts of the ship. I heard nothing at all of their conversations. Nothing else occurred that night, to my knowledge.

The next day I noticed nothing suspicious in the conduct of the men, except that they were surly about doing their duty. This surliness was general among the men. I think that on that day Cromwell and Small were put in irons, though I will not be sure.

After these three were in irons I saw that the crew was disorderly. In the morning, while holystoning the deck, I being officer over the prisoners, I observed signs passed between Spencer, Wilson and McKinley; they put their hands to their chins and Cromwell, who was lying on the arm chest, rose up. I told him my orders were to shoot him down, and I should do so if he did not lie still. He lay down. I then went back with my pistol cocked, to the launch, where Wilson was poking about, and found that he had a number of the holy-stones out and that he was taking out a hand-spike. I told him that if I saw him making any farther signs I would blow his brains out. He said nothing, did not put the hand-spike back but went to draw some water. I put the handspike back myself. I expressed my fears to Commander Makenzie and the First. Lieutenant, telling them that I thought it dangerous to leave the holystones about, as they might be easily used. I went to the Commander to tell him this. While Spencer was in irons, near the battle-axe rack, I observed him trying how he could work one—moving the axe up and down. Cromwell and Small were at this time confined. After I told this to the First Lieutenant he told it to the Commander and the battle axes were removed to the arm-chest. That mornin g Wilson, McKinley, McKee and Green missed their muster and congregated round the stern of the launch. The next day, at morning quarters, they came forward and made some acknowledgement; they were then put in irons; it was then 9 o'clock. After they were put in irons I could see that the men and boys were still surly; they went to work, when orders were given, with evident dissatisfaction. I heard nothing said among them, however. This dissatisfaction kept on till the execution, when the whole feeling changed. Those who before had been slow to execute an order were, after that, the first to run to obey it.—After the arrest of Spencer and previous to the execution this dissatisfaction was evidently on the increase, so much so as to be perceptible from day to day. More than half the crew, I should think, exhibited it.

I was present at the time of the execution. I did not hear any conversation between Commander Mackenzie and Spencer and Cromwell, though I heard him ask Small to forgive Spencer. Small sat on the gangway. Spencer said "Small, I hope you will forgive me;" Small replied, "Mr. Spencer how can you ask me that when you have brought me to this?" Commander Mackenzie said to Small "Don't go out of the world with any hard feelings at your heart—forgive him." Small replied "Since you request it, sir, I forgive him." Small then bade Lieut. Gansevoort farewell. Commander Mackenzie said "Small, what have you against me that you will not shake hands with me and bid me good bye?" Small said, "Nothing, sir, only I did not think that you would shake hands with a poor fellow like me and bid him good bye." He reached out his hand, shook that of Commander Mackenzie very cordially, and bade him farewell. I heard Small say, looking up to the flag, "God bless that flag!" He was then addressing his shipmates, having asked permission to do so of the Commander which had readily been granted him. I cannot recollect the words of his address though I heard him warn them from his fate; and heard him say that his sentence was right and just, and that it was right that he should die. He then looked up and said "God bless that flag!" and asked Mr. Spencer if he was ready to die—saying "*I* am." Spencer made no reply at all. He had permission to give the order to fire the signal gun, but waited some time, not being able to do so.

Previous to this Commander Mackenzie told me that Spencer wished to speak with me. I went up to him, and he said to me, "Mr. Wales I sincerely hope that you will forgive me for tampering with your fidelity."—Commander Mackenzie was standing by his side—I replied that I did, and hoped that God would forgive him. He then shook my hand and said farewell. I had no other conversation with either of them.

While we were at Mesurado, going ashore in the boat, on the 11th of November, Spencer was officer of the boat, and I was with him. I believe Mr. Rogers was also in the boat, though I am not sure. The Commander had told Spencer before he got into the boat that he was not in uniform.—He was just going into the boat as this was said. He muttered some reply, but I could not hear what it was. After we had got some 20 or 30 yards from the Brig the Captain hailed us and asked if we had the American ensign in the boat. Spencer replied that he had not got it, and added, (not, however, so the Captain could hear) that he'd "be G—d d—d if he was going back after it either, for the d—d old humbug. Go to h—ll." He continued cursing all the way to shore—though I cannot call to mind the particular expressions that he used. I think McKinley was in the boat, and Golding also—though I am not sure. This was the second cutter. This was all that took place at that time. Spencer's remarks seemed to please the crew.

About two weeks before the revelation of the mutiny was made, while bound from Mesurado to St. Thomas, Mr. Spencer having the watch on deck, (though I do not recollect the day or the place of the vessel,) Mr. Rogers sung out to let go some brace. Spencer was talking with Cromwell, (who was boatswain's mate of the watch,) and some others of the crew. None of them paid any attention to the order. Mr. Rogers called out again and again. They paid no attention. Mr. Rogers then came forward and gave the order himself. (I was forward standing by the Jacob's ladder. They were as near Mr. Rogers as I was and could hear as well.) Capt. Mackenzie, who was on deck, noticed it, and sent for Spencer to come aft. I did not hear the conversation between them, but when Spencer came forward he was muttering curses against the Commander. I asked him: "Spencer, what's the matter?" Said he, "the Commander says that I don't pay attention to my duty, and urges me to pay better attention hereafter. G—d d—n him, I'd like some of these dark nights to catch him on top of that roundhouse, and plunge him overboard. It would be a pleasing task for me, and (he muttered between his teeth,) G—d d—n him, *I'll do it yet.*" I made no reply. He went forward and began

talking with some of the men—four or five. I went below. I did not repeat this language to any of the officers. I have had frequent conversations with Spencer on general subjects, but no others which would throw light on the matter. I did not know at the time that there were mutinous expressions. Other officers were near and must have heard his words.

Spencer had a picture in the ward-room at one time. Once the Purser called the trysail the mainsail, and they had quite a dispute about it.—Spencer brought out a picture of a brig, with a *black flag* flying at the peak. He made no remarks at that time or any other to me about the picture or the color of the flag.

At Madeira, when we were getting under weigh, Cromwell spoke against Commander Mackenzie. Capt. M. asked why some rigging had not been attended to. Cromwell was stationed forward and Capt. M. went aft. Cromwell then said he "did not care care a d—n about the rigging: Captain Mackenzie was desirous of getting too much work out of the crew; that there was no necessity of getting under weigh that night at all," at the same time wishing the "Commander and the Brig farther in h—ll than they were out." This he said loud enough to be heard by all forward. Several of the officers were forward at the time, but in the hurry of getting under weigh, paid no attention to it.—Shortly after we left New-York, Cromwell, while giving some money to the Sergeant of Marines to take care of, told me that Spencer had given him $15; he mentioned no purpose, though he said something about its being a "pretty good present." Spencer also drew some $15 or $20 worth of tobacco and cigars during the cruise, which he distributed to the crew—the tobacco rather to the boys than the men. He gave Cromwell a bunch or two of cigars at one time, and also to Small. I saw him give money to small at Santa Cruz, while going ashore. I saw two silver pieces, though I could not see how much there was. I have seen Spencer give Green and Van Velcher a pound of tobacco at a time, and to others smaller amounts. I recollect no other conversation or facts that would throw any light upon the mutiny.

CROSS-EXAMINATION.

The President informed Commander MACKENZIE that he had the privilege of cross-examining the witness, by questions in writing, to be approved by the Court. He handed the following questions:

Q. Did you ever hear Cromwell speak of his wife?

A. I have. Two or three days after we were out we had a heavy gale. Cromwell came down and began to speak about friends at home. He spoke of his wife in a very light manner for a man who has just been married, at least. [The words he used indicated that he cared nothing for her chastity while he was gone.]

The Judge Advocate objected to the question, and asked why Com. Mackenzie wished to ask it.

Com. Mackenzie said it was merely to counteract any feeling of sympathy that might be sought to be drawn from his wife and family.

The Judge Advocate said that purpose was already sufficiently answered.

Q. Was it not on the occasion of your interview with Spencer on the booms, that he complained of Com. Mackenzie's treatment?

A. He did say something about it then, though I do not remember what. He said, I believe, that Capt. M. was proud of his command.

Q. Did Mr. Spencer state that the pistols alluded to in his conversation on the booms were loaded?

A. He did, and also a musket.

Q. Did you hear Mr. Spencer make any remark about dead men telling no tales?

A. I did. He said that his motto was "dead men tell no tales." He alluded to this in connection with what he said of scuttling vessels that he might capture.

Q. Was any thing said about 'small fry' and 'eating biscuit' in that conversation?

A. Yes, sir. He said that they would eat considerable, and that he would make them walk the plank; they would be useless on board. He meant the small boys—the smaller apprentices. There were some very small on board.

Q. What effect, if any, did Mr. Spencer's remark about throwing Com. Mackenzie overboard have upon the crew?

A. It rather pleased them. I saw smiles upon the faces of several of them; Cromwell and Small were among them.

Commander Mackenzie said that the officers of the Somers had been charged in the official journal, in an article supposed to have been written by the Secretary of War, with harshness and cruelty, and asked if there was no way of shewing that this was untrue? He wished to ask the witness a question concerning it.

The Court said that no notice could be taken of it.

Com. Mackenzie said that the source from which it was supposed to have come was so high that he wished to notice it.

The Court said that it must be regarded as only a newspaper report, and that it did not come within the scope of the inquiry.

The Judge Advocate thought a question might be put which would answer the purpose of Commander Mackenzie. The question, as at first handed in, was therefore modified as follows:

Q. What was the conduct of Commander Mackenzie generally during the difficulty on the Somers?

A. He appeared to labor under no fear, was humane, and did everything he could for the comfort of the prisoners.

Commander Mackenzie said he would waive these questions altogether, as he only wished to ask them to meet a particular case, which he was not allowed to do.

The following question was then allowed:

Q. During the continuance of the difficulty on board the Somers did you observe any conduct in Commander Mackenzie exhibiting unmanly fear, a despotic temper or any quality unbecoming a commanding officer and a gentleman?

A. (With much energy and decision.) NO! SIR, I did not.

Q. Judge Advocate—Did Spencer tell you where he was to cruise after turning pirate?

A. He did not. He said he would cruise wherever he could pick up the most prizes.

After making up the record of proceedings the Court adjourned till to-morrow.

FOURTH DAY.

SATURDAY, Dec. 31, 1842.

The Court met at 11 o'clock, pursuant to adjournment, and the minutes of yesterday were read by the Judge Advocate.

J. W. WALES was recalled and asked by the President whether since the adjournment he had thought of any thing material to the case which he had omitted in his testimony yesterday.

He said he omitted to mention yesterday the difference in Cromwell's treatment of the boys. When the vessel first sailed from New-York he was very tyrannical toward the apprentices, having no conversation with them, and keeping aloof from them altogether; and when called upon to inflict punishment he would strike with all his might, as though it was pleasing to him to whip them. He whipped them hard, the same as though they were men instead of boys. I have frequently heard Commander Mackenzie censure him for whipping them so hard, and he has often ordered him to stop. Just previous to our arrival at Madeira I noticed a sudden change in his manner toward the boys: he then 'made free' with them, and let them talk and play with him and pull him about. I have heard Mr. Spencer remark to the crew that Com. Mackenzie gave orders to the crew merely to see them work—that there was no necessity for taking in sail and making sail. And when he gave the tobacco, of which I spoke yesterday, to the men and boys, he would say that if Capt. Mackenzie would not let them have it *he* could accommodate them.

Cross-examination.—Commander Mackenzie desired to ask the following questions, and was allowed:

Q.—Did you ever hear Commander Mackenzie reprove Cromwell for cursing the boys?

A.—Yes, sir; I have known him several times send for him aft and reprove him in my presence.

Q.—Did you ever see Spencer give money to others than Cromwell and Small; and if so to whom?

A.—I have seen him at several times thorw money upon the deck—a shilling or so—and tell the boys to scramble for it. I can't specify to whom he gave it. Though I do not know that it would be of any interest to the Court, I will mention that Small and Cromwell have frequently told me of their having been in slavers.

The Court requested Mr. Wales to confine himself to what he knew, not to what he had heard.

The Judge Advocate said he certainly considered this evidence.

A. Did you before you replied to Mr. Spencer's catechism in the interview you had with him pause to see whether he was in earnest or not?

A. I did, sir, for some time and found him very serious indeed. Witness was allowed then to state that Cromwell and Small had frequently told him of having been in slavers. Cromwell said he had been taken in a slaver, carried to Havana and confined in the Moro Castle. He was there for some time and was finally liberated by a woman who had considerable influence with the Governor of the Island. He did not specify what kind of a vessel he was taken by.

Q. Will you from recollection repeat the oath administered to you by Spencer?

A. I can only remember that he said I was never to reveal any thing that he should tell me—"So help me God." He invoked the name of God.

Q. What was the state of the crew as to good conduct and subordination between New-York and Madeira when outward bound, and what was it afterwards?

A. Between New-York and Madeira it was very good indeed; but after we left Madeira for Santa Cruz it could be seen that dissatisfaction was arising, and it continued to increase during the whole interval up to the execution of the men. I noticed a change instantly after that. Those who had been the most surly immediately turned about.

Q. Was there any motive, so far as you know, for this discontent, arising from the treatment of the crew?

A. I think not. The treatment, after leaving Madeira, was the same as it had been before.—The same rules and regulations were enforced and the same duties were performed.

Q. Did you ever see the paper purporting to be the list of persons engaged in Spencer's plans?

A. I saw it the night it was taken out of his locker. Previous to seeing the list, I had noticed that in most of those who were found to be on the list were disorderly and disobedient before the mutiny broke out; and I had brought up one or two of them for it. At that time the Master-at Arms was sick, and I attended to his duties and had charge of the berth-deck.

Q. How soon after your interview with Mr. Spencer did you understand the mutiny was to take effect?

A. I understood that it was to be very shortly; —before our arrival at St. Thomas.

Q. Did Cromwell tell you at what time he had been in a slaver?

A. He did not, but only that he had been in one and had been taken.

The testimony was then read over and Mr. Wales was dismissed.

Lieut. GUERT GANSEVOORT called and sworn:

I was First Lieutenant on board the brig Somers. There were on board the following officers—twelve in number, viz: Commander MACKENZIE, First Lieut. Gansevoort, Dr. Lincock, Purser Heiskell, Acting Master Perry, Midshipmen Rogers, Thompson, Hayes, De Long, Tillotson, Spencer, and Mr. Oliver Perry who did Midshipman's duty.

We sailed from New-York on the 13th of Sept. and arrived at Madeira—I do not clearly remember at what date, but about the 5th of October I believe. I first heard of the mutiny on the 26th of November and Mr. Spencer was ironed on the evening of the same day—at about sundown. Cromwell and Small were arrested on the next day—the 27th. I believe, they were all executed on the 1st of December. *We arrived at St. Thomas, on the 5th of December—I think, though I am not positive.* [Commander Mackenzie said this was a mistake, and the Judge Advocate said he only wished for general dates.] In the morning at about 10 o'clock I met Mr. Wales at the fore-hatch. I was told by him that the Purser wished to see me. I went down to the ward-room and found Mr. Heiskell. He asked me if I was aware that a plot existed on board to take the vessel out of the hands of her officers and murder them all? I told him that I was not aware of any thing of the kind. He then gave to me the information that Mr. Wales had given him. He (Heis-

kell) told me that Mr. Spencer had taken Mr. Wales on the booms between the hours of 6 and 8 of the previous evening, and had there, after swearing him, made known his plot. He told him that there were twenty men concerned with him in the plan of taking the vessel out of the hands of the officers. The plan was to make a row on the forecastle in his mid-watch, and then to call Mr. Rogers to quell the disturbance. They were then to seize and throw him overboard—to go aft and enter the cabin, and murder the Commander and officers. I think that was all Mr. Heiskell told to me—so far as I can remember. I was anxious to make it known to the Commander, and did not stay to hear all he had to say. I immediately entered the cabin and mentioned the circumstances. He received it with great coolness—said that the vessel was in good discipline, and expressed his doubts as to the truth of the report. I asked him if I should see Mr. Wales myself and get the information from him. He said no—he did not wish me to do so, or to say any thing about it. He assigned no reason at this time for this, but ordered me to keep a strict look out upon Mr. Spencer and the crew generally, which I did. About dinner time I missed Mr. Spencer from the deck. This was about 2 o'clock. I discovered that he was in the fore-top, and immediately went up to see what he was about. He was sitting on the lee side of the top, with his chin resting on his breast—apparently in deep thought. He did not observe me till I had got into the top and was standing erect. He raised his head, and as soon as he discovered me got up and evinced some confusion. He asked me some questions about the rigging, and about the foremast head, which I answered in my usual manner. I think he asked how the lower shrouds answered, (which were fitted differently from any I had known,) and something about the top-mast stays. The pennant of the after shroud was fitted with a square spar. I observed to him that, as I came through the steerage, I saw dinner was ready, and asked him if he didn't dine. He said he didn't care about it just then. I came on deck and left him in the top. I should think it was about an hour after that I discovered Green in the top with him. He appeared to be engaged in pricking India ink in Spencer's arm. The crew were employed in slinging clean hammocks. I hailed the top and ordered Green to come out. Mr. Spencer put his head over the top-rail, and from his manner I thought he wished Green to remain, though he asked no question. I repeated the order, and then ordered Spencer to send Green and other men that might be in the top on deck. Green came down immediately but no others.—Spencer remained in the top. I had not ordered him to come out. I saw no others in the top. I ordered Green to sling his hammock. He answered that he had done so already. I was engaged in mustering the men for the purpose of having the hammocks stowed. When I got abreast of the Jacob's ladder on the starboard side forward, I observed Mr. Spencer sitting on the ladder. I turned my eye towards him and immediately caught his eye, which he kept staring upon me for more than a minute, *with the most infernal expression I have ever seen upon a human face. It satisfied me at once of the man's guilt.* As soon as the hammocks were stowed, I reported the circumstances to the commander, and told him that I thought something should be done, in order to secure him. He replied that we would keep a sharp look out—that he did not wish to do anything hastily: and that by evening quarters he would decide what it was best to do. I think it was just before the drum beat to quarters, that he asked me what I would do if I were in his situation as Commander of the vessel. I told him that I would bring that young man aft (alluding to Mr. Spencer) and iron him and keep him on the quarter deck. He told me that that was the course which he intended to pursue; and that he was very glad to find that I agreed with him. The drum beat to quarters, and after the officers' reports were made, he directed me to order all the officers aft except one, which I did—leaving Mr. Hayes forward on the forecastle.—When the officers had assembled aft on the starboard side of the after deck, the commander said to Mr Spencer, "I understand that you aspire to the command of this vessel. How you are to arrive at it I don't know, unless by walking over my dead body and those of my officers." I think Mr. Spencer said, "No—it's all a joke." The Commander said "It's a very serious joke, sir, and one which may cost you your life. Do you deny having had frequent conversations with Small and Cromwell?" I thought Mr. Spencer appeared confused. He said "No—it was all a joke." The Commander asked him if he had not a paper concealed in his neck-handkerchief. He replied "no."—His neck-handkerchief was then overhauled, and there was nothing found in it. The Commander then ordered me to iron him. I laid my hand upon his sword, disarmed him, and ordered him to come out from among the officers. He did so and I ordered a seaman doing the duty of armorer to bring up the irons. Mr. Spencer commenced rolling up his sleeves as if to bare his wrist, and was first put in hand-irons. When these were on I asked him if he had arms concealed about him. He said he had not, but perhaps I had better overhaul him, as he supposed I would not believe any thing he said. I searched him but found nothing except a few scraps of paper. I think the retreat was then beaten. The Commander ordered me to arm the officers of the deck with two pistols each—and, I think, with cutlasses, though I am not positive.—The officer at the forecastle had one pistol and a cutlass. The orders were, if Mr. Spencer attempted to make his escape or to communicate with any of the crew, to blow out his brains. I told Mr. Spencer these orders and the reason for doing so—that he might avoid breaking the rule.

The next day in the morning I had a conversation with some of the men—whom I suppose to be true: the Carpenter's mate Dickerson, and the Gunner's mate, King; though I am not positive that it was not the evening of Spencer's arrest. I think the Carpenter's mate said "that big fellow forward is more dangerous than the rest; he ought to be confined." I asked him whom he meant—and he said Cromwell, the Boatswain's mate. I think King was then present. I cannot recollect all the conversations I had for I was constantly passing about the ship. I am positive that Dickerson and King, in that and all other conversations I had with them, up to Cromwell's arrest, impressed me with the belief that it was necessary to have him confined; and after that they appeared to be relieved.

They said that they believed him to be dangerous and desired that he might be ironed.

The carpenter told me that once when he had made for me a single stick, he told Cromwell that he was going to put it in the Boatswain's store room. Cromwell said he should not. Dickerson said it belonged to me (witness). Cromwell answered that he "did n't care a d—n," (or something of that sort), and that it should n't go there. He put it there, however, and it was allowed to remain. As he was coming up the ladder, Cromwell said, "*I'll pay you for this before long*," or words to that effect.

In the afternoon of that day (the 27th) while sitting in the ward-room I heard the officer of the deck, Mr. Hayes or Mr. Thompson, sing out "Belay," "Belay," several times; and I think I heard the Commander repeat the order, I looked up the hatch and found main royal mast was gone. I went on deck immediately, and the Commander ordered me to take charge of the deck. In looking aloft I saw Cromwell, Small, Wilson, I think Golding, and some others, whom I had previously suspected of being engaged in the plot collected about the mast-head and in the cross trees. I think the commander observed it also. They did not appear to be very active in clearing away the wreck. Cromwell, who was generally very noisy and blustering on occasions of that sort, now said very little; I do not recollect hearing his voice. The men seemed to have gone aloft more for conversation than for work. I think I had before mentioned the suspicions of the men in reference to Cromwell. A short time after the Commander said he thought it necessary to confine Cromwell. I told him that I agreed with him, and that I believed him to be a dangerous person. My mind had been carried back to many things that had occurred before this thing was known, which I never could account for till the disclosure of this plot; such as Cromwell's absent manner. [This, however, it was thought best to omit for the present.] I was about to hail the top and order him to come down; but the commander told me to wait till he did come down, and then tell him that the Commander wished to see him.

As soon as he came upon the Jacob's ladder I cocked my pistol and pointed it at him, and when he got on deck I told him the Captain wished to see him. When he came to the Captain he was ordered to sit down. The Commander told him, in effect, that there were many suspicions about him, and that he considered it necessary to confine him. He was told by the Commander that he would be confined in the same way with Mr. Spencer, and taken home, where he would be tried by the laws of his country and acquitted if he was innocent; if guilty he would be punished. He replied, "Yes, sir; but I do n't know any thing about this; I assure you that I don't know any thing about it." Something else passed, which I do not at this time recollect. The Commander then said something to me about Small, and asked if I did not think it best to confine him. I told him I thought it was, and he then told me to order him aft. Nearly the same conversation then passed as with Cromwell. The Commander told him he would be confined as the others were, brought home and tried. Small did not deny having had conversation with Spencer. The Captain said to him, "Spencer has talked with you about the plot," in which Small acquiesced and said Yes sir. He did not deny it and made no objection to being confined. The night Spencer was confined I think Small admitted he had talked to him about the mutiny. Small was then confined in irons. All the officers were armed when Cromwell first came down from the rigging; and were stationed about the mast on different parts of the deck ready for action in case of any attack. They wore their arms afterward until their arrival here.

On the 28th or 29th, I think Wilson, McKinley, McKee and Green were confined. Wilson had had a knife in a bag, which he bought on the coast of Africa, and King told me that the night before he had kept it concealed about the guns. I came up and found King and Dickinson talking together. King said to me "*Has Wilson drawn two or three knives from the store-room lately?*" I told him none that I knew of. He said, "I heard that he had several knives in his sail-bag, and I think it would be a good plan to over-haul it; he has had his bag there at the after part of that gun where Mr. Spencer is, nearly all day, and a knife hid away in the rigging," which he thought he *intended to put into the hands of Mr. Spencer.* I overhauled the sail-bag, and found no other knife than an African dirk, very sharp, and having the appearance of having been lately sharpened. This is the knife. [It was produced; the blade was about six inches long and an inch and a half wide near the haft—sharp on both sides and pointed. It had a sheath and a bone handle.] It had the appearance of having been recently sharpened. I was told that there was another knife in the possession of Warner. That was sharp only on one side and curved on the back. I had seen it before. I ordered it brought to me and placed both in the arm-chest for safe keeping.

I think it was at the same time that I said to Dickenson, (King having left,) "What do you think of these fellows?" alluding to Spencer, Cromwell and Small. His reply was, that in his opinion "the d—d fool was on the larboard, and the d—d scoundrel (or rascal) on the starboard arm-chest." Small and Cromwell were both on the starboard side, and I said to him, "You mean Cromwell," being pretty well satisfied of the same thing in my own mind. He said, "Yes, sir, *he is the most dangerous man on board the ship.*" I recollect nothing else that happened.

I had several conversations with King, Dickenson, I think Browning, and Anderson, Captain of the forecastle; and they all thought Cromwell the *most dangerous man concerned in the plot.*—I had several conversations with them every day; and used to ask them what they saw about the vessel. They told me what they had seen—that before the affair they had seen Cromwell talking frequently with Spencer; that they were very intimate, &c. King told me that he thought there was a collection of arms in the store-room. I overhauled it but found none. I then collected all the monkey-tails, holy-stones, marling-spikes, and such things as might be used against us. They were locked up in the store-room and otherwise secured. I did not know then that any other of the crew were implicated; but I think it was King who told me that he thought all the older boys were.

After making up the record the Court adj.

FIFTH DAY.

TUESDAY, Jan. 3, 1843.

The Court met at the usual hour and was called to order by the President.

Lieut. GUERT GANSEVOORT was then recalled.

Before proceeding with his testimony, Commander Mackenzie requested of the Court that the witnesses in the case might for the present be kept separate from the crew of the North Carolina and suggested that they be kept on board the Somers until called for.

The President replied that the officers and crew of the Somers, who would be witnesses in this case were now under command of Capt. Mackenzie as Commander of the Somers, and that his request would be submitted to Com. JONES, as his Commanding Officer.

His request was granted, the Court saying that the witnesses had been brought on board the North Carolina that they might be at hand as soon as wanted. Com. Mackenzie then handed to the Court a communication of which the following is the substance:

May it please the Court,—As in all the mutinies that are on record it appears that they have been provoked by gross tyranny on the part of the commanding officers, it seems proper that I should be allowed to show that no such circumstances existed in this case. The mutiny on board the British frigate Hermione, during the French Revolution, grew out of no disloyalty on the part of the mutineers, but was provoked by a long course of grievances; and although the principal offenders were executed, the grievances were afterwards redressed by the action of the proper Court.—The mutiny grew out of the systematic cruelty of the Captain, and was provoked immediately by an act of cruelty, which resulted in the death of two men. The mutiny on board the British frigate Bounty grew out of the brutality of the Captain and directly out of an insult to one of the officers. That which arose among the crew of the French frigate Medusa was provoked by the gross weakness and incapacity and want of calmness of the commanding officer. It concerns me, therefore, and my professional honor to show that there has been on board the Somers, and of every vessel I have had the honor to command, no cruelty, no disregard of the comfort or the feelings of any of the crew, no weakness, no incapacity which could provoke or encourage any of the crew to this act of mutiny. My object in this application is to state that Lieut. Charles Henry Davis, who has been for two years upon the same vessel with myself—is now in the city and on his way to Washington upon urgent public business. And my wish is to request that after the testimony of Lieut. Gansevoort is closed, Mr. Davis may be examined. ALEX. SLIDELL MACKENZIE.

The Judge Advocate said that as nothing could be done about this until Mr. Gansevoort's testimony should be closed, and as he wished to say a few words concerning the principle involved in the application, he thought the application itself should be postponed until that time. The Court assented and it was accordingly postponed.

Lieut. Gansevoort then proceeded with his testimony as follows:

On the morning of the 1st, the day on which the men were executed, Commander Mackenzie ordered me to arm all the petty officers whom I thought to be true to the flag. He had expressed a wish that they should be armed before, but not having myself full confidence in them, I had until now discouraged it. On that morning I obeyed the order and armed the petty officers that were true; there were seven of them. The Commander ordered me, after they were armed, to report to him. He then addressed them and gave them their orders. I had no means of telling whether the officers were true or not except by judging from my conversation with them, and this in a great measure removed my suspicions that they were not true. The orders of Com. Mackenzie to the officers, as near as I can recollect, were that if they saw an attempt made to rescue the prisoners, to blow out the brains of both the prisoners and those making the attempt; if they saw the prisoners forward of the mainmast and in communication with the crew, they were to destroy them; they were to keep a watchful eye upon the crew, and if they saw any mutinous attempt they were to use their arms upon them. He then ordered them forward. I forgot to mention that a letter was addressed by Commander Mackenzie to the officers and sent the day before, the 30th, ordering us to give him our opinion as to the guilt of Spencer, Cromwell and Small and as to the best course to be pursued. We collected in the ward-room where we spent the day in examining witnesses. It was at about 6 o'clock, I think, that the Commander ordered me to break up the Council, as he considered the vessel in danger and wished to show a force about the decks. In examining the witnesses I administered an oath of which I have a copy, and took down the testimony as they proceeded. After hearing them read three of those who could write signed the depositions—those who could not, made their marks. The original minutes are in the hands of Mr. Heiskell, the copies are in the possession of Com. Mackenzie. [The papers alluded to were then sent for.] Commander Mackenzie intimated that the danger he apprehended was from the crew, not from the elements.

The investigation was continued on the next morning at about 9 o'clock, I believe. On the previous day we examined eight or nine of the crew I believe. Most of them were petty officers: some from among the apprentices whom I suspected to be concerned in the plot. The Commander was exceedingly anxious to know the result of the investigation, which occupied not a great while the next day. I was not present during the whole of it, it being necessary for me to be on deck. The witnesses examined on the second day were not the same as had been on the day previous. As soon as the Council came to a decision, I repeated the result to the commander, telling him that I would hand it to him in writing as soon as it was published. I told him what opinion we had come to, and that it was unanimous. He expressed a wish that the letter we were drawing up should be put immediately into his hands. There was considerable delay from mistakes made in copying. When it was done I handed it to him. He read it and showed it to Midshipman Spencer. The Commander has the original letter. [Commander Mackenzie here left to produce the letter, and proceedings were suspended until his return. The original letter addressed to the officers by Com. Mackenzie was then produced, as was also the original of the answer. Both these letters were read, and have been already published.] I went forward to my duty and left the Commander in conversation with Mr. Spencer. I was not near enough to hear the reply which Mr. Spencer made to Com. Mackenzie's remarks. When I saw them again Mr. Spencer had a Bible in his hand and the Commander was seated near him with a paper upon which he appeared to be writing. I did not hear the conversation then. The Commander had detailed the different men who were to take the men under the main yard, on which they were to be executed. He told me that the two of the highest rank were to

take Mr. Spencer. Just before he had ordered me to take the men there; then I applied to him for permission to take leave of Mr. Spencer. He gave me permission. I went up to Mr. Spencer, who took my hand in both of his, and begged me very earnestly to forgive him for the many injuries he had done me. He said he did not object to the sentence—he thought it was right and that his punishment was just. He said that he deserved death but did not like the way which the Commander had chosen to put him to death; or words to that effect; and added that he should have been glad to have a longer time to prepare. They were then taken to the gangway; Mr. Spencer and Small in the starboard gangway and Cromwell in the larboard. While I was standing in the gangway near Small he asked me if I would bid him good-bye, and if I would forgive him. He told me that he was guilty and deserved his punishment. I think the Commander said to him "Small, what have *I* done to you that you won't bid me good-bye?" Small replied "I did not know that you would bid a poor *bugger* like me good-bye sir." I think the Commander asked him if he had ever treated him badly or something to that effect and told him that he was sorry he had to take the course he did but that the honor of the flag and the safety of the crew required it—or something to that amount. To which Small replied "*Yes, sir, and I honor you for it; God bless that flag!*"

Mr. Spencer then asked Small if he wouldn't forgive him. Small replied "Ah Mr. Spencer that's a hard thing for me to do. For you brought me to this." The Commander said "Forgive him Small; don't go out of the world with any hard feelings in your heart." I did not hear Small's reply, but went over to the other side of the deck.

Cromwell was sitting on the hammock cloths with the whip around his neck. I bade him goodbye. He asked me to forgive him, and seized my hand, grasping it very violently. He said that he was innocent, and hoped that we'd find it out before six months; or words to that effect. I then went over into the starboard gangway again, and Mr. Spencer called to me. Mr. Spencer said, as near as I can recollect—"You may have heard that I am a coward, and *you* may think that I'm not a brave man. You can judge for yourself whether I die like a coward or a brave man." At this time I was sitting in the gangway. I stepped down the ladder, and Small asked permission to address the crew. The Commander gave permission, and he said:

"Mess-mates and Ship-mates!—I am no pirate. I never murdered any body, but I only said *I would*. Now see what words will do. Take warning by me." He said that his punishment was a just one; that he did not object to it; it was all right. He said something else, which, though I heard his voice, I did not understand. Mr. Spencer had asked permission to give the order to fire the gun. The Commander gave him permission to do so. I heard Small tell Spencer after his speech, that he was all ready. Mr. Spencer afterwards told Browning, the Boatswain's mate, who was holding him in the gangway that he had not power to give the order, and wished the Commander to give it. The Commander immediately gave the order, '*fire*,' or '*stand by—fire*'—I forget which. I sung out '*whip*,' and the men were run up the main yard; the whips were belayed, and the order given to pipe down and pipe to dinner. Previous to the men going to dinner the Commander asked how I thought it would do to give three cheers; I told him I thought it would do well, as it would be easy perhaps to tell from that among those who were left who were wrong and who were right.—When the men assembled aft he told them to give three cheers for the American flag, which they did, and hearty ones they were.

They then went to dinner, and after the prisoners had hung about an hour the Commander ordered me to deliver them over to their respective messmates and have them decently laid out. After they were laid out, the Commander and myself walked round and inspected them. They were afterwards sewed up in hammocks, and Mr. Spencer laid in a coffin which had been made from two mess-chests. They were buried by candle light—on the second day watch—at about 7 I should think, when it was so dark that you could not read print. It had been squally in the afternoon, and we had covered the bodies over with tarpaulin.

I omitted a conversation I had with Small—on the 30th, I think—in the morning. I said to him—"Small, you see we have taken more prisoners." This was after McKinley and Green were ironed. I asked—"Do you know of any others that are at large from whom we may apprehend danger?" He said that was a "hard thing for him to say." I then asked him if Cromwell was not engaged with Mr. Spencer in this plot. He replied—"That's a hard thing for me to say, Sir:" and added that they were intimate together, and he had seen Spencer give Cromwell more money than *he'd* like to give him or lend him, either. I said to him—"That's not the thing: I want a plain answer to a plain question. Is not Cromwell deeply engaged with Mr. Spencer in this plot of Spencer's to take the vessel out of the hands of the officers?" He replied—"If any body aboard of the brig is, *he* is, Sir." I said I thought so—and remained a few moments by his side. He made no farther communication about it. At this time, Wilson, McKinley, McKee and Green, besides Spencer, Cromwell and Small were in confinement.

I also omitted a conversation I had with Mr. Spencer some time after he was confined, two or three days after, I think. He told me that he wished to have a conversation with me. I told him that I was ready to hear it. He said his mind was not then in a proper state to talk about it. I asked him if he would send for me when he was disposed to hold any conversation. He said he would. The next morning I went to him at about 10 o'clock, and asked him if he was ready to converse with me. He commenced by saying that he had formed this plot on board of every vessel he had been in—both in the John Adams and in the Potomac. He said he knew that it would get him into difficulty—that he had tried to break himself of it—but it was impossible: *it was a mania with him*. I think he wished me to mention it to the Commander. I did so—though I think not immediately. I am not positive how soon after.

Judge Advocate.—Was there any change in the conduct of the crew after the execution from what it had been before?

Ans. There was, sir. I think orders were obeyed with more alacrity; and there was less

sullenness than there had been before in the manner of some of the men.

Judge Adv. What were those things to which you said your mind was carried back when you spoke of Cromwell's arrest?

Ans. I alluded to things which had occurred as far back as Madeira when no one but myself, Mr. Spencer, Cromwell and Wales were on board.—There was a good deal of work to be done—getting in water, provisions, &c. Cromwell was grumbling about the amount of duty required. I heard him say that "it was d—d hard usage:" he said that to the crew. He did not appear to drive on the duty and assist in carrying out my orders as he had done before. He would repeat my orders and then stand on the forecastle without making any attempt to see them executed: he would do nothing more than repeat what I said to him.

At another time, between Madeira and Mesurado, I observed an absent manner in him. He was sitting near the forecastle; I called to him three or four times, to order him to pipe the bags down. He got up very lasily, with a pipe in his mouth. His manner was disrespectful, and he merely ordered the bags piped down, letting his own bag remain on deck. He would often go into the most violent fits of rage from some small matter, and at times used most outrageous and blasphemous language toward the boys. I recollect one night while hauling down the head sails, the lacings got jammed in the stays. He said "G—d d—n the jib and stay and the d—d fool that invented it," or something like that. I reproved him severely for this; he knew that the Commander had caused it to be so fitted, as I had told him of it before. When I reproved him for this and other offences, his manner was sullen. Such instances were continually occurring—all of which it is impossible for me to recollect. A change of manner on board ship is very easily observed, and I had observed it in this case, but could not trace it to any cause until I was told that there was a mutiny on board, and then my mind turned back to many instances which had occurred.

Judge Adv —Was there any change observable by you in the conduct of any others of the crew?

Ans.—I had observed seaman Small and the steerage cook Gallia frequently talking together in Spanish; and carelessness on the part of Small about doing his duty. On some part of the passage, a sheet was carried away. The yard was clewed down, and the Commander ordered me to shift the halyards end for end. Small, Godfrey, Goldeman and Sullivan were then doing duty. I ordered them to make the necessary changes, but they were lazy while about it, and I finally had to go aloft myself. I found they had done the work in such a slovenly manner that I had to do it all over. The manner of all except Geofrey was very stiff and disrespectful.

Judge Adv.—Had you observed any change in the general conduct of the crew—and at what time did it take place?

Ans.—Before we reached Madeira their conduct was very good, but after leaving there the crew were very slack, and I had frequently to drive them to their work. They would frequently disobey small orders, such as putting clothes away, &c., and this continued to increase up to the day of execution. Before, if I told them to put away an article of clothing they would do it readily; after that they paid no attention to it.

Judge Adv.—At the time of the execution how far were you from St. Thomas?

Ans.—I am not positive but think that it was five or six hundred miles.

Judge Adv —Have you mentioned all the conversations you had with King and Dickerson?

Ans.—No, sir; but all I can recollect.

Judge Adv.—After their arrest what circumstances led you to think a rescue was intended?

Ans.—The men whose names were in the paper found in Spencer's locker, were McKinly, McKee, Green, Goldeman and Sullivan, and some others I do not recollect I had seen looks passing between Mr. Spencer and McKee, McKinly. Mr. Wales reported to me one morning that Mr Spencer was exercising his hands upon a battle-axe, as if for the purpose of using it. I immediately went upon deck and saw him have hold of the axe, moving it up and down, apparently to see what use he could make of it with his irons on; Wilson's having concealed the knife I have mentioned was also a suspicious circumstance. Mr. Wales, I think, mentioned Wilson's having been about the launch, and McKinly's having his hand upon a handspike as if they were looking about for some weapon. His manner was so threatening as to induce Mr. Wales to cock his pistol and keep it upon him.

Judge Adv.—Was the conduct of the rest of the crew after the arrest of Spencer, Cromwell and Small, improved or otherwise.

A. Otherwise, decidedly; and from them I drew my conclusion that a rescue was intended. They continually hovered about the mainmast, collecting in knots and talking together on the forecastle and in gangways, and often separating on my appearance; and never talking so that I could hear. So far as I could judge it *was and is my firm belief that an attack and a rescue were intended*

Judge Advocate. How was the top-gallant mast carried away on the occasion you allude to?

A. I was in the ward-room and did not see it. Mr. Hays or Mr. Thompson was officer of the deck.

Judge Advocate. Cromwell asked you to forgive him. Did he specify for what he asked your forgiveness?

A. He did not.

Judge Adv. Have you the list that was taken from Spencer's locker, and were you present when it was found?

A. I was present when it was taken. It was found on the night when Spencer was confined; in his locker, contained in a paper looking-glass case furnished with a drawer was a razor-case which I opened and saw inside such a piece of paper as comes around razors and inside of that paper was the list. No razor was in the case. I should think the razor-case shown was the one. [The list was here produced.] This was the list found in the case. [The names were in Greek characters.]—Mr. Spencer had told me that he had an alphabet of his own which no one else could read. I showed the list to the Commander immediately, but not to Mr. Spencer till some days after. I had previously told Mr. Spencer that these papers had been found. He answered that he presumed so. A smaller piece of paper, with several names written on it, among them Roberts, was found in the

case; but as none of the names were those of officers on board, I thought it had no connection with the matter. I showed these papers to Mr. Spencer on the 30th, I think. He then read off the names in English, and Mr. Delong took down the names as he read them off. I recollect nothing else that would throw any light upon this inquiry.

Cross-examined.—Capt. MACKENZIE proposed to Mr. Gansevoort the following questions:

Question.—Was there or was there not a written routine of duty to be carried on on board of the Somers, and did or did it not forbid the use of tobacco by the apprentices, and were not the officers ordered to copy their routine into their journals?

Ans.—There was such a notice, and I gave the order from the commander to have it copied into the watch-bills of the officers. A copy was in the watch-bill that was kept on deck, for the use of the officers of the deck.

Ques.—Did not a number of the crew in one watch break their liberty at Santa Cruz, and thus prevent others from going ashore, and were there not among them those whose names were on Spencer's list?

Ans.—Some did break their liberty, and among them were McKinly and Green, whose names I believe were found on the list.

Ques.—Was there any bright work about the Somers, except the arms and the fixtures of the guns necessary to be kept bright?

Ans.—None that I know of.

Ques.—After the discovery of the intended mutiny and before the examination of the ringleaders, was the Somers in a condition to go into action with any prospect of sustaining the honor of the American flag?

Ans.—No, sir, I do not think she was, and I should have been very sorry to have had her make the attempt.

Q. From what you observed and knew of the spirit and feelings of the crew and of the progress of the mutiny up to the time of the execution of the ringleaders, did you then, or do you now believe that the Somers could, or could not have been safely brought into port unless the ringleaders were executed?

A. I did believe that she could not have been otherwise brought into port, and I do believe so now. I think she never could have reached port in the hands of her Officers, if the execution had not taken place. I thought so then; I think so now.

Q. Did you distinctly recollect that the Commander gave orders to blow Mr. Spencer's brains out, or to put him to death, if any rescue was attempted?

A. The language I used was my own. The Commander's orders were to *destroy them*—to put them to death. He did not tell me to give the order to *blow out their brains.* But I passed the order in that form because these were young Officers, and if an attempt were made to rescue the prisoners I felt the importance of putting them to death. I thought that if the shot was wasted, and the prisoners only wounded and taken forward, this might excite and drive on the mutineers to the accomplishment of their purpose. My object was to have them killed at once that those who were attempting the rescue might see it and be deterred from their object. My purpose was to save shot—(as we had none to waste,) and at once to destroy the dangerous persons.

Q. Did you see in the Commander or any of the officers of the Somers, during the difficulties, any traces of unmanly fear, of a despotic temper, or any qualities unbecoming an American officer?

A. I saw nothing of the kind. The conduct of the Commander throughout the whole was of the most unexceptionable character, and I consider the country fortunate in having had such a Commander, a man of so much decision, at such a time and under such circumstances of responsibility and danger as then existed. Too much praise cannot be awarded to all the officers.

Q. After the confinement of Spencer and before the execution did you meet any vessels?

A. My impression is that we did not.

Lieut. G. was then dismissed, and after making up the record the Court adjourned.

SIXTH DAY.

WEDNESDAY, Jan. 4, 1843.

The Court assembled at the usual hour, and the record of the preceding day was read by the Judge Advocate.

Some sealed letters were handed into Court by Captain Gregory, found on the person of Waltham, one of the suspected persons. Waltham, it was stated, said that they were letters handed to him by persons in Liberia, addressed to their friends in this country. The Court decided that they had nothing to do with them, and they were ordered to be forwarded to their destination.

M. C. PERRY was then called, and sworn. He testified as follows:

I was on board the Somers on her late cruise, in the capacity of Acting Master. The discipline on board, after leaving Madeira, was good until reaching Porto Praya—after which time, until the execution of Midshipman Spencer, it was not so good. The elder portion of the crew were surly and morose in their manner. Orders had to be repeated several times before they were obeyed. There was a marked difference in their manner—though it is not easy to describe it. It daily grew worse until the execution. I first heard of the intended mutiny immediately after evening quarters on the 26th of November. I was told of it by Midshipman Rogers, of whom I had made inquiry.—This was on the same evening that Spencer was arrested, and while they were putting the irons upon him. The Log-Book of the vessel is under my charge. [The Log-Book was here produced.] This book contains a true and faithful account of the occurrences of that voyage, so far as I know. Nearly all the entries are in my hand-writing—all those since the 26th November. They were entered at the end of each sea-day. The book has not been out of my possession, nor have any alterations been made in it, since that time. On the evening of the 26th, the Commander ordered me to take the wheel—which I did, and then saw all the officers coming aft except Mr. Hayes. I then saw the Commander address Mr. Spencer, though I heard nothing of what he said. Mr. Gansevoort took his sword from him and brought him aft, close by my side. Mr. Spencer said—"I don't remember what I told him—in fact, I cannot tell," or words to that effect—though I did not hear the question to which this was an answer. Small and Mr. Wales were brought aft and questioned by

the Commander separately. When the retreat was beaten, I gave up the wheel to one of the crew, and asked Midshipman Rogers what was the matter. He told me, and I went below and conversed with Mr. Wales on the subject, and understood that the Commander did not know of the paper in Spencer's handkerchief. I went on deck and told him of it. I then relieved the officer of the deck, as my watch came on, and received a brace of pistols and a cutlass, with orders to put the prisoner to death if he made the least attempt to escape, or any one who should attempt his rescue. These orders were passed to me by the officer of the deck, Mr. Hayes or Mr. Thompson, I forget which.

At the end of my watch I was relieved and received orders to be constantly about the vessel.—The next day in the afternoon the main top gallant mast was carried away at the upper part of the sheave-hole of the top gallant yard rope. Mr. Spencer alone was then in confinement. I was in the ward room and merely saw the mast carried away through the sky-light. I went forward and let go the main weather top gallant brace. I noticed that Wilson, Cromwell and Small were aloft, and I thought then that it was very singular that Wilson should be there, as he was no sailor and was then doing nothing. I soon went below again. I do not know how the mast was carried away.—Mr. Gansevoort soon came below and gave me a pistol and ordered me on deck to take my station in the starboard gangway: and to shoot down any persons who should attempt a rescue, as he was going to confine Cromwell. I remained on deck until about 9 o'clock, and saw Cromwell and Small in confinement. After this each officer had two pistols, a cutlass and cartouch box with orders to shoot any of the prisoners if they were seen forward of the mainmast. On the 28th Mr. Ganseveort asked me if I thought it safe to take any more prisoners, and whether, if necessary to do so, Spencer, Cromwell and Small ought first to be disposed of. I came to the conclusion that the officers could not take care of any more than the first three, and if they had to take any more prisoners the safety of the vessel required that the first three should be put to death.

On the 30th, in the forenoon, Wilson, McKinley, Greene and McKee were confined in double irons, on suspicion of being concerned in the mutiny.—The Commander soon after addressed a letter to the ward-room officers and the midshipmen, requesting their opinions as to the proper disposal of Spencer, Cromwell and Small. The officers met in the ward-room, and spent the day till dusk in examining witnesses—when the Commander sent down word that he wished the officers to be moving about the vessel. During the night I was in the Commander's watch, and had orders to shoot down any of the prisoners who should be seen forward, and to see that every body was quiet. The officers kept watch and watch through the night—the Commander having the first and the morning watches. About 9 of the 1st I took charge of the deck, and remained there till the other officers had made up their opinion, when I was relieved, went below, and coincided in their opinion, which was the same that I had expressed before. I went on deck and took charge of the forecastle. I heard the Commander tell Cromwell that he allowed him ten minutes to live, and that he should then hang him to the main yard-arm. Cromwell said "I am innocent—Lord of the Universe look down upon me!" I went forward to my station. The whips were taken aloft and secured, two to the starboard yard-arm and one to the larboard. In about an hour I saw the prisoners brought forward to the gangway. I then saw Spencer and Small speaking to each other, but heard nothing. They were then lifted on the hammock netting and the ropes secured to their necks. The Commander then told me that Mr. Spencer would give the order to fire the gun, and directed me to have live coals at hand in case the match should not go, and also to make the crew clap on with both hands to the whips. I obeyed all these orders, and told the crew not to let go, but when they got forward to stand still and hold the rope till ordered to belay. The Commander soon after called out "*Stand by.*" I took the apron off the gun—drew a pistol and cocked it thinking that some of the crew would attempt a rescue. He then gave the order "fire." The gun was fired, the prisoners run to the yard-arm, and the ensign and pennant hoisted. All hands were called to cheer ship, and three hearty cheers were given to the American flag. They were then piped down and piped to dinner.—In about an hour the watch were called, and orders given to lay out the dead for burial. This was done, and at 6 o'clock that evening all the lanterns were lighted and distributed. I was ordered to see that the crew had their prayer books and responded. The dead were buried according to the Episcopal forms—all hands were piped down and the watch called. The same orders were passed respecting the four prisoners that were left, as had been before concerning the three. Nothing more happened till we arrived in the United States.

Previous to the arrest of Spencer, I heard Mr. Rogers report Green disobedient several times. There was a great falling off in the discipline previous to the arrest: parties of the crew mustered together in different parts of the ship. Mr. Spencer's familiarity with those suspected and his keeping aloof from his messmates were also noticed. Mr. Spencer did not mess with me. I had heard him make no declaration concerning the intended mutiny. I knew of his giving Small tobacco. This familiarity was chiefly with Cromwell, Green, Warner, and Small, and others whom I do not remember. He was continually laughing and joking with them in a manner not usual with officers. This had attracted my notice before the arrest. A short time before he was often sitting on the forecastle having marks pricked in his arms and breast. I sometimes spoke to him about it in an indirect way, to which he only replied that he meant to have it done, though perhaps he should be sorry for it. He seemed surly towards his messmates and smiling to the men. I never heard from him, Cromwell, or Small any declarations as to their intentions. The evidence before the council, Green's familiarity with Spencer, Wilson's being so much about the mainmast, and his disposition to speak to the prisoners, led to their confinement, as did also the fact that their names were upon Spencer's paper, with those of McKinley and McKee. I had seen no acts of insubordination in McKinley and McKee.

After the prisoners were confined, I was led to believe that a rescue was intended by the facts that those whose names were upon Spencer's paper were continually about the main-mast in sight of

the prisoners, and collected in knots about the vessel; that they did not obey their orders with the same alarcity as previous to the arrest of Mr. Spencer; and by the general disposition of those found upon the paper. The carrying away of the mast also added to my suspicion. When I had charge of the deck, moreover, in the first watch of the 29th, *the boom tackle was carried away, and in a moment a great many persons appeared to rush aft.* I immediately told the boy at the wheel to get hold of the weather-sheet. I picked out two or three of the best and most trusty seamen to stay, and ordered the rest to go forward. *They did not seem disposed to go.* They did not move. I repeated to order and I walked forward. The commander coming on deck at the time, they left the quarter deck. It was then quite dark. I saw the indiscribable manner to which I have before alluded. *I should think fifteen or eighteen men rushed aft,* though there was no necessity for more than three or four. Of those who rushed aft some mene I considered trusty. The order I gave was "Some of you, come aft."

When the men were collected in knots, they never permitted me to hear what they were saying, though sometimes they would speak up loudly upon some other subject. Their manner on such occasions was very unusual. Four was the largest number I ever saw together. These were the circumstances that led me to believe a rescue would be attempted.

After the arrest and before the execution, the insubordination, so far I could judge, *was on the increase.* It grew worse daily,—and after the execution the change was very marked: the discipline was then as good as I had ever seen it. After the arrest and before the execution we met a French brig. I saw her myself; she was half a cable's length off, I should think. We boarded her; she was a merchant brig. This was on the morning of the 28th, civil time.

QUESTIONS BY COMMANDER MACKENZIE.

Q. When the braces were carried away, and you ordered a few men to go aft, was it easy to get even a few to go aft?

A. It was not easy, and on this occasion more came than were wanted.

Q. Did you ever hear me reprimand Cromwell for striking the boys too hard, or for cursing them?

A. I do not remember.

Q. Was the duty of the Somers conducted with regularity—did we fire at targets with great guns and exercise with the broad sword, &c., and was the Somers in an effective condition?

Ans. We did, and the vessel was in an effective condition.

Ques. Was attention paid to health and general education?

Ans. Yes sir; more than I had ever seen on any other occasion. I know of no navy regulations which were not perpetually enforced on board the Somers.

Ques. Do you know of any place on board the Somers where three prisoners could be kept in safety beyond the reach of rescue from the crew?

Ans. I do not, sir.

Ques. At the time of the execution did you, or do you now believe, that the Somers could have been brought into port if the execution had not taken place?

Ans. I did not then think so, and I have been confirmed in the opinion since. I think now that *she could not have been brought into any port* if the execution had not taken place.

Ques. Do you believe that after the arrest and before the execution the Somers was in a condition to go into action with a prospect of sustaining the honor of the American flag?

Ans. I do not think she was, on account of the crew.

Ques. Did you from the time of the arrest of Spencer till your arrival here observe in the commander or any of the other officers any evidence of unmanly fear, of a despotic temper, or of any qualities unbecoming an American officer?

Ans. I did not sir.

Question by the Court. At the time of the execution did you hear any of the conversation between the prisoners and the officers?

Ans. I did not—I was not near enough.

On reference to the log-book, Mr. Perry stated that it was on the *morning of the 20th,* and not after the confinement of the prisoners that the Somers spoke and boarded the French brig. This was previous to any knowledge of the mutiny. On the 28th a vessel was reported three points on the larboard bow as I see by the log-book, but by whom she was seen I do not know.

Mr. Perry's examination was here closed.

H. M. HEISKELL was then called.—I was Purser on board the Somers, and first heard of the intended mutiny on the morning of the 26th November, from Mr. Wales, who came into the ward-room and said to me, in a low tone, that Spencer had on the evening previous revealed to him the plan of the mutiny. The officers were all to be murdered, and he was to be appointed third officer on board, and the vessel was to be made a Pirate. He did not say much to me, as he was afraid of being seen talking to any of the officers. He wished me to make the matter known to Mr. Gansevoort. I replied that, as soon as he should come into the ward-room, I would do so. He soon came in, and I told him of it. Through the day, the communication between Mr. Gansevoort and Mr. Wales was through myself. The matter was made known to the Commander by Mr. Gansevoort. Through the day I made known to Mr. G. facts as they came to my recollection, and he repeated every thing to the Commander. In the evening, while the Doctor and myself were in the ward-room, we were called on deck, and immediately afterward Com. Mackenzie came up to Mr. Spencer and addressed him as has been already stated. Mr. Spencer acknowledged that he had aspired to the command but that it was only *in joke.* He was then placed in double irons. Three or four weeks before this I saw Spencer tear up a piece of paper in the ward-room, upon which were written secret characters—though what they were I could not tell. From remarks made then I think by Mr. Spencer himself, I knew they were secret characters, though I could not see them. The paper was about as large as half a sheet of letter paper and there were a number of lines upon it. About ten days before the plot was discovered, Mr. Spencer and myself were standing by the forward hatch, when he commenced speaking about piratical vessels; and remarked that if he were onboard of one he would cruise on the Spanish Main and would make it a rule never to chase a vessel if there was

another in sight, and (I believe) never to attack one unless he were certain of overpowering her. I think he added that he would not carry any spare spars or sails, but supply himself from the vessels that he might take, and that he would destroy all traces of the vessels taken. When he wished to retire from that line of life he said he would mislead his men when on shore by going in a contrary direction from the one he would tell them he intended to pursue. He remarked that it required money to get a vessel. I do not remember what led to this conversation.

Eight or nine days before the mutiny was disclosed, the Doctor, Mr. Spencer and myself were in the ward-room—the two first sitting at the table, I reclining on the berth. On the table was a chart of the West India Islands. Mr. Spencer began speaking to the Doctor about the Isle of Pines, and commenced searching for it on the chart. The Doctor told him that it was a place frequented by pirates, and asked if he had any acquaintance there. He made no reply. I once saw in the ward-room a picture of a schooner, of which I think the masts raked very much, though I do not remember that she had a flag. I had no conversation with Spencer, Cromwell or Small before or subsequent to the arrest; nor with any other of the crew, touching the alleged mutiny.—The crew consisted of *one hundred and twenty persons*, of whom seven were officers in the steerage, including Mr. Spencer, four in the ward-room, and the Commander. There were eight petty officers, and four rated as seamen, making twelve, nine ordinary seamen, six landsmen, and seventy-four apprentices, rated as boys, making in all one hundred and twenty. The boys were rated in three classes, according to their capacity.

I heard no declarations of Small, Spencer, or Cromwell at the time of the execution, as I stood too far off. The evidence taken before the Council of officers induced me, with Mr. Wales's statement, to unite with the opinion they gave to the Commander. The witnesses, mingling with the crew, had every opportunity to judge of their feelings and dispositions.

Between the confinement and the execution of the prisoners, the gangway and forecastle were very much crowded, so that I had difficulty in passing. This had not been so previous to the arrest, nor did I observe it after the execution.—There was a change. I had called the attention of the officer to the matter, and had requested him to have the passage kept clear.

QUESTIONS BY COMMANDER MACKENZIE.

Ques. How much tobacco, segars and soap did Mr. Spencer draw from you during the cruise?

Ans. (On reference to his book.) From Sept. 12 to Nov. 26 he drew 725 segars, 11 pounds of tobacco and four bars of soap. This was a very unusual quantity—much more than any other officer drew, except of soap.

Ques. As Purser, do you know whether the Commander took pains to see that the provisions served to the crew were of good quality; and if so, can you remember any circumstance illustrative of the fact?

Ans. I can. While at Monrovia the supply of bread was small. I found there was some hard bread to be had there, and took a sample of it to the vessel. In the afternoon I received an order from the Commander to purchase as much as one of the cutters would carry. When it came on board it was found not to be equal to the sample and was thrown overboard.

The Court said these questions were unnecessary as it was always taken for granted that every vessel was well supplied with good ratios.

Com. Mackenzie said he would be glad to show that he not only did his duty to his men, but that he also insisted that Mr. Heiskell should pay for this bad bread as it was his business to protect the Government.

Ques. As a gentleman unacquainted with the naval service, and fresh from private life, did you ever see any treatment of the crew not in perfect accordance with your sense of justice, and humane and kind as the proprieties of life required?

Ans. I never did.

Ques. Did you believe and do you now believe that the Somers could have been brought into port if the execution had not taken place?

Ans. I thought then and still think that there was *great danger every moment that those persons were on board.*

Ques. Did you observe in the commander or other officers an indication of unusual fear, a despotic temper, or of any qualities unbecoming an American officer?

Ans. No, sir.

After making up the record the Court adj.

SEVENTH DAY.

THURSDAY, Jan. 5, 1843.

The Court met pursuant to adjournment—all the members present.

The Judge Advocate having read the journal of yesterday's proceedings,

Commander Mackenzie then submitted the following request to the Court:

May it please the Court: As all the mutinies on record have been provoked by injustice towards the crews or by gross tyranny or incapacity on the part of the Commanding Officer, it concerns me to show that no such causes existed on board the Somers.

The mutinies in the British fleet during the wars of the French Revolution grew out of no disloyalty, but long continued grievances, which, although the ringleaders were executed, were afterwards solemnly redressed.

The mutiny of the Hermoine was occasioned by the systematic cruelty of her Captain, and broke forth in consequence of an act of barbarity which occasioned the death of two of his men.

The mutiny of the Bounty grew likewise out of the brutality of the Captain to both his officers and men. It was directly provoked by an outrageous insult to one of his officers.

The mutiny among the shipwrecked crew of the French Medusa was occasioned by the incapacity and want of calmness of the Commander and his officers. It therefore concerns my professional honor to prove that on board the Somers and the other vessels I have had the honor to command, there has been no cruelty, no disregard for the personal comfort or for the feelings of those under my command, none of the weakness or incapacity which might provoke insubordination, or give it encouragement to go on: no want of humanity.

This evidence is rendered more necessary by a statement having gone the rounds of the newspapers, as I am informed, that I was cruel and oppressive on board the Independence as first lieutenant and as acting Commander of the Fairfield. It has been said by the Court that it has nothing to do with what is stated in the newspapers—but the press is a great manufactory of public opinion, the fabric which it produces is of very various quality; but no American can claim to be indifferent to it. Public opinion has been let in to act upon this whole matter, and willing as I am that my whole conduct should be laid before the world, I am glad that the Court came to this decision.

I am prepared therefore to prove that as 1st lieutenant of the Independence I was opposed to punishing myself, and that all the punishments in that ship were inflicted by order of the Commodore himself until it became too irksome to him, and of his own motion he devolved the greater part of it on me; that as Commanding Officer of the Dolphin I enforced

the law of Congress which restricts the power to punish to the commander alone, and requires it to be inflicted by his order and in his presence, at a time when the practice of flogging by the first lieutenant and the officer of the deck was universal in the service, as it continued to be until the circular of Mr. Secretary Paulding, requiring the rigid observance of the law of Congress on this subject, was issued.

I am prepared to prove that both in the Dolphin and in the Fairfield I was attentive to the rights, the comfort and the happiness of my crews, and that they were eminently orderly, cheerful and contented; that both these vessels were in high order and efficient men-of-war.

As my humanity may be impeached on account of the transactions which the Court has under consideration, I am prepared to prove that when the Brazilian City of San Salvador was entered by storming by the imperial troops; and the insurgents within the town, expecting and deserving no quarters, were firing the city and resisting in every direction, I got the Dolphin under way from her anchorage near the British and French cruizers, and crossing the fire of one of the batteries and an imperial cruizer that was attacking it, brought the Dolphin to anchor under the walls of the town opposite the residence of the American Consul, received him on board with his family, and gave refuge to to all who fled on board of her from the sanguinary onset of the assailants, from the conflagration and its drunken and desperate perpetrators.

I am also prepared to prove that on the termination of the civil war in the Oriental Republic of when the Constitutional Government was overthrown and Ribera was about to enter the city of Montevideo at the head of a horde of ferocious Indians, I gave refuge on board the Dolphin to more than twenty individuals, including several high officers of state, who were deeply compromised, abandoned to the females of their family the exclusive use of my cabin, and conveyed them to a place of safety.

That in like manner in the Fairfield I withdrew from threatened death at Buenos Ayres, several individuals, compromised for political offences, and that I did this without forfeiting the favorable regard for myself and for my country, of the authorities of Buenos Ayres, conciliated by the energetic measures which I had taken to resist the attempt of the French Admiral to encroach on our neutral rights, and to extend the rights of belligerents beyond the limits assigned to them by the laws of nations.

These various facts I am prepared to prove by witnesses now in attendance on the Court, and who have urgent calls of duty at a distance from New-York. If it be the pleasure of the Court, I would be glad that these witnesses should be now examined and suffered to depart.

(Signed) ALEX. SLIDELL MACKENZIE.
Commander, U. S. N.

U. S. Ship North Carolina, January 5, 1843.

Capt. Stewart said that so far as any testimony related to occurrences on board the Somers, or as to his conduct on board that vessel, it was admissible; but no other testimony could be received by the Court, as they were restricted to an inquiry into the occurrences on board the Somers and could not travel beyond it.

The Judge Advocate said that was his opinion also, and he most fully concurred with Com. Stewart. Those witnesses of Commander Mackenzie's therefore who were not required to testify as to what occurred on board the Somers could be discharged.

EXAMINATION OF WITNESSES RESUMED.

Dr. Leecock sworn: I was on board the Somers as Passed Assistant Surgeon during her late cruise. I first heard of the intended mutiny on the evening of the 26th November, when I was called on deck at evening quarters. Commander M. then accused Mr. Spencer of an intention to seize and take the vessel out of possession of the Officers. He also accused him of having a conversion with Mr. Wales on the subject. He acknowledged that he had such a conversation with Mr. Wales, but I believe he said it was in jest.—[This witness recounted the arrest of Mr. Spencer, the carrying away of the top-gallant mast, the arming of the officers, arrest of Cromwell and Small, and also the four others—McKinly, McKee, Green and Wilson—the holding of the Council of Officers at the request of Com. Mackenzie, the proceedings before them, and the execution of Spencer, Cromwell and Small on the 1st Dec. in the same manner as previously related by the other witnesses who have been examined.] The witness said he was one of the Council who examined witnesses and we came to the conclusion that it would be eminently hazardous to attempt to carry the prisoners home, for fear of a rescue being made and the vessel siezed. I heard spencer previous to his execution ask to speak to Mr. Wales, and also ask Small to forgive him. About 2 or 3 days before Mr. Spencer was arrested, as well as I can remember, he was in the Ward-Room where Purser Heiskell and myself were. I was at the table looking over charts of the coast of Africa and the West Indies, when Spencer asked me if I knew where the Isle of Pines was. I told him it was some where on the coast of Cuba, and I believe I asked him at the time if he knew any body there, and remarked that I had heard it was a great piratical resort. Mr. Spencer made no further observation that I know of, but continued for some time looking attentively over the chart of the West Indies, and then spoke of the homeward cruise of the Potomac from Brazil. I recollect he asked Cromwell, when he was on the sick list off Cape Mercerado, if he had ever been on the coast of Africa before. I think he said he had, and he then asked what vessel he was in, and he replied *in a slaver;* and slo said he had been taken by a man of war. This was Cromwell who said so. On the morning of the 26th Nov. Small presented himself to me to go on the list, complaining of nausea and vomiting. I put him on the list and gave him some medicine. The same day Mr. Wales's evidence on Mr. Spencer's case, came to my knowledge, implicating also Small. The next morning Small again presented himself, when I saw the sick, and still complained of vomiting. From his appearance, tone of voice, and the quivering of his hand when I felt his pulse, I perceived he was laboring under manifest fear and anxiety. I then made some inquiries of persons on the deck as to whether he had been seen to vomit or throw up his food. Nobody having seen him do so, and believing he was feigning sickness, I refused to keep him on the list longer and discharged him. I do n't think the disorder he complained of would have produced the effects he showed. Nausea is apt to produce such an effect, but I had heard of his being concerned with Mr. Spencer, and I thought his tone and manner betrayed more anxiety than sickness. I asked some of these on the berth deck, I think in Small's presence, whether he had been seen to vomit. I did not ask Small who had seen him vomit. I do not know whether he took the medicine I ordered him the previous day or not. I think he was ironed the evening of the 27th. He never requested any medical aid after his arrest, and although I had my watch over the prisoners, I never saw him in want of any. I never heard any conversations, tending to show whether there was a mutiny or not on board the Somers. The grounds which induced me to form the opinion that a rescue was to be attempted, and that the execution was necessary, were, that there were a great many prisoners on the quarter-deck, and I did not know how many more were leagued with them among the crew; and also from the testimony I received from the seamen examined before the Council, who thought they were very dangerous characters. I

thought also that the men were dilatory in stirring and performing their duties during the time the whole of the prisoners were in irons on the deck. This, I think, disappeared entirely after the execution.

QUESTIONED BY CAPT. MACKENZIE.

Q. Was the Commander attentive to the comfort of the sick, and did he ever ask you to send for food from the Captain's table for those in delicate health?

A. He was uniformly attentive, and I recollect his sending food from his table to the sick.

Q. Did the Commander, in every port, ask you to make requisitions for fresh fruit for the sick and crew, and did he show a desire to save the public expense in other ways?

A. I think in every port we went he desired me to make requisitions for fresh fruit and such other articles as would administer to the comfort of the sick.

Q. Was any of the fruit thus purchased at the expense of the Hospital fund furnished to the Commander or any other officers?

A. No, sir.

Q. Do you or do you not know that the Somers was almost constantly at sea, and that by constant attention to their comfort, frequent bathing, cleanliness, and other things, the health of the crew constantly improved from the time of leaving the port of New-York till its return?

A. The health of the crew was generally good, and most of the cases were slight and trivial complaints, occasioned by bruises, &c., from a number of the boys not having been at sea before. The health of the crew was improving.

Q. Was there any unnecessary punishment on board the Somers, and was the punishment of the crew cruel or humane?

A. There was no unjust punishment, and the punishment of the crew was humane.

Q. Were efforts made to improve the boys, discourage quarreling, and make them good seamen?

A. As far as came to my knowledge.

Q. Do you believe that from the arrest of Spencer to the execution the Somers could have been taken into action with a prospect of honor to the American flag?

A. I do not.

Q. Do you believe that the Somers could have been brought into port by her officers if the execution had not taken place?

A. I think it would have been eminently hazardous—almost impossible.

Q. From the time of the arrest of Mr. Spencer till the arrival of the Somers in port did you observe that the officers exhibited any signs of unmanly fear, or of a desperate temper, or of any thing unbecoming the character of an officer and gentleman?

A. No, sir.

The testimony of the witness was then read over to him, and he retired.

Midshipman Henry Rogers, sworn.—I was senior Midshipman on board the Somers during the last cruise, and first heard of the mutiny on the 26th of November, immediately after the arrest of Mr. Spencer. At evening quarters, on going forward to report the first division, the first Lieutenant ordered me to remain on the quarter deck, and at the same time sent for all the officers on to the quarter deck but Mr. Hayes. [The witness went on to describe the arrest of Spencer, his conduct, and all the conversation which took place between him and the Captain at the time of the arrest.]—I also assisted in searching Mr. Spencer's lockers, where they found the razor-case with the paper in it, with writing in Greek characters, of words in English. This was a list of his accomplices, headed certain, doubtful, and those to be retained on board *nolens volens*. There were also three explanatory paragraphs. These the first Lieutenant took, and I shortly afterwards decyphered them for the Commander. Between 3 and 4 o'clock on the 27th, I heard the officer of the deck give the order to set the sky-sails, and shortly afterwards take them in again, when the top-gallant-mast was carried away. I went on deck, and saw Cromwell, Small, Wilson, and several others in Mr. Spencer's list, collected about the main-top-mast head. They were out of their stations, and were not usually zealous on such occasions, and it therefore struck me that they had gone aloft either for the purpose of plotting or putting in execution some previously formed plot. As soon as it became dark the First Lieutenant armed each of the officers with pistols and a cutlass and stationed me at the lee gangway, with orders to watch that rigging strictly, as he expected they would come down that way. They however came down the weather rigging, and Cromwell and Small were arrested and confined in irons as soon as they came on deck. [The witness here related the orders given respecting the security of the prisoners, as has been previously reported, as also the arrest of the four other men; the sending of the letter by Capt. Mackenzie to the officers; the assembling of the Council; examining witnesses; deliberating, and decision as to the necessity of the execution; and also the execution of the prisoners.] I saw Small addressing the crew, but did not hear what he said. I heard Cromwell call out that "he was innocent." They were buried about 7 o'clock, the funeral service being read over them. Mr. Spencer was a messmate of mine, and messed in the steerage. The day before his arrest he came up to me where I was sitting in the steerage and asked me abruptly if our chronometer was a good one. I told him I did not know, but supposed it was a very good one. He then asked me if I knew the rate of it. I replied that I did not, and he dropped the conversation. Two or three weeks previous to his arrest he was speaking of fortune-telling, and said that he could tell fortunes. I asked him if he could tell mine by examining my hand. He said he could, and having examined my hand he told me that my death would be a violent and sudden one, my life would be short, and that I would be a *gambler*. He told Midshipman Thomson and Mr. Delonde's fortunes at the same time in my presence, but I do not recollect what theirs was. He was in the habit of speaking very disrespectfully of the Commander in the sterage but was much too obsequious in his presence. I remember his saying that if the Commander should have another S to his initials, it would spell his character. I recollect his speaking very disrespectfully of the Commander at Monrovia, while going ashore in a boat in which I was. I don't recollect the words. On another occasion, shortly after leaving New-York, I was in conversation with some of the midshipmen in regard to the vessel and character of our Commander. To some observation of mine Mr. Spencer remarked, that he did not know that

he was that kind of a man. He thought he was a d—d old granny. I have observed his familiarity with the crew, and general inattention to duty. He seemed to be most familiar with Cromwell, Small, Green and McKee, and with most of those whose names I subsequently found on his list. He was frequently conversing with them when he was on duty during his watch—laughing and talking with them in a more familiar manner than became an officer or gentleman. This familiarity had attracted my attention previous to my discovery of the mutiny, and I had made observations on it to my messmates. He was on my watch, and was not attentive to the duties on deck. I frequently had to give orders several times without their being obeyed, and was often under the necessity of going forward myself to put my own orders in execution. On each occasion I generally found him either standing by himself or talking to some of the crew, On the night of the 24th, during the mid watch. the lee main top-gallant brace parted, causing the yard to swing forward. I went on the forecastle to discover whether it had parted or let go by mistake, and passed Mr. Spencer standing on the lee hen-coop conversing in an apparently familiar manner with John Brunt the lookout. I called the boy to haul in the running part of the brace that was towing overboard, when Mr. Spencer appeared to see me for the first time. He immediately got down and went to his station on the weather side of the forecastle. He afterwards asked me why I had braced the yard sharp up with the weather brace. I relate this as an instance of his familiarity to his inferiors and of his inattention to duty. He was morose and quarrelsome in his disposition, so much so that none of his messmates would have more to do with him than was unavoidable. He associated more with the crew than he did with his messmates. His manner to the crew was the same as to his messmates. I have heard Mr. Spencer make use of mutinous expressions towards his commander among the crew previous to his arrest, but I don't remember the words. The substance of what he said in the boat at Monrovia was that the commander was a d—d old humbug. I don't remember any others at the time. The discipline of the crew on our arrival at Madeira appeared to be very good. After leaving there, until the arrest of Mr. Spencer, the state of the crew was growing worse, and also till the execution. The rules and regulations were enforced in the same manner as at the commencement of the cruise. After leaving Monrovia there was a marked change in the manner of the crew for the worse. This continued till Spencer's arrest, and from that time until his execution it continued to grow worse every day. The change was very marked. The elder part of the crew would collect together in knots about the vessel, and were slow to obey the orders of the officers. Their looks were sullen. If an officer approached one of these knots, they would sometimes remain together and their tone of voice would become louder. While the prisoners were in irons I observed M'Kie standing forward, looking very intently on Mr. Spencer, apparently endeavoring to catch his eye, but seeing me he commenced skylarking with one of the boys near. I saw the last four prisoners and others who were suspected, always attend to bringing the meals to the prisoners Spencer, Cromwell and Small. I observed no other sign of any desire to communicate with the prisoners. I have observed that within a few days previous to Cromwell's arrest his manner had become more obsequious when addressing an officer, while at the same time there was a sneer upon his countenance. I had seen Wilson looking into the ward room very intently and pretending at the same time to be engaged in the sail room. The evidence given by others who were examined by the council, led me to unite in the letter to the commander recommending the execution, with all these circumstances combined.

Q. Are these the letters found in the razor case in Mr. Spencer's locker?

A. They are.

Στρλαιν	*Το βε κτπ νολενς νολενς*
Π Σπενσερ	*Στβλευ*
Ε Ανδρευς	*Slρεμελ*
Δ M'κενλυ	*Sκoll*
U'qλες	*Vαν Bρυνl*
	Sμιθ
	Uιllμορε
	Γαζελυ
Δουlφυλ	*Bλακυελλ*
Uιλλσον +	*ροδμαν*
M'κεε +	*Χλαρκ*
Uαρνορ	*Χνενλες*
Γρεεν	*Χελευν*
Γεδνευ	*Σελσορ*
Vαν Vελσορ	*Χορνεν*
Συλλιναν	*Δικενσον*
Γοδφρεy	*Θε Δοκlερ*
Γαλλια +	*Γαρρεβραvlζ*
'ουαρδ +	*Uαλl'αμ*
Uεεl - - -	*M'Xεε*
Αρμ χ'εσl - -	*M'Xενlυ*
Χαβιν - - -	*Σπενκερ* / *Sμαλλ* / *Uιλλσον*
Uαρδ ροομ - -	*Σπενκερ*
Slεεραγε - -	*Σπενκερ* / *Sμαλλ* / *Uιλλσον*

Θορε δουlφυλ, μαρκεδ + υιλλ προβαβλυ βε ινδυκεδ lo Γοιν, βεφορε θε προγεκl ις καρριεδ ινlο εκεκυlιον.

Θε ρεμαινδορ οφ θε Δουlφυλ, υιλλ προβαβλυ Γοιν υεν θε θινγ ις δονε ; ιφ νοl, θευ μυsl βε φορсεδ.

Ιφ ανυ νοl μαρκεδ δουν, υις' lo Γοιν αφlερ ιl ις δονε, υε υιλλ πιχ ουl θε βεsl ανδ διsποsε οφ θε ρεsl.

Q. Is that truly decyphered?

A. It is. This is a translation. Those marked certain are E. Spencer, Andrew, McKinley and Wales. Doubtful—Wilson ✕, McKie ✕, Warner ✕, Green ✕, Gedney ✕, Wilzer, Sullivan, Godfrey, Gullis ✕, Howard.

To be kept *nolens volens*—Sibble, Strumner,

Scott, Van Brunt, Smith, Whitmore, Gazeley, Blackman, Waltham, Rodman, Clark, Nevers, Selzer, Corning, Richardson, the Doctor, Guevan.

Those marked doubtful, with a cross opposite their names, will probably join before the plot is carried into execution. The remainder marked doubtful will probably join when the thing is done, if not they must be forced.

Any not marked down who may wish to join after the thing is done, we will pick the best out and dispose of the rest.

Wheel—McKie.

Arm chest—McKinley.

Cabin—Spencer, Small, Wilson.

Ward room—Spencer.

Steerage—Spencer, Small, Wilson.

All the names found in this list, except Andrew, were on board the Somers.

QUESTIONED BY CAPT. MACKENZIE.

Q. Have you heard the Captain reprove Cromwell for striking the boys hard and cursing them?

A. Yes. I recollect his ordering me once in the early part of the cruise to call him to the mast, where he reproved him.

Q. Did the conversation respecting Commander Mackenzie with Mr. Spencer occur about the time he wanted to get him exchanged to the Grampus?

A. I think it was after we had sailed.

Q. Did not Mr. Spencer induce you to bet about the arrival of the brig at St. Thomas?

A. He did. He said he would bet she would be in in eight days.

Q. Did you ever hear Cromwell call the wrong watch.

A. Yes I have. He has called the wrong watch to watch clothes?

Q. Was the treatment of the crew humane or cruel?

A. Humane.

Q. Was attention paid to the comfort of the crew and their exercises, &c. How will the Somers compare in this respect with other vessels?

A. Yes, sir; more so than any other I sailed in.

Q. Were not all the orders, regulations, &c. of the Navy Department strictly enforced on board the Somers?

A. They were.

Q. Was the Somers in a fit state to be carried into action with a prospect of doing honor to the American flag previous to the execution.

A. No, sir.

Q. Do you believe the Somers could have been rbought into port by her officers had the execution uot taken place?

A. No, sir, I believe she would have been a pirate on the high seas.

Q. Did you, subsequent to the discovery of the mutiny, and until the arrival of the Somers in New-York, observe in the Commander or any of the officers any indication of unmanly fear, or of a despotic temper, or of any other qualities unbecoming an officer and a gentleman?

A. No, sir.

Judge Advocate. Was there a change for the better in the subordination of the crew subsequent to the execution?

A. There was.

The testimony of the witness was then read over, and the Court adjourned.

EIGHTH DAY.

FRIDAY, Jan. 6, 1843.

Midshipman Thompson called and sworn.—I was on board the Somers during the late cruize. Previous to hearing of the mutiny I had observed the conduct of Mr. Spencer to be singular, and too familiar with the men for an officer. I have known him to send the apprentices down to his locker for tobacco. I heard him speak disrespectfully of his Commander, previous to his arrest, among the midshipmen, but not among the crew. He told my fortune, but I do not remember what it was. I heard him tell Midshipman Rogers he would die a gambler. I noticed his familiarity with the crew generally; I think he was most so with Green. Saw the arrest of Mr. Spencer and heard part of Com. Mackenzie's conversation with him. I noticed Cromwell's manner to be very singular previous to his arrest. It changed very much from what it was in the earlier part of the voyage. I sent for him one day about some duty, and when he came he fixed his eyes on me and gave me one of the most singular looks I ever saw; his whole soul seemed to be in his countenance. It continued until I had told him what I had to say, and he then appeared to be relieved. I noticed that Small was surly previous to his arrest. I heard nothing that was said at the execution, except Cromwell say he was innocent. Mr. Spencer, on the passage between Madeira and Porto Praya, asked me if I did not think the Somers could be easily taken. He said a person could go in the cabin and murder the Captain without detection. He also asked me about pirates rendezvousing in the islands in the Pacific, and whether a vessel could not go in there and refit. I think Howard heard this conversation. The discipline of the crew fell off after leaving Madeira, and grew worse until the execution, when it immediately became better. I was induced to think the execution was necessary from the testimony given before the Council, the gathering of the crew in groups, their sullenness, the confident manner of the prisoners, their interchanging glances with one another, &c. When they collected in groups there were 3 or 4 in a group. Those I can mention most particularly were Sullivan, Golderman, Wilson and McKee. I am 21 years of age, and entered the service in 1837.

Questioned by Capt. Mackenzie.

Q. Did you overhear any conversation between Mr. Spencer and myself shortly before the execution?

A. I did, but I don't recollect what it was.

Q. Were you the officer of the deck when I told Cromwell he was to die, and what were the words in which I communicated it to him.

A. I was, but don't recollect what the words were. I don't recollect that he said he was to die. I heard Com'r M. say something about ten minutes; what he said before I don't know.

Q. Was there or not, in the mutinous manner of the crew by looks, manner or otherwise, an appearance such as could not be described?

A. There was.

Q. Was the treatment of the crew cruel or humane?

A. Humane.

Q. Was attention paid to the health and comfort of the crew, and to the exercises and education of the apprentices? How did the Somers compare with other vessels in which you sailed?

A. There was much attention paid, and she would compare favorably with other vessels. The exercise was as good as on the Independence, and better than in the Exploring Expedition.

Q. Do you know of any rules or regulations for the government of the Navy that were not attended to on board the Somers?

A. I know of none.

Q. Was the Somers when she sailed an efficient and well disciplined man-of-war?

A. As good as could be expected from her crew.

Q. From the arrest to the execution could the Somers have gone into action with any prospect of sustaining the honor of the American flag?

A. I don't know; for I can't tell what dependance could have been placed in the crew.

Q. Would she not have gone into action after the execution with a far greater prospect of sustaining that honor?

A. Yes, sir.

Q. Did you, at the time of the execution, believe that, if it had not taken place, the Somers could have been brought into port by her officers?

A. I did not then, and I do not now.

Q. Did you observe, from the discovery of the mutiny until your arrival here, in the Commander or any other officer any indications of unmanly fear, or despotic fear, or of any qualities unbecoming the character of an American officer?

A. No, sir.

Q. You said you heard the Commander say to Cromwell something about 10 minutes: how long, in fact, was it from that time before they were executed?

A. About an hour.

Q. Do you know of any place or apartment on board the Somers where three persons could have been kept beyond the reach of rescue from the crew?

A. No, sir.

Q. Do you recollect hearing Spencer, shortly before his arrest, say he would write no more in his journal?

A. I do not.

The testimony of the witness was read over, and he was directed to retire.

Midshipman Hays sworn.—I was on the Somers during her last cruise. I am 20 years old, and entered the service 13th March, 1838. I first heard the mutiny on the 26th November, in the evening. Previous to his arrest, on my making some casual remark to him, he said I should have occasion to remember the name of Spencer some day. He never held any conversations with me about piracies or the Isle of Pines. I never heard him make use of mutinous expressions among the crew. I have heard him speak very disrespectfully of the Commander among his mess-mates, but do n't recollect the words. I have heard him say he was a d——d humbug. His conduct previous to his arrest was, that he seldom associated with his mess-mates except at meal-times; he was morose and quarrelsome in his temper. I did not use to go forward much, and do not know of his habits of association with the crew. He was most familiar with Cromwell, Wilson, Green and McKie. I have often seen him talking with Cromwell, but I supposed it was on professional matters. I heard none of his declarations after his arrest, as my station was on the forecastle. I heard no declarations by Cromwell or Small.—I observed the manner of Cromwell particularly on the evening of Mr. Spencer's confinement. He assumed the utmost indifference as to what was going on, and gave me the impression that he knew what Mr. Spencer was confined for, while the rest of the crew were looking aft, and appeared desirous of knowing what was going on. Cromwell was on the forecastle at the time, and remained there until I ordered him below to move the iron chest. I was officer of the deck when the top-gallant-mast was carried away, on the 27th, after Spencer was confined. We had sky sails and royal studding-sails set. I think it was carried away by design, by hauling on the weather brace, instead of letting it go, as I had ordered. I do not know who hauled it in. I gave the order to *let go* the main royal weather brace, but instead of it being *let go*, it was hauled in, and the mast went about 30 seconds afterwards. It appeared to be hauled in very violently. I do not recollect who was stationed at that brace. Subsequently to the arrest of the three prisoners, I observed the men gather together in groups. I also saw Wilson watching me where I placed my pistols, when I came down off deck. I never heard the crew say any thing, but I observed they were very sullen and morose, and relaxed in their attention to duty. I observed, the evening the mast was carried away, that Cromwell, Small and Wilson were aloft on the main-topsail yard, doing nothing at all. I do not know that they had been ordered aloft, and they were out of their stations. Also, that McKinley, Green, McKee and Konerals always managed to bring the three first prisoners their dinners, as if they wanted to have conversation with them. I did not hear any such conversations, nor witness any signs pass between them. The subordination and conduct of the crew was good between New-York and Madeira. After that, there was a great falling off in the attention to duty of some of them. Up to the arrest of Mr. Spencer it grew worse, infinitely. I remarked it in Cromwell, Green, Wilson and Golderman. It indicated itself by inattention to duty, and an inclination to be disrespectful.—I did not see any material change after the arrest up to the time of the execution, except the talking in groups. I heard none of their talking. I saw them from the quarter-deck. The crew performed their duty as cheerfully as I ever saw them *after* the execution. I was one of the council of officers, and united in the letter to the Commander, advising the execution of these men. From the testimony received before that Council, I was led to believe that the efficient and greater part of the crew were leagued together to effect a rescue of the prisoners, and the fact of carrying away that mast and the general demeanor of those who were confined the day previous to the execution and of others who were out of confinement, their general manner and appearance, I was led to believe that the safety of the Somers depended upon the execution. I heard Spencer ask Small to forgive him and Small replied, "No, by G—d, I ca n't forgive you, Mr. Spencer, you have brought me to this end." The Commander then came up and told Small he had better forgive Spencer, and Small then said I do forgive you and gave him his hand. He also requested to be allowed to give the order to fire the gun, which was granted, but he afterwards declined, being unable to do so. Small also requested permission to address the ship's company, which was granted. He said, "Shipmates, take warning by my fate: I am not a pirate, I have not killed any one, this is because I said I would do so." I heard Cromwell protest his innocence about an hour or an hour and a half before he was executed. Mr. Spencer, some five or six days before his arrest, showed me the drawing of a brig with a pirate's flag. This was in the steerage. It had a black flag, with a skull and bones. Two or three days before Spencer was arrested a strange vessel was in sight and we beat to quarters and cleared for action. Cromwell said "there was a d—d sight of humbug about this vessel, he had been aboard vessels where shot was fired and there was not so much humbugging." This was addressed to some of the crew.

QUESTIONED BY CAPTAIN MACKENZIE.

Q. Was it not squally when we made the strange sail; was she not near us and had she not the appearance of a cruiser?

A. Yes, sir. We boarded her afterwards and found she was a French barque; a brig.

Q. Was not the Somers taken several times for a slaver and chased by supposed British cruisers?

A. She was.

Q. Were not preparations made to meet a night attack of boats from a supposed British cruiser which had chased us?

A. There were.

Q. Did you ever hear Mr. Spencer, when abusing the Commander, accuse him of being unjust to him or outraging his feelings; if so, what were they?

A. I have heard him say the Commander had hurt his feelings. I do not know in what way.

Q. If any particular allegation had been made, would you not have recollected?

A. No, sir, I have heard him so often.

Q. Did you observe me ever say anything to outrage Mr. Spencer's feelings?

A. Never.

Q. Whilst running down the trades was the order to keep the light braces perpetually slack given so repeatedly that all the crew must have heard it?

A. They were often given, but whether heard by the crew I cannot state.

Q. Did you derive or strengthen your opinion of the necessity of the execution from looks and appearances not to be easily described? *A.* I did.

Q. Was not the inattention to duty and surliness you observed in Wilson, Green and Golderman perceptible in a less degree in a majority of the apprentices? *A.* It was.

Q. Was the treatment of the crew cruel or humane?

A. It was humane.

Q. Was the Somers at her arrival at Madeira, a well organised and disciplined ship of war?

A. Yes.

Q. Was attention paid to the health and comfort of the crew, and to the training and education of the apprentices and attendance at school?

A. It was more so than in any other vessel I have been.

Q. Do you believe the Somers could have been brought into port had not the execution taken place?

A. I did not believe it then, nor do I now.

Q. From the arrest to the execution could the Somers have gone into action with any prospect of sustaining the honor of the American flag, and would she not have gone into action after the execution with a far better prospect of sustaining that honor?

A. To the first part "No"—to the second "Yes."

Q. Was there any place on board the Somers where three prisoners could have been kept beyond the reach of rescue from the crew?

A. No, sir; the quarter deck was the most secure place that they could be kept.

Q. Did you observe any indications of unmanly fear or of a despotic temper, or any qualities unbecoming the character of an officer in the commander or any other officer of the Somers?

A. No, sir.

The testimony of the witness was read over, and he retired.

Midshipman Dslonde, sworn—I was acting Midshipman on board the Somers during her late cruise. I am 17 years old, and have been a year in the service. I first heard of the mutiny on the 26th December. Mr. Spencer told me when we were off Cape Mesurado; he told me that he should like to have command of a brig like this—would cruise off the West Indies for slavers. I never heard him talk of pirates or piracies or the Isle of Pines, or of taking the Somers. He showed me a brig which he had painted. It was not the Somers, but an hermaphrodite brig. I don't remember whether it had any flag. The Somers is a full rigged brig. I never heard him make use of mutinous expressions against the commander. I have heard him abuse the commander; he said if he had his own way with him he would dismiss him from the service. The crew were very prompt in obeying orders and in good discipline until we reached Madeira. [This witness gave the same account of the discipline as the other witnesses.] On the 1st December at 10 o'clock I was ordered to take charge of the prisoners, and Cromwell told me to tell the officers to overlook this. I did not answer him. [The witness here described the conduct and appearance of the crew from the time of the arrest to the execution in a similar manner to the other witnesses.] I was not one of the council of officers who received testimony, and did not give in the letter to the commander, not being asked to do so.

Questioned by Captain Mackenzie—Q. Did you hear Mr. Spencer shortly previous to his arrest say he would write no more in his journal?

A. No, sir.

Q. For what reason did he say he would dismiss his commander from the service?

A. Because he had reprimanded him for neglecting his duty.

Captain Mackenzie here rose and stated to the Court that for the reasons which had induced him not to call on these young officers for their opinion on the necessity of the

execution he should decline to ask them any questions on subjects merely matters of opinion.

The testimony of the witness was read over to him and the Judge Advocate asked him if he believed, from what he saw on the vessel, that she could have been brought into port by her officers without the execution taking place; and he replied, he did not believe it then, and does not now.

John H. Tillotson, sworn.—I was acting Midshipman on the Somers during her last cruise. I am 16 years of age and have been in the service about four years. Previous to Spencer's arrest I had heard him say that he had characters to write, which nobody could understand but himself. I saw him writing on a piece of paper the night before he was taken, and he said he would not have it seen by any one on any account. I think he put it in his locker when he had done. When we were bearing down upon the brig America before our arrival at Madeira, he said he should like to have the launch full of armed men and take possession of her. I have frequently heard him call the Captain a humbug, but I don't know that it was in the presence of the crew. He was in the habit of associating more with the crew than his messmates, and have known him to give tobacco to the apprentices and segars to the men. He was most on terms with McKinly, McKee, Green, Scott, Cromwell and Small. I have seen him talking privately with Small and Cromwell. [This witness gave the same opinion as to the discipline as all the others, as also the declarations of Cromwell of his innocence and the behavior and conduct of the crew.] I know that Mr. Spencer gave liquor to Small, which he had got from Waltham, the ward-room steward. I think it was half a tumbler full. Waltham brought it from the ward-room to the steerage several times to Mr. Spencer. I have seen Spencer drink it sometimes, and I think it was the night previous to his arrest that he gave it to Small, who drank it in the steerage. I have noticed that Cromwell was very severe with the boys, but for three or four weeks before he was arrested, he was more playful with them. I recollect Mr. Spencer striking me because I did not relieve him quick enough, and I struck him back.

QUESTIONED BY CAPT. MACKENZIE.

Q. Did you hear Mr. Spencer, shortly before his arrest, say he would not write any more?

A. I did not. I noticed that he had not written in it for some time, and I spoke about it, and he said "Damn the journal."

Q. Were the Midshipmen on board the Somers required to write up their journal and send it in every Sunday?

A. They were.

Q. By Judge Advocate. From what you observed of the conduct and demeanor of the crew after the arrest and previous to the execution do you or do you not believe that the vessel could have been brought safely into port by her officers if the execution had not taken place?

A. I did not believe it could, and I do not believe it now.

The testimony of the witness was read over and he retired.

Oliver H. Perry sworn.—I was Commander's Clerk on board the Somers, and doing duty as a Midshipman. I first heard of the mutiny on the 26th Nov. Previous to Mr. Spencer's arrest, I had heard him say that he expected to command a vessel of his own shortly. I think it was about two weeks before his arrest, the First Lieutenant and myself were talking together, and Mr. Spencer said this in the presence of Mr. Gansevoort. I have also heard Mr. Spencer speak very disrespectfully of the Commander—once when going ashore at Mesurado, but I do not remember the words; another time in the steerage. While we were at Mesurado, there was an Italian slave dealer there whom Mr. Spencer went to see; there were three or four of us there; and I heard Mr. Spencer say that he had derived a deal of information from him. I saw him drawing a brig, but he never showed it to me. I think he was as intimate with the men as with his mess-mates. Cromwell, Small, McKie and Green he appeared most intimate with. He would often send McKie down to his locker to get tobacco. I know he bought a box of segars when he first came on board and gave them to be distributed among the men. [The witness gave a similar account of the discipline to that of the other witnesses.] I was on the forecastle when the top gallant mast was carried away. I saw Small and a boy—I think Van Velsor—who got hold of the main royal weather brace; they jerked it hard, belayed it very hard, and in half a minute the mast went.

QUESTIONED BY CAPT. MACKENZIE.

Q. Was Small stationed forward?

A. No, sir, he was stationed aft; he belonged to the main top.

Q. Before the occasion on which he hauled in the main brace, did you ever see him doing duty forward?

A. No, sir.

Q. Did you hear Mr. Spencer say, shortly before his arrest, that he would write no more in his journal?

A. No, sir.

Q. Did you hear Mr. Spencer, shortly before his arrest, ask whether he had been talking in his sleep, and say he had been dreaming, and would not have been heard to talk about what he had been dreaming for a great deal?

A. No, sir.

In reply to the Judge Advocate, he stated that he did no believe the Somers could have been brought safe into por without the execution having taken place.

The testimony of the witness was read over, and the witness retired.

Sergeant Gartry, sworn.—I was on board the brig Somers doing duty as master-at arms. I first heard of the mutiny on the evening of the 26th Nov.. after Mr. Spencer was confined. On the passage between Madeira and Teneriffe, I was sitting on the combings of the main hatch, and Mr. Spencer came up and asked me if I was to go ashore to do duty, would'nt I be reduced to the ranks? I told him, no, sir, unless I committed crime. He asked me then if I was not made sergeant for the purpose of going on board the brig to do duty as master-at-arms; and I told him I was. He then changed the discourse by saying she was a fine vessel. I said she was, and he said at the same time that he could take her with six men. I told him he could not do it with three times six. He said provided he knew where every thing lay as well as I did, and the keys of the arm-chest. He went on to describe how he could take her.—First he would secure the Captain and officers, then take possession of the arms, turn up the crew, and he made no doubt as soon as they saw his men in arms they would give in to him. I told him then that after the crew had been turned up they could rush on him, and before there might be 6 killed we could throw him and his 6 overboard, and that he must think us a poor crew to think he could take it with 6 men—oh no, or something like it, he muttered out as he went away. Thus ended that conversation. On or about the 6th Nov. I heard Mr. Spencer ask Cromwell how he would like to sail with him. Cromwell said he 'd like it well. That was on the forecastle. About the 20th, as I was sitting on the combings of the fore scuttle, there were a number of the crew standing by, and Cromwell in front of Mr. Spencer. They were talking about one thing or another, and the Army was introduced by some one, and I asked Mr. Spencer if it would not be better for him to go in the Army than the Navy. He told me that his father told him he would get him a Lieutenant's commission in the Dragoons; that he thought he would n't like it, and he thought he was not going to be long in the Navy. He said he was going to have a vessel of his own shortly.

The Court here adjourned.

NINTH DAY.

SATURDAY, Jan. 7, 1843.

The Court met pursuant to adjournment and proceeded with the examination of

Sergeant Garty.—I believe it was on the 19th of November, and Mr. Gansevoort had sent one of the boys to call me; I went on deck and reported myself to him, and he ordered me to take arms and load them, which was done by me and one of the gunner's mates. There were 23 muskets and 28 pistols, as near as I can recollect, loaded but not primed. Mr. Spencer asked me a few days after about the arms, whether they were all loaded. I told him they were with the exception of 6 or 7 muskets. He asked me why they were not all loaded, and I told him they would not fit in the arm chest if they were pointed all aft. He asked how they were situated in the chest, and I told him those that were loaded were pointing aft and those not loaded pointed forward. He asked me if they were all primed and I told him none of them were. He asked me the same question a day or two after I believe. I don't recollect any further conversations with Mr. Spencer till he died. On the passage between New-York and Madeira, Cromwell told me Spencer had given him $15 and requested me to keep it for him as he was afraid the boys would steal it from him. He said if there was a vessel homeward bound from Madeira he would send the money to his wife, saying that she would want the money to buy coal for the winter. He gave me the money with some other articles to keep for him. They remained in my possession till a few days before the arrest. Cromwell was then forward at the store-room bulkheads, and went forward that way, and he said, "master-at-arms, I want my glass, I want to shave," though he never shaved himself. He took the glass with the money in it, and did not asked me to take any further care of it. I saw Small and Cromwell in close conversation together, and I went aft and asked Cromwell if he knew any thing about Mr. Spencer's going to take the brig. He said not, as also did Small, whom I asked the same question. After Mr. Spencer was arrested the iron chest was taken off the berth deck into the ward-room. Mr. Gansevoort gave me the key, and told me to see that there was no clubbing on the berth-deck. This was before I observed Cromwell and Small talking.—The next morning, Mr. Gansevoort ordered me to put Waltham the ward-room steward in irons, which I did. That evening I was armed with a pair of pistols and a cutlass.—When the council was held in the ward-rooom I was examined before it and stated what I knew and gave my opinion of the situation of the brig. [The witness then detailed a part of the conversation between Mr. Spencer and Wales at the time of the execution.] I heard Cromwell say he was innocent and asked that they would tell his wife and Lieut. Morris so. [This witness gave similar testimony as to the state of discipline among the crew during the cruise as the other witnesses, both before and after the arrests and after the execution.] I was examined before the council and gave

my opinion that the brig was in a dangerous condition. I formed this opinion from the conversations with Mr. Spencer, from what I heard Spencer ask Cromwell and from Cromwell not asking me to take any further charge of the glass and money. It added to my suspicion also seeing Cromwell and Small talking on the berth-deck together on the night of Mr. Spencer's arrest. Being of opinion that Spencer could not take the brig himself, gave me also suspicions that Cromwell and Small were implicated. They were also melancholy and in bad spirits as if something laid on their minds. I gave my opinion that the brig was in danger of being taken by Spencer and his associates after the arrest. I was asked whether if they were put to death I thought the brig would be safe, and said I thought she would. I believed then and I believe now that there was danger of a rescue after Spencer, Small and Cromwell were arrested. I believe there were persons at large who would have attempted a rescue if an opportunity had occurred. If such an attempt had been made after the arming of the officers and petty officers, I believe it might have been successful in case the officers of the watch were only on deck, for the petty officers might be up aloft. The officer of the deck was all that was on deck except at times when some other officer might be up; although the crew were unarmed and the officers armed I think if a rescue had been attempted it would have been successful, as they were the strongest number. I can't name any that I think would have attempted a rescue, but on the 27th Warner said there was great work going on. I said there was no more than I thought was necessary. He made a remark that the officer of the deck was armed with three pistols and the officer of the forecastle with one. He said what would *we* do if they made a rush on them in the mid-watch. I told him I thought 13 or 14 of them would drop if they did. That was all the conversation I had with him; but it excited my suspicion.

Questioned by Captain Mackenzie.

Q. Did you or did you not infer from the remarks of Warner that the greater part of the apprentices were acquainted with the project of Mr. Spencer, and hoped to benefit by the change of administration?

The Judge Advocate objected to this question on the ground that it was not competent for the witness to give inferences which he might draw from remarks, as that was the province of the Court. Capt. M. could ask him whether there was any reasons to induce such a belief in him, and if so, then what were they?

Captain Mackenzie then proposed the following question:

Q. Were there any remarks of Warner's or others that induced you to believe the greater part of the apprentices were acquainted wi h Spencer's plot and hoped to benefit by the change of administration? If so, state what they were.

A. Warner never made any other remarks to me than those I have stated. Nor did any of the others. A number of them, however, were very great with Mr. Spencer. I think it was McKie I have heard Spencer tell to go down to his locker and get what he wanted from it.

Q. Is it your opinion from all you know or saw that a majority of the apprentices were acquainted with the plot and hoped to benefit by it?

A. I am of opinion that a number of them were, but I can't say whether a majority were.

Q. What did you observe in Wilson the night before his arrest?

A. I observed that he was quite restless in his hammock, raising up his head and looking round the decks; and I had a suspicion of him in consequence, so that every time the watch was called I turned out myself, having my sword under the blanket and my hand on the hilt of it, and so leant against the hammock. I did this every time the watch was called, because I thought there might be a rush made into the steerage when the watch was turning out. I was of opinion that if a rush was made it would be at the relieving of watches.

Q. Did Wilson mutter, or curse the brig?

A. Not that I heard.

Q. Were you not afterwards moved into the ward room to sleep, for safety?

A. On the night of the 27th I slept in the ward room.

Q. At whose suggestion was it?

A. I told Mr. Gansevoort of Wilson's behaviour, and he ordered me to take my hammock into the ward room. I left my hammock, however, but took my blankets and slept there.

Q. When you first joined the Somers did not the Commander advise you to get on with your duties with as few reports as possible?

A. Yes, sir.

Q. Did not the Commander, when reports were made to him, seem anxious to afford the delinquents an opportunity of proving their innocence? *A.* He did.

Q. Did not the crime of theft increase after leaving Madeira?

A. Yes. I only remember one case before.

Purser Hiskell recalled. Q. Have you the original of the depositions taken before the council of officers?

A. I have. I wrote this down in pencil myself at the time, and it contains the statements of the witnesses made by them at the time.

Q. Has this original continued in your possession ever since?

A. It has.

Q. Have there been any alterations made since the examination took place?

A. There has been an alteration made by Warner in his testimony. I had got something down which I could not make sense of, and I got him to tell me how to alter it, and with his permission I did so some few days after the execution. (The witness here pointed out the alteration which had been made; it related to a conversation between Wilson and Spencer.) No other alteration has been made.

[The copy being shown the witness, he said: Part of this is in the hand-writing of Mr. Wales, and part in my own; it is an accurate copy from the original, so far as copied by me. The original was submitted to Captain Mackenzie before the execution, and before he received the letter signed by the officers. The razor case in which the paper of Mr. Spencer was found, was drawn from me on the ship. It had a razor in it. I corrected some grammatical errors in the deposition of Mr. Wales with his consent, but did not make any alteration in substance. The testimony of each witness was read to him from the copy, and a third party holding the original to see that it was correctly copied.

The witness's testimony was read over to him and he retired.

J. W. Wales recalled—Part of this copy is in my handwriting, and was made by me from the original, some five or six days after the testimony was taken. I compared it and it is a true copy from the original.

Q. *By Capt. Mackenzie.* Did you ever hear Cromwell say he had served in the Florida flotilla under Lt. Mc Laughlin?

A. I can't say. It appears to me that I have. I have heard him talk about Florida.

Witness. There is one thing I neglected to state the other day: In a gale of wind between the Coast of Africa and St. Thomas, Captain Mackenzie ordered some of the boys down from aloft; they had got up part of the way when he ordered them down, as it was blowing hard, and Cromwell said the Captain was too d——d afraid of the boys, he would not allow them to go where there was any danger.

The testimony of witness was read over and he retired.

Sergeant Garty recalled, and the deposition which he made before the Council shown him, which he read. This is the testimony which I gave except that it is stated here, "on or about the 11th October;" and I think I said "between the 5th and 11th."

Q. *By Capt. Mackenzie.* Do you know why the arms were loaded on the occasion you have mentioned?

A. I don't know, except it was to be prepared for a vessel which was bearing down on us.

Q. Have you been frequently employed by my directions in exercising the men and apprentices with the musket and broadsword, and in firing at a target?

A. I have.

Q. Were you sick at the time of the discovery of the mutiny?

A. I was.

Q. Did you perform duty after that?

A. On the morning of the 27th, and afterwards, though I did not feel very well able to do so.

The testimony of the witness was read over and he retired.

Charles Stewart, sworn.—Was on board the Somers during her last cruise, and was captain of the forecastle. I did *not* hear of the mutiny on board the Somers before Mr. Spencer was arrested. I heard it from one of the officers. I had often seen Mr. Spencer talking with Cromwell previous to his arrest. They appeared to be very intimate. I have seen them talking on the forecastle and on the Jacob's ladder in a low tone of voice, so that I could not make out any of their discourse. I have been standing within five or six feet of them, and could not hear what they said, both by night and by day. I have seen them talking together a number of times, I can't say how often. I never saw Mr. Spencer show Cromwell any paper. I have seen him make him presents of money. I have not seen Spencer talking to Small to my knowledge. Spencer never said any thing to me about taking the vessel or anything of the sort, nor Cromwell, nor Small, nor any one on board. Discipline was very good till arrival at Madeira. After leaving Madeira something very extraordinary occurred with regard to the conduct of the crew—it was not so good as before. Some looked very sullen. They were very slack in obeying orders. After the arrest and before the execution they used to stand three and four in number together, but I don't know what they were talking about. They spoke low. There were more than one group at a time about the deck. We had not liberty to go to the galley and get coffee when we wanted it. The cook would sometimes give it to us if we asked him. I have often seen him give it to Cromwell; I always saw him get it. I was sworn and made a statement before the council of officers on board the Somers. The opinion I gave before that council was that the *vessel was not safe* while the prisoners Cromwell, Small and Spencer were on board. My reasons were because of the number of men confined and the few men there were on board the vessel to guard them. There must have been more of the crew than those arrested who had something to do with it, but I cannot say who they were. I never heard either Spencer, Cromwell or Small say anything about their concern in the mutiny. Cromwell attempted at the time of ex

ecution to jump overboard two or three times previous to the rope being put round his neck. I was his guard. I heard him plead innocence.

The deposition made by the witness before the Council was read over to him and he said that it was correct.

Questioned by Captain Mackenzie.

Q. Did Spencer ever say to you, Charley will you have a drink?

A. He gave me a glass of grog (brandy) for lending him my bed or mattress when he had lost his overboard and for scrubbing a pair of pantaloons for him.

Q. Was grog served out on board the Somers to the men?

A. No sir, no liquor whatever. I knew that from Captain Mackenzie before I shipped on board her.

Q. Did Mr. Spencer ever ask you if you had ever been in a slaver? A. No, sir.

Q. What sort of usage had you on board the vessel—was it worse than on board other vessels?

A. It was good—better than I had on board other vessels.

Q. How often have all hands been called in the night to shorten sail or make sail.

Commodore Jones said that he thought this course of examination was entirely unnecessary and only lengthened the proceedings.

The Judge Advocate coincided with this, but said he did not know how to object to it. The subject of the question was embraced in the general question as to the treatment of the crew, and he thought it totally unnecessary.

Captain Mackenzie said if the witness answered the question it would show that it never had been the case, and would disprove the charge that any cruelty or harshness had been used by him towards the crew.

After some further remarks from the Judge Advocate and Commodore Jones, the question was withdrawn.

The testimony of the witness was read over and he retired.

Charles Rogers, sworn—I was on board the Somers during her last cruise as Quarter-Master. The first I heard of the mutiny was on the night Mr. Spencer was confined. Before we got to the coast of Africa Mr. Spencer said to me that he wished he had the launch and ten such men as he could pick out from the crew, and he would make his fortune. This was when a brig was bearing down towards them. I said, then I think your intent on must be for taking the brig which was in sight, and he said yes. I told him it would be hard to find ten men of the crew to take that vessel. He said yes, he could find ten men, and then mentioned the names of some of the crew and asked my opinion about them. Some of the names were Wilson and Cavanaugh, and McKinley and Green; that was all at that time. One night he asked me if I had been in a slaver, and I told him no. It was one calm night on the passage from Cape de Verde Islands to the coast of Africa. Spencer was very intimate with Cromwell; more so than I ever saw an officer with any of the crew before. I was on deck when the boom tackle was carried away, and the men rushed aft, but I did not hear any thing, as I was too far aft. Cromwell and Small were the only ones of the crew that understood navigation, so far as I know. Cromwell told me that Spencer had given him $15. I was examined before the Council and gave my opinion that it would not be very safe to try to come to America with all the prisoners on board. We had but few men, and the small boys would be a good many of them on the sick list as the cold weather was coming on, while, so far as I could understand, most all the older boys were engaged in the plot. I thought the older boys were engaged in the plot because I heard from Mr. Gansevoort that most of their names were found on Mr. Spencer's list as going to join him. I had not seen any thing in their behavior myself to lead me to such an opinion, on account of my being most of the time aft, and not associated much with the boys. I do not believe that the Somers could have been brought safely into port if those men had not been executed. I thought so then and think so now.

The witness's testimony, as recorded by the counsel, was read over to him, and he said it was correct.

Witness further said, in answer to the Judge Advocate's questions:—I saw Mr. Spencer give Small some money the night before we sailed from New-York; they were often talking together, and appeared to be very intimate. Spencer appeared most intimate with Small, and then with McKie. He did not appear to be intimate with Cromwell until after our arrival at Madeira, when they appeared to become more intimate. The discipline was good till we arrived at Madeira; it was worse, after we left, up to the time of the arrest, and worse again from that time till the execution; after which the crew seemed to work smarter.

Question by Commodore Stewart:

Q. Did the crew appear to be better satisfied after the execution than they were before?

A. The larger part of the crew did.

Questioned by Capt. Mackenzie:

Q. Have you seen Spencer give brandy or tobacco to any of the crew?

A. No, sir, but I have heard of it.

Q. What sort of usage had you on board the Somers?

A. We called it good usage.

The testimony of the witness was read over, and he retired; and the Court adjourned to half past 11 o'clock on Monday morning.

TENTH DAY.

MONDAY, Jan. 9, 1843.

The Court having met pursuant to adjournment, and the minutes having been read,

William Collins was sworn.—I was on board as Gunner's Mate, and, after the confinement of Cromwell, as Boatswain's Mate. The discipline of the crew up to our arrival at Madeira was very good; from that time till the arrest of Mr. Spencer it was very bad. They were slack in performing their duty, and we had to run about to make them do it. I was on the quarter deck, and had to run about and act as Boatswain's Mate, to see that the boys did not skulk. The state of the crew from the arrest to the execution was about the same as before, but rather worse if any thing. When we were swaying up the top gallant mast it was getting rather dark, and the officer of the deck ordered me to keep the yard ropes manned. When I looked round I found there were only 2 or 3 on. I went forward and told them to come aft and man the mast ropes. They would not, and I told the officer of the deck they would not move for me, and that he had better send an officer forward, and he went forward himself, and they all came aft stamping with their feet, all together, and alarmed the Captain and officer. Mr. Gansevoort came to the main mast and I told him what was the matter—that the officer of the deck was driving the boys forward—and he told the Captain. It was dark, so that the Captain could not see them, and when he heard them rushing all aft he had cocked a pistol. I do not remember hearing any thing said by any of them. The men used to be talking together about the decks in groups of 4 or 5, and at the same time looking aft toward the prisoners. After the execution the discipline was better; the men became attentive to their duty and obeyed orders. I had no conversation with Mr. Spencer previous to his arrest, nor with Cromwell nor Small. I heard Cromwell tell the Doctor that he had been on the coast of Africa before in a Guineaman. I was examined before the Council of officers and was asked if I thought the ship would be safer with those men out of the ship. I said I thought she would. They asked me if I thought Spencer was engaged in this plot and I said I did, and also Cromwell, for he was always in conversation with him. I had often seen Cromwell in conversation with Mr. Spencer, and did not know what about. I was generally aft. They appeared very intimate. Spencer seemed to be most familiar with Small and Cromwell. I was not in the same watch with him. He was much more familiar with these men than any other officers were.

On being questioned by Commander Mackenzie, the witnese answered as the others had done concerning usage on board—the necessity of the execution, &c.

Mr. Browning, Boatswain's Mate, was then sworn, and testified, in the same way as the others, to the discipline of the crew before reaching Madeira—to the change for the worse afterwards—to Spencer's exceeding intimacy with Cromwell, carried, he said, to a greater extent than he ever saw in any other officer—to the mutinous disposition of the crew after the arrest, and to the absolute necessity which he believed to exist for the execution of the ringleaders. He said Cromwell and the others aloft did nothing at all. The witness was examined before the Council and gave his reasons for the opinion he then gave concerning the execution. Upon this point he said:—

My opinion was asked whether I thought it would be safe to try to bring the brig in with three prisoners, and I told them I thought not; I thought it unsafe, because in dark nights and squally weather the officers might be engaged taking in sail, and it was hard to tell who were engaged in it or not, and it would be easy in a dark night for a parcel of men where the officers were running about the deck, for each man to pick out his mark, stick his knife in him, and after killing all the officers but the Commander, it was easy to take command of the vessel, and not only that, but I do not believe there was a man forward except those three capable of taking charge of that vessel. There were none more capable of taking charge of that brig than I am of a balloon. Cromwell and Small understood navigation, and I have seen them working it. None others of the crew but those three did. My opinion was asked whether I feared a rescue, and I told them I did. I also said that the cooks about the galley were as much to be feared as any men about the ship, as they were as big or bigger than any and never aft the deck.

I do not believe Spencer was seaman enough to sail the brig without the assistance of Cromwell and Small. I do not think he knew a dozen ropes aboard of her.

Q. *by Captain Mackenzie*—Did you ever have any conversation with Wilson about this mutiny?

A. Yes. One morning at breakfast. Anderson said that it was sure to be found out. I said, "yes, for I would lay $1000 that some one would turn State's evidence;" with that Wilson said, "yes, if any body knew what he had said to me it would hang him without judge or jury." I asked why he did not go and tell the Captain. He finished his breakfast and went aft. What report he made, if any, I don't know. This was the morning after Cromwell was arrested. Then McKinley asked me if I did not think it best that he should go and let the first lieutenant know what Spencer had said to him. I told him he had better go up

to the first lieutenant and make a report of every thing—he knew he would be thought none the worse of for it. He went up and made a report and was put in confinement.

Q. What sort of usage had you on board the Somers?

A. Very good. I never had better in the service nor in any vessel I served in. It is n't because the Commander's there I say it to give him a good name for I would say the same on shore.

In reply to the Judge Advocate, he said, "I did not believe then nor do I believe now that the vessel could have been brought safely to port had the execution not taken place."

Andrew Stevenson, captain of the forecastle, testified to the same facts—to the disobedience of the crew after the arrest, &c. When the mast was carried away, witness was ordered aloft, and found Cromwell, Small, Golderman and Wilson there doing nothing but talking. He asked them several times for assistance but received no reply from any of them. His treatment on board he said was middling good: and it was his decided opinion that if the execution had not taken place the brig could never have been brought to port.

Henry King, sworn.—The discipline was very bad after the arrest and up to the execution. The larger boys seemed to hang back, and were very unwilling to go aloft. I watched them closely, and they seemed to hang about the decks. I observed a great many things during the time that caused me to have suspicion. I observed Wilson stow away an African dirk about gun No. 5—that is the after gun on the larboard side, and Mr. Spencer was confined on that side close by that gun. I found, also, two handspikes and three heavers which I had stowed away amidships under the boats and where I thought nobody could get at them, had been taken back to where I had removed them from. I had stowed them away under the cutter which was in the launch. There were two—Sullivan and Golderman—that I had seen about the stern of the launch that night in the first watch. It was about 10 o'clock that I found they had been removed, and I had seen these men there about 9 or 10 o'clock.—When the watch was called at 12, the first place Wilson went to was the quarter of the launch where the handspikes had been. It was dark and I could not say whether he might not have gone for his jacket. I have seen them talking about the decks, and they seemed very sly about it. I know before they were confined Cromwell and Spencer were very free together. The night Spencer was arrested at 12 o'clock Cromwell called the wrong watch. I thought Wilson wanted to get the knife to Mr. Spencer, for he was looking at him all the time and not attending to his work.

Questioned by Capt. Mackenzie. Did not a number of the crew miss their muster that night when you found the heavers?

A. Yes, sir, four or five.

Q. What sort of usage had you on board the Somers?

A. Very good.

By the Judge Advocate. I do not believe the vessel could have been brought safe into port by her officers had the execution not taken place; I don't think that had we been taken in a heavy squall, we could have saved the masts. The crew gathered about the decks, and we did not know who were engaged in it, and when we went aloft and left the officers on deck we were afraid there might be a rush made and the officers knocked down one after the other as easy as could be. I feared a rescue would be made very much, and was afraid to turn into my hammock at night. The men were about the deck and we did not know who to trust. I thought then and do now, that had any confusion occurred a rescue would have been attempted. I think that such an attempt would have been successful if made, though the officers were armed. We had to go armed when we went aloft. After the arrest and previous to the execution we could not get much rest; we did not get our usual rest; I was afraid to go to sleep I had such a dread on my mind; I never unbuckled my arms from me, and slept with them from the time they were given me until our arrival in New-York off the Navy Yard.

Q. *By Capt. Mackenzie.* What portion of the boys do you think could have been depended upon?

A. None but the smallest boys; I thought so then and think so now.

Thomas Dickerson, sworn. I have often noticed Spencer and Cromwell talking together; for the last 10 or 12 days every opportunity they could get they were talking together. It was in a very low tone of voice. I have been close by without hearing them. One night it had just gone 3 bells and I saw two persons in under the booms by the galley pipe. I passed them and then went forward and then turned about to see who they were. I found it was Mr. Spencer and Cromwell and another man the other side of the pipe that I could not tell who it was. They never altered their position till I went aft, which was in about 15 minutes. I went aft and sat down and in about half an hour the Captain came on deck and stopped 10 or 15 minutes, leaning on the round-house. He then went forward to the gangway. I thought he was going chock forward and would see them both there himself, but he did not.—The Captain went forward and gave orders to haul in the weather fore braces, and Cromwell and Spencer came out then but went back again as soon as he went down into his cabin and continued there until the watch was called.—This was Mr. Spencer's watch and Mr. Rogers was officer of the deck. I thought Knevals, Golderman, Sullivan, Wilson, Hamilton, Gurabrantz and Waltham were concerned, because they were those who gathered about the decks.—I thought Waltham was more so, because of his mumbling out threats and grumbling about the decks and cursing and swearing.

The Court here adjourned.

ELEVENTH DAY.

TUESDAY, Jan. 10, 1843.

The Court met pursuant to adjournment, and resumed the examination of

Thomas Dickerson, Carpenter's mate.—I have no other reasons than those I have already given for thinking the persons I named yesterday were engaged in the mutiny.—It was the conduct of the crew generally led me to suppose a rescue would be attempted. I once carried a couple of single sticks to store in Cromwell's store room and told him they belonged to the First Lieutenant, and he said he did not care a d——n, they should not stay there. On my leaving the store-room, he said, "*your time's d——n short.*"—Another time he had a rule which was broke, and he said that one of the carpenters had broken it. I told him they had not, it had got broken in the chest, and as I was going up the ladder he said "G—d d——n you, I'll fix you." Another time he had a stick of wood up in both hands and was going to knock a boy's brains out with it. He threw one stick and missed the boy. He then took up another in both hands and swore by G—d Almighty he would drive it through his heart if he was swung on the mainyard the next minute. The boy settled down on his knees, calculating to receive his death wound. I interfered and he stayed his hand, and then he repeated to me that "my time was d——n short."

Q. *by Captain Mackenzie.*—I ordered the boy to report it to the Commander, but don't know whether he did so. I have seen Mr. Spencer give tobacco to the crew. I have seen him amusing the boys by making music resembling that of an organ, with his jaw and his tongue. I don't think there was more than one quarter of the apprentices could have been depended upon to stand by their commander if a conflict had taken place with the mutineers, and those would have been all the smallest. The usage on the Somers was tolerably good.

In answer to the Judge Advocate, the witness said he had been 19 years in the service, and he also gave the same opinion as all the others as to the necessity of the execution.

By Captain Mackenzie.—We were on watch and watch from the discovery of the mutiny till our arrival at New-York. The petty officers were not allowed to sit down during their watch, and did not lay aside their arms all the time. I was sick 6 or 7 days before we came into port, and never laid them aside.

WILLIAM NEWELL sworn. I am an apprentice and rated by Captain Mackenzie as ordinary seaman. The discipline was good to Madeira. I saw little difference from that time till the arrest of Mr. Spencer, except that Cromwell behaved better to the boys than he had done before.—From the arrest till the execution the greater part of the crew seemed dissatisfied, and gathered about the decks talking about Spencer, Cromwell and Small. They said they thought it was not right to put them in irons. I have seen them come aft and stand round the mainmast, 4 or 5 at a time, and looking at the prisoners. Previous to Mr. Spencer's arrest, between Madeira and Cape Mercerado, he told me he should soon have a vessel of his own, and asked me if I would not like to sail with him. I told him I did n't know. He also asked me if I did not think Captain Mackenzie was very hard in flogging the boys. That was after leaving Cape Mercerado, and I told him I thought the Captain did nothing but his duty. This witness gave similar testimony as to the intimacy of Spencer with Cromwell and Small, their frequent private conversations in so low a tone that passers by could not hear them, &c.

I saw Mr. Speacer and Wales talking together on the booms the night before Mr. Spencer was arrested. I should think they were there two hours. I did not hear what they said. I also saw Small come up and speak to them. I saw Spencer show Cromwell a paper about two weeks before his arrest, by the store-room door on the berth deck. It appeared to be about half a sheet of letter paper. He appeared as if he was pointing with his pencil and explaining something to Cromwell. There were marks with a lead pencil on the paper. It was not common English letters, but looked like crosses, or something like it. I could not tell whether it was only writing or only marks. Mr. Spencer had been making. I think there were marks on the back of the paper, *as if it had been torn out of a book, and it had geometry figures upon it.* [This is the exact description of one of the pieces of paper with the stations at which some of the men were to be placed, and the names of the men who were to kill the officers.] I have seen that paper since at Commodore Perry's house. I do n't know the gentleman's name who showed it me. I had described the paper before I saw it; it was shown to me to see if I should know it. He asked me if I should know it if I saw it, and I told him I should. I had never seen it from the time I saw it in Spencer's hand showing it to Cromwell

until this time I now speak of. I had never had that paper mentioned to me until I went to the Commodore's. I had known there was a paper found in Mr. Spencer's lockers, as I had heard it mentioned by some of the boys on board the ship. I could not swear that the paper I saw at the Commodore's was the one I saw in Spencer's hand, but it has the appearance of it, and I believe it is the same. When I was at the Commodore's house I was questioned by the same gentleman as to what I knew about the mutiny. No person but he and myself was present.

Questioned by Capt. Mackenzie.—I have heard Cromwell say he had been in a slaver, and in a prison for being in one. I do n't remember ever seeing Cromwell in secret conversation with Wilson, McKinley or McKee. I have never heard Cromwell or Small talk about pirates. I have heard Small say he had killed a negro, and would kill more. I have heard Mr. Spencer say to Cromwell that the Somers would make a fine slaver. When Spencer asked me if I did not think the Commander flogged the boys too much, he called him "a d—d son of a b—h."

By the Court.—Small said he had killed the negro on board a slaver. He said he had been in a slaver.

By Capt M.—I have heard Spencer say he would throw Caps. M. overboard the first time he could get a chance.—It was after we left Madeira, and I believe when the Captain had been reprimadding him for neglect of duty. It was said, as he was coming forward, not to any one person particularly. There were five or six of the crew around—He was generally in a passion when he abused the Captain, but not always. I saw him one morning after he was confined handling a battle-axe, which he appeared to be moving up and down to see if he could use it. I was never flogged on board the Somers. I was rated an ordinary seaman on the 4th of July last.

By the Court.—I cannot name those whom I think heard Spencer say he would thrown the Commander overboard.

By Capt Mackenzie.—Have any inducements of any sort, any promises, or any threats, been held out to you to induce you to tell what you knew about this mutiny?

A. No, sir; none.

Judge Advocate. By any one—your Commander, or others?

A. No, sir.

Judge Advocate. Any promises or threats?

A. No, sir.

Judge Advocate. By any one—officer or civilian?

A. No, sir.

Judge Advocate. Have you been told by any one what it was necessary for you to testify to, or to prove?

A. No, sir.

In answer to the oft-repeated question as to the safety of the vessel without the execution, the witness said he did not think she would ever have come into port if it had not taken place, for if I was talking to a boy or a man this moment I did not know but the next moment he might knock my brains out. The witness here repeated his reasons for this belief as given in his examination in chief.

Peter Tyson sworn.—I am in my 19th year. I was third class apprentice on the Somers and this was my first voyage. The first I heard of the mutiny was a conversation the night before Mr. Spencer was put in irons. I was laying aft on the spar deck, between the 4th and 5th guns to the leeward side, about 7 o'clock in the evening, and Wilson and McKinley came aft. Wilson had his battle axe in his hand and a sharpening stone and no hat on. McKinley said to Wilson he had just told me that we have spies and we had better be careful. Wilson replied no, he need not fear that; he knows me and knows what I am, and that I have been in too many scrapes. McKinley then said to Wilson, "Would you join them?" He answered, "He would not mind it." McKinley then said, I do n't know, I think I would rather go on a regular slaving expedition, for there they had $25 a month and prize money, and when we got to St. Thomas we we would be fitted out. It was against the orders to lie on the leward side of the vessel and they had come up to me and saw who I was before they began this conversation. Had a pea jacket on. I was drowsy, and I think they thought I was asleep. I had gone there to try to sleep, and I laid still till this; and I then asked McKinley what was that he was saying about a slaver? He replied that he was talking about a slaver that left St. Thomas, and had been gone about 3 months, and had taken three or four vessels. He said she was fitted out with about as many guns as the Somers. I said I had heard of a slaver being fitted out there; and he said it was a free port, and they were often fitted out there. There was nothing said about pirates, only McKinley said, "*he would rather go in a regular slaver.*" I never noticed that there was any slackness about duty till after we left Teneriffe; and after that Wilson, who was Captain of the after guard, has often said to me, "D—n them, they have got plenty of men forward, let them do it themselves." The discipline grew a little better after the arrest, but much better after the execution. Sullivan and McKie were particularly slack. I have frequently heard Cromwell d—n parts of the ship; something about the stays, I recollect, and the one that invented it. This had been made by the Commander's orders, and Cromwell had been told so. Have had no conversations with Spencer, Cromwell and Small, but have known them to be very intimate together. I was afraid they would attempt to take the vessel after Spencer, Cromwell and Small were arrested. I recollect Wilson's saying he would take the boy Weaver's life, and would pay the Master, Mr. Perry, and the Commander, for having him flogged. Weaver had done something, for which Wilson struck him in the face, when Weaver reported him to the officer of the deck, Master Perry, and the Commander ordered Wilson to be flogged for it. In the conversation between Wilson and McKinley, Wilson said, "*He* knows well enough that I did not come on board this vessel willingly." He also said that when they get to St. Thomas he would run away and join a slaver. I do not believe that if the execution had not taken place, the vessel could have been brought safe to any port. Witness was examined before the Council of Officers, and every thing he there stated was true.

Mathias Gedney, sworn. I was seaman on the Somers; an apprentice. I am 20 years old, and have been over five years in the service. I heard a conversation between Cromwell and Spencer on the passage between Porto Praya and Monrovia. It was between 6 and 8 o'clock in the evening, on the starboard side of the forecastle. They were talking in a low tone of voice and I was only about three feet from them. I could only hear part of what they said. I heard Mr. Spencer say he would try that plan—if he succeeded well and good, if not, he'd burst. I don't remember that Cromwell made any answer, and Spencer turned and went away. They were talking about a voyage to the North-west Coast. A few evenings after I heard Spencer say to Cromwell he hoped he would not forget what he had spoken to him about. Cromwell said, "Oh, no, sir," and walked away. [This witness gave similar testimony to all the others as to the intimacy between Spencer and Cromwell and Small.] I remember once that Collins was telling us how he had been on a vessel with a quantity of money on board, and he was the only one who knew it and told the Captain where to find it. Cromwell said "It would not do for him to have that chance for he should be off with it." The discipline was good to Madeira, and I saw no alteration up to the time of the arrest of Spencer. From the arrest to the execution the men were more active and continued after. They improved after the execution. After Spencer, Small, and Cromwell were arrested I thought an attempt would be make to take the ship because I thought it would take more than 3 men to take the vessel from 120 and I thought they must have accomplices. The starboard watch never appeared to pay much attention to their work. I was examined before the Committee of officers and what I then said is true. At the time of the conversation about the North-West Coast Cromwell seemed to have been talking louder than he intended and not to be aware that we were so near. Two or three boys were laughing and Cromwell looked round several times and seemed frightened. I asked Van Velzer what Cromwell had been talking about, and he said that Spencer was going Captain of a vessel and Cromwell was going as his mate.

Questioned by Capt. M. I have never been flogged on board the Somers, and never had any unkind words from the Commander or officers. Mr. Spencer never asked me if I would like to sail with him.

By the Judge Advocate. I think the vessel might have been brought into St. Thomas with the prisoners on board, but I do n't think she could have been brought here. We a fair wind all the way to St. Thomas, and warm weather, and when we came on the coast it was cold weather. One man to St. Thomas was as good as three on the coast. We were 4 or 5 days sail from St. Thomas when the execution took place.

George W. Warner sworn. I was Captain of the forecastle on the Somers. I am an apprentice and have been 5 years in the service. I once heard Spencer ask Cromwell what kind of a slaver the brig would make, and he said she would make a good one. I never heard them talking together at any other time but I have frequently seen them.

They used to talk together in the dog-watches. I have heard Spencer talking to Small. He asked him if he was out of water, and Small said he was, when Spencer told him he would give him some, and sent him down to his locker to get some. Mr. Spencer has never said anything to me about taking the brig. He never asked me if I had been in a slaver, and never asked any of the boys in my hearing or said any thing to them on the subject. After Spencer, Small and Cromwell were put in irons I did not think any attempt would be made to take the brig. After Mr. Spencer was put in irons, I thought there was a mutiny on board and that there were others concerned in it. I did n't know then who to think was concerned in it. After Cromwell and Small were put in irons I thought both of them were concerned in it: I thought so from Cromwell's intimacy with Mr. Spencer, and his general character:—By that I mean his general treatment of every body; he was of a quick temper, and would often attempt to strike you, and if you did not get out of his way he would do so. I thought Small was concerned in it, because on the night of Mr. Spencer's arrest he was called aft and when he came forward again he appeared to be discontented about something, as if he had something heavy on his mind: the evening we were sending up the top-gallant-mast he was in the top; I went up with the mast, and he was sitting there apparently thinking about something which was not concerning his duty. I have no reason to believe that any other persons were engaged in the mutiny.

The morning after Cromwell and Small were arrested Wilson told me and the carpenter that he had had a conversation with Mr. Spencer. The carpenter advised him to go and report it to the 1st Lieutenant. He told us that Mr. Spencer called him one evening, when he was alone, and asked him what was the occasion of his coming into the service, and Wilson told him it was on account of a small spree he had had on shore. Mr. Spencer said he knew all about it, and Wilson replied he must have overheard something. Spencer said no, that there were one or two on board that had told him something about it, or something to that effect. He then put an end to the conversation, by saying "never mind." That is all that Dickerson told him to report to the 1st. Lieutenant.

I did not hear him say any thing to Dickerson about the mutiny or about Spencer's having said any thing about it. I have not heard any declarations from the crew to lead me to believe they were engaged in it. I was passing along the forecastle one day and Green and some others were talking about Spencer, and I said if I had my way I would hang them. I said, too, that I thought Spencer was as bad as either of the two others, and Green remarked that he thought Mr. Spencer was a nice man. My remark was merely an idle one about hanging them. I had not heard of any conversation at that time about hanging them. I did not believe that any attempt would be made to rescue the prisoners when I made that remark. I think if these men had been kept in confinement no attempt would have been made to rescue them. I was examined before the Council of officers.

The Court here adjourned.

TWELFTH DAY.

WEDNESDAY, Jan. 11, 1843.

The Court met pursuant to adjournment and proceeded with the examination of

George W. Warner. The statement I made before the Council of Officers was a true statement. It was here read over to him. I suppose Spencer intended to take the vessel to the Northwest coast, because he had often said in my hearing that he liked that country the best. I heard Cromwell say he had been in a slaver and had been taken prisoner. I said to the Council that *I had no doubt* Spencer intended to take the vessel, from what I had heard among the crew. I had heard the carpenter say that he had seen Spencer talking with Cromwell out of sight of every body, and from that, and hearing the Captain, when he flogged Waltham, read off part of the plot, I believe Spencer intended to make the attempt. I do n't recollect any thing else that induced me to express that strong opinion, "*that I had no doubt.*" I have had no conversations with any of the crew on the subject that led me to that opinion. In the proceedings before the Council it is put down that I said Cromwell *ought to be hung* "because I thought him guilty." I did not make that answer. Mr. Heiskell put that down 3 or 4 days after, when he asked me what the answer was which I had made, and I told him I did not know, and he then said he would fix it. I might have said that "Cromwell deserved to be hung," but I did not think at the time that they were going to hang him. I think he was the most desperate character in the ship.

Q. Is that or was that a serious opinion of yours that "Cromwell deserved to be hung"?

A. If he was guilty, he deserved to be hung.

Q. Did you think he was guilty?

A. I did think he was guilty. I had no other reasons for thinking he was guilty than those I have given, I do n't know how many others were concerned in this mutiny; I cannot say how many others I thought were concerned.

Questioned by Commander Mackenzie.—Had you a conversation with Sergeant Gartz about the officers being armed and keeping a bright look-out on the night Spencer was arrested?

A. I had a conversation with him, but I do n't remember what time it was. He asked me if I thought a rescue would be attempted. I told him I did not think there would; I said there might be persons on board who would like to do so, but I did not think any one would have daring enough to attempt it.

Q. Who were with you at the top-mast head immediately after the top-gallant mast was carried away?

A. I was not up at the mast head till the evening of that day. Anderson, Gedney, Small, Golderman, Cromwell and Small came down at eight bells.

Q. Did Mr. Spencer ever ask you if you would like to sail with him or become his coxswain?

A. No, sir. I don't remember ever hearing him ask that question.

Q. Were you the Commander's coxswain?

A. Until the day we arrived at St Thomas.

Q. Was there an officer in the gig or were you trusted and confided in by the Commander?

A. I was.

Q. Were you ever flogged on board the Somers?

A. No, sir.

By the Judge Advocate—I do believe the brig could have been taken to St. Thomas at any rate without the execution taking place. The day of the execution the officers and petty officers being all armed, I was satisfied we could proceed to any port in safety.

This witness was one of those who were confined by Captain Mackenzie on his arrival in this port.

Charles Van Velzer, also a prisoner since his arrival here, was next sworn.—I was Captain of the Foretop on the Somers. I am 18 years of age, and have been 4 years and some months in the service. Spencer never conversed with me previous to his arrest. I have often seen him talking with Cromwell at the fore hatch, always on the weather side; it was always by themselves, and in a low tone of voice. I never heard them but once, and that was on the forecastle. I then heard Spencer tell Cromwell that he should like to have a vessel to go out on the North-West Coast with, and he thought he could raise money enough to get one. Cromwell said he was well acquainted with the N. W. Coast. That was all I heard. Mr. Spencer was most familiar with Cromwell and some of the small boys—Scott, Stranmels, Blackman, Gazeley. He was most intimate with Cromwell. The discipline was very good until our arrival at Madeira; I never saw better. There was no change before the arrest: after there was. I then often saw the boys collected about the gangways talking, in twos and threes, and wondering what Spencer was in irons for. That was all the change I saw. Never saw any one refuse an order or backward in obeying it. They collected in gangs the same night Mr. Spencer was arrested. I did not see them collect in knots about the vessel after they found out what he was ironed for. I often saw the officers and petty officers talking together. I believed that if there was any plot Cromwell was concerned with Spencer, but I did not know of any plot. I was examined before the Council, and the statement I then made was true. I thought there was a plot because Spencer and Cromwell were so intimate, and what I had heard on the forecastle.

Questioned by Capt. Mackenzie.

I belonged to the Commander's gig.

By the Judge Advocate.

I think the brig could have been brought safe into port without executing those men. I thought so at the time, and I think so still.

The Judge Advocate here stated that the last witness finished the number of those who had been examined by the council of officers, and he now proposed, by the permission of the Court, to commence with the muster roll, and examine each of the boys to see if they knew anything, and he should make their examination as short as possible, but to examine each except the remainder of those in confinement. He further said that he should not have examined the two last witnesses had it not been that they had been previously examined before the council of officers.

Edward Fowler, sworn—I am 15 years of age. I was in Cromwell's watch. Mr. Spencer never had nothing to say to me, nor Cromwell, nor Small. I have very often seen Spencer talking to Cromwell alone, every evening, and sometimes all day; it was in a low voice. They would talk sometimes a couple of hours together, and sometimes more. One evening I heard Cromwell, when on the Jacob's ladder, ask Small if he had ever been at the Isle of Pines. Small said no, and Cromwell said he had been there once in a man of war, and it was a very nice place. Cromwell said as how as there was a good many man of war's men and pirates there, and he then said never mind we'll soon see the times when we'll see it again. Small never spoke to that. That's all I heard them say then; I had to go forward to the forecastle. I have often seen Cromwell and Small talking together. After Spencer was confined Cromwell seemed not to have so much to say to the boys as before. He behaved not so well to the boys at the commencement of the voyage as he did after. I knew nothing about the mutiny before Mr. Spencer was arrested.

By Capt. Mackenzie—After the arrest of Spencer, Green and McKinley used to be together some.

By the Judge Advocate—I knew nothing about whether a rescue would be attempted or not.

James Dunn, a mulatto, called, but it was objected that the court could not receive his testimony. The court was thereupon cleared for consideration, and on its re-opening he was recalled and sworn, after having been questioned by Commodore Stuart as to whether he professed the Christian religion, and also whether he knew the nature of an oath, to both of which he replied in the affirmative: I am a free man and was Captain's steward on board the Somers. I never had any conversations with either Spencer, Cromwell or Small relative to or touching this mutiny. I have seen Cromwell and Spencer in conversation. I have heard Spencer asking some of the men if they would like a glass of liquor. Had heard nothing from any of the crew that would throw any light on this inquiry. Had not noticed any change in the behavior of the crew.

By Captain Mackenzie—I drove Wilson away from the gully one morning and one morning he threw his bag at me and I asked him what for, and he said he had something against me and he did not forget these little things. I told him I would report him to the Captain, and he said he did not care a damn who I reported him to.

Justin Mundin called and questioned as to his knowledge of the nature of an oath, and as he did not seem to understand it he was directed to stand one side for the present.

Anthony Comtin, a free negro, called and sworn.—I was

ship cook on the Somers. Spencer, Cromwell and Small never had any conversation with me. I have seen Spencer talking to Cromwell frequently but never heard what they said. Spencer appeared to be very familiar with Cromwell and Small. I never heard any declarations by any of the crew as to the mutiny, or about getting a ship, or the isle of Pines or piracy. The crew appeared more attentive to their duty after the execution.

Henry Garrabrantz, a free negro, sworn.—I was ward-room cook on the Somers. I never had any conversation with Spencer, Cromwell or Small. I have seen Mr. Spencer and Cromwell talking together and have heard some of their discourse. I have heard Spencer tell Cromwell that the brig was a very fine one and did not want any thing to accomplish her being a good sailor. I first knew of this mutiny the night that Cromwell and Small were arrested. After the arrest and before the execution I thought an attempt would be made to take the vessel, because I thought there were more concerned, as I did not think three men could be capable of doing it. I know of nothing to throw any more light on this subject. I have given coffee to Cromwell and Browning through the steward's orders.

Manuel Howard (another negro) sworn. I was steerage steward on the Somers. One day, after the Captain had been reprimanding Spencer for neglect of duty, he came down in the steerage and said, "The Captain has been reprimanding me, but he shu' n't do it much longer." I have often heard him say he would soon have a ship of his own, but do n't know where he was to get it from. One day I was rubbing his head, and he asked me if I would go with him—he did not say where. I told him I would, and he said I should have nothing to do but rub his head, and brush his clothes, and clean his boots, and he would give me good wages. He did not say where the vessel was to come from or whether he was to be Captain. He did not say he wanted me to go in a *vessel* with him. One day afterwards Mr. Rogers asked me if I would go on his farm as overseer, and Mr. Spencer overheard it, and asked him, I think, if he wanted me, and he said, "Oh, d—n you now, you 're going with Mr. Rogers, not with me." I have known Mr. Spencer give the men tobacco, cigars, and soap. I have seen him with a piece of paper on which he seemed to be writing some names, and he asked Mr. Rogers if he understood Greek. Mr. Rogers said he did, and Mr. Spencer then said "then you can't see it, or any one else." After Spencer was arrested, McKie came to me and said "I'm sorry Mr. Spencer is arrested—I 'm d—d sorry." I said to him "you'd better shut up and knock off in time, or maybe you'll be there yourself one of these days." McKie appeared to be interested, and as if something was going on that was not right. The sailmaker and Wilson also appeared dissatisfied. I thought the vessel was not safe before the execution, though they were in irons. That is my opinion now also. I saw Waltham bring some liquor and give it to Mr. Spencer who put it in his locker, then called Small down and gave it to him. I think I should know the paper I saw Mr. Spencer writing on. He was writing with pen and ink.

William H. Selzer sworn.—I am 24 years of age and have been seven months in the service. I never had any conversation with Spencer, Cromwell and Small. The first I heard of this mutiny was on the night Mr. Spencer was arrested. The crew appeared satisfied that these men were arrested. I think if the execution had not taken place an attempt would have been made to rescue them and take the vessel. I thought they would attempt to take the vessel because the others who were not put in irons till we got here were talking in a mob. They said it was a shame that they were put in irons. They would be talking 3 or 4 together. Although the officers and petty officers were armed, I believe if the attempt had been made it would have been successful. I don't think the vessel could have been brought safe into port if the execution had not taken place.

Manuel Howard re-called—Spencer was very intimate with Waltham, the ward-room steward; he gave him a frock coat and segars, bundle after bundle. He has ordered me to give Cromwell coffee whenever he came to me. I have heard Cromwell say G—d d—n the commander and the officers too. I wish they were all in h—ll. This was in the presence of the crew, who could not help hearing it.

Edward Robins, another negro, sworn—Was ward-room boy on the Somers. I have heard boys, Miller and Rodman, after the arrest, say they were glad they were found out. That was all the new testimony elicited from this witness. He held the same opinion as to the necessity of the execution as the majority of those examined.

Squire W. Godfrey, old seaman, 19 years of age, sworn and examined.—Nothing was elicited from this witness to throw any additional light on the mutiny. He said, however, that the men gathered in knots wondering what the men were arrested for, and not after they found out what it was for. He thought a rescue would have been attempted, and that the execution was necessary for the safety of the vessel.

Edward T. Storms, sworn and examined.—Was an apprentice, rated old seaman, and has been in the service since August, 1841. Spencer spoke to me about the vessel being a fine one, and that he should soon have one himself. He said so but once to me, but I have often heard him say it to others. He never asked me if I would go with him. I have heard him speak disrespectfully of the commander, and of him often in the presence of the crew. He had not formed any opinion as to whether an attempt would have been made for a rescue, but did not think the vessel could have been brought into port without the execution.

The Court then adjourned.

THIRTEENTH DAY.

THURSDAY, Jan. 12, 1843.

The Court having met pursuant to adjournment, the inquiry was resumed by the examination of

James I. Riley, sworn.—I was a first class boy on board the Somers, afterward rated as landsman. I am in my 18th year. All he testified to were some expressions of Mr. Spencer's and Small's, which have been before testified to; the gathering of the crew in groups after the arrest; his fears that a rescue would be attempted, and his opinion that the brig could not have been brought safely into port without the execution.

John S. Wetmore sworn.—I was first class boy, rated now as landsman. I am 18 years old. This witness testified to Spencer's familiarity and frequent conversations with Cromwell; his declaration that he intended to have command of a vessel soon; also his having said he should like to have the long-boat manned and capture a brig which they met. He had heard Cromwell protest his innocence, and he thought Small did so too. Cromwell, he said, was very severe to the boys in the first part of the voyage. He did not think that any attempt would have been made for a rescue, but had one been made, he thought it would have been successful, even after the officers had been armed. He did not know but what the brig might have been brought into port safe without the execution, but he would have been afraid to have come home in her as she was.

John Dunscomb, 16 years of age, 1st class boy, testified to Small's declaration that he had killed a negro, to Spencer's familiarity with Cromwell and Small and their frequent conversations together, to the suspected parties gathering together in the top when the topmast was carried away, and to the apparent disaffection of the crew. He believes an attempt would have been made to rescue the prisoners on account of the sullenness of the crew and their gathering together in knots. He did not think the brig could have been brought into port by her officers without the execution having taken place. He thought that the vessel would have been taken and was afraid himself. He saw Cromwell when he threatened to take the boy Weancer's life and was stopped by Dickinson the carpenter's mate. He had also seen Spencer give Cromwell liquor.

John Nolan, 16 years of age, and 1st class apprentice, testified to the intimacy of Spencer with Cromwell and Small, but did not notice any difference in the behavior of the crew after the arrest except their gathering in groups; never thought about a rescue being attempted, but thought off the coast the cold would affect the bags so that the prisoners might have got loose themselves and taken the brig.

George Taylor, 2d class apprentice, 18 years of age, thought that in a squall the vessel might have been taken by the mutineers, and that the vessel could not have been brought safe into port without the execution having taken place.

Henry Stevenell, 1st class apprentice, 15 years of age, had not much opinion of whether a rescue would be attempted or not; after the men were arrested and before the execution, he was not afraid of any thing, and did not think there was any danger. He saw Mr. Spencer and Mr. Wales on the booms talking, and saw them call Small up to them, but did not hear any thing that was said. He did not think the vessel could have been brought in safely without the execution, because he thought Wilson would have attempted a rescue, because he was a great deal with Small and Cromwell.

Thomas Harrison, 1st class Apprentice, 16 years of age. Had seen Green & Wilson talking together, with a couple more; they were talking something about the brig and Mr. Spencer, but he could not hear what. Was not afraid of anything happening to the brig, but did not think much about it. Thought the brig could not have been brought in by her officers, because if the petty officers had been aloft a rush might have been made by the crew, who got together in mobs. Never heard that there was any intention to rush on the officers.

Ward M. Gazeley, 1st class Apprentice, 15 years of age. Was at the mast-head when the main royal mast was carried away. It was done by a jerk of the brace. He did not see who did it, as he was with his face aft. Never formed any opinion as to whether a rescue would have been attempted, as he did not know how many were engaged in it, nor had he any opinion as to whether the vessel could have been brought in safely if the execution had not taken place. Witness was sitting on the bitts and saw Spencer and Wales in conversation on the booms, when Small was called and Spencer said something to him at which he drew back and seemed frightened and Spencer then said, "It's all one, and he would have another conversation with him that night."

By Captain Mackenzie—At the time the main royal topgallant mast was carried away I was just about coming on deck, and had hold of the main royal shroud, which saved me from falling.

William Clark, first class apprentice, 16 years of age.—On the passage out before reaching Cape Meserado, Spencer asked him whether he had a knife, and he said no; Spencer then said he would get him one. Some three days before Spencer's arrest he asked witness whether he had a knife, and he said no, not yet. At night he was sitting forward and Spencer came to him with a sheath knife with brass on the handle, and said here's a knife for you. Witness told him Charley Stewart had given him one, and Spencer said never mind, *take this and keep it sharp and ready*. Witness did not take it. I saw Spencer show Cromwell a piece of paper in the mess at dinner time. It was on the forecastle the starboard side of the spar-deck—no one being present but witness and those two.

Cromwell was sitting with his face to leeward, and Spencer came up and showed him a piece of paper, asking him if it would do. Cromwell said it would do very well. It had on it pencil marks but could not read it, and can read and write. The letters were an old fashioned alphabet. He could make out some of the letters but none of the words. It was on a quarter of a sheet of paper. Witness saw Spencer show Cromwell that paper again at supper time. Cromwell said it was better. Spencer pointed with his fingers to the paper but did not hear him say any thing. During the time from the arrest to the execution the crew used to gather together and talk about it and wonder what they were confined for. Almost all the crew from the biggest to the least did so. Witness was afraid an attempt would be made to release the prisoners and take the brig, because while some were doing duty aloft those engaged might be below and make the attempt. He thought the brig could not have been brought in safely if the men had not been executed.

By Captain Mackenzie. Witness once told Mr. Spencer he had not many warm clothes to come on the coast with and he said that he did not think that they should have much rough weather. One day Cromwell had been telling one of the boys to do something which he had not done to his liking and he was finding fault when Mr. Spencer said—*"Yes, the sooner we get shut of these little devils the better, for they eat bread and are of no use."* This was on the passage to St. Thomas, before his arrest. Saw Wilson one day trying to approach Mr. Spencer when he was in irons. They were holystoning the deck at the time.

Joshua Smith—First class apprentice, 15 years of age.—One day about a fortnight before the arrest, Small was in the foretop, and he had a sheath knife, and said he should like to run it into some of the officers; he did not say who. Thought the vessel might be taken and the prisoners rescued, for nobody knew who was a friend or who was not. Thought the vessel could not have been brought in without the men being executed.

Charles O. Sibley, 1st class apprentice, 15 years of age—Saw Spencer give Cromwell two bills on the passage to Madeira. Was afraid there would be an attempt made to rescue the prisoners and take the brig. Thought the brig could not have been brought into New York if the prisoners had not been executed.

Thomas Bywater, 2d class apprentice—Thought an attempt would be made to rescue the prisoners and take the brig, but could not tell why he thought so.

Charles R. Lambert, 2d class apprentice, 18 years of age—Thought the brig could not have been brought in by her officers without the execution having taken place, for a great number used to be talking together, and witness once saw McKinley and Wilson talking together and when they saw him they seemed scared and told him he had better go where he belonged.

Q. by Com. Mackenzie—Mr. Spencer gave me 62 cents one day. It was raining and loaned him a pea jacket, and when I came on deck again he asked me if I would have some small change and gave me the money.

James Mitchell, 2d class apprentice, 16 years of age, had often heard Small talking about slavers and pirates; he had said he had been in a slaver, and that he would like to be in a pirate; thought the vessel could not have been brought in by her officers if those men had not been executed, because there might be some others in it. One day after the execution I was sitting in the main-top with Sullivan, and I asked him if he thought they could have took the vessel. He said he thought they could, and I then asked him what they would do with it if they had taken it, and he said they would kill all hands and then sink the vessel.

By Capt. Mackenzie. Q.—Was any remark made about dead men telling no tales.

A.—Yes, sir. He said "Dead men tell no tales, kill all and sink the vessel."

John Wilson, second class apprentice, 16 years of age, had seen Spencer give a pound of tobacco at once to Small, and two pieces of silver to Green, saying he would give him more at St. Thomas! Was in the mess with McKinley and Wilson, and heard Wilson say if Lt. Gansevoort and the Captain knew what he did about Spencer, it would hang him. Heard McKinley say, after Spencer was arrested but before his execution, that he expected he should be in irons before night. He said so two or three times, but gave no reason for saying so. I thought an attempt would be made to rescue the prisoners and take the vessel, and was afraid to turn in at night from the apprehension that they would rise and kill us all. I do n't think the vessel could have been brought into port. The Court here adjourned.

FOURTEENTH DAY.

FRIDAY, Jan. 13, 1843.

The Court having meet pursuant to adjournment, the proceedings were resumed by the examination of

William H. King, 2d class apprentice, 16 years of age.—Heard Cromwell say to Mr. Spencer that he would like to have command of a vessel and cruise off the isle of Pines. Could not tell whether a rescue would be attempted or not. Thought the vessel could not have been brought into port had the execution not taken place, but could not say positively.

William H. Houghland, 2d class apprentice, 17 years of age.—Thought there would be an attempt made to release the prisoners and take the vessel, as Wilson seemed to be always trying to speak to Mr. Spencer while he was in irons. Can't form any opinion as to whether the vessel could have been brought in by the officers without having executed the men.

Wallace W. Dowd, second class apprentice, 16 years of age, had formed no opinion as to the necessity of the execution for the safety of the vessel.

John Rameshardt, second class apprentice, 16 years of age had formed no opinion.

George Kitter, second class apprentice, 16 years of age, had formed no opinion, but thought if some men were aloft and there was a muss, the men that were in it might turn on their officers.

Jacob Blackwell, 2d class apprentice, 17 years of age, heard Small say to Spencer that he had never cleared more money in his life than when he was in a slaver. Spencer then saw witness on the bitts and told Small to be silent, and when he was talking about slavers again to call them yawls, and then no one would know what he meant; thought there would have been no attempt to release the prisoners and take the brig.

By Commander Mackenzie. I attended to Mr. Spencer's hammock every other night, but never heard or saw him do any thing in relation to the mutiny.

Theodore Hurnbert, 2d class apprentice, 17 years of age, thought an attempt would be made to release the prisoners and did not think the vessel could have been brought home if the execution had not taken place.

William T. Van Brunt, 2d class Apprentice, 16 years of age. Heard Spencer say he would be Commander of a vessel before long. Did not think an attempt would be made to rescue the prisoners and thought the brig could have been taken in safety to St. Thomas, but not further, because they did not know who were friends and who were not.

By Captain Mackenzie.—I have seen Mr. Spencer intoxicated on the passage between Monrovia and St. Thomas.

William R. Philson, 2d class Apprentice, 19 years of age.
Absalom Taylor, " " " 18 " "
William R. Cooper, " " " 18 " "
Joseph Lewis, " " " 18 " "
Edward Anderson, " " " 18 " "
Joseph Weaver, " " " 18 " "
John Finnacy, " " " 18 " "
H. L. Huntington, " " " 17 " "

All these lads were examined and testified to what has been repeatedly before the public by the examination of the other witnesses. They were all asked their opinions as to the necessity of the execution. Several of them had no opinions and others thought that the vessel was not safe until the execution had taken place.

This closed the examination of witnesses for the day, and Captain Mackenzie then presented the following communication to the Court, on the subject of a publication in the Standard, of a list of punishments inflicted by him:

May it please the Court:—A publication was yesterday made in the New-York Standard, purporting to give an account of the punishments inflicted on board the Somers.—This account could only be derived from the Log-Book which has been produced in evidence before this Court, and has remained in its custody. The publication is evidently designed to excite odium against me, at a moment when I am undergoing a solemn inquiry for a painful discharge of what I conceived to be my duty. I am ready and anxious to prove that no other punishments were inflicted on board the Somers than such as were lawful and necessary, but I cannot but object to garbled statements of them unaccompanied by any explanation of the attending circumstances, and therefore threw myself upon the Court for protection from this attempt to prejudge my case, and prejudice the public mind by the surreptitious use of documents within the custody of the Court, for the purpose of this investigation.

I have the honor to be, &c.

ALEX. SLIDELL MACKENZIE,
Commanding U. S. Brig Somers.

January 13th, 1843.

To the Court of Inquiry.

He then presented to the Court a copy of the Standard, with a memorandum relating to some of the cases said to be garbled.

The Judge Advocate here stated that when the log-book had been produced by Acting Master Perry, he had directed him to continue to take charge of it, which advice he had misunderstood and left the book in the Court. Two days

ago, when he heard this fact, he had requested Captain Gregory to take charge of it as custodier for the Court. All that could now be done was for the Court to take charge of it and prevent any further improper use of it.

Commodore Stewart assented to the Judge Advocate's opinion.

Captain Mackenzie then requested that the Court would institute an inquiry to ascertain through whose agency this publication had been made.

The *Judge Advocate* said the Court could not travel out of the ground, and institute any other inquiry than that delegated to them by the Secretary of the Navy.

Commodore Stewart thought that the Court could not take notice of newspaper statements. If any incorrect ones had been made Capt. Mackenzie had better reply to them. All the Court could now do was to take precautions to prevent a similar occurrence.

After some further conversation the matter was ended by Capt. Mackenzie requesting that this communication might appear on the Records of the Court, which was granted, and he also asked whether he could not address the Secretary of the Navy on the subject, to which Commander Stewart replied in the affirmative; and the Court adjourned.

FIFTEENTH DAY.

SATURDAY, Jan. 14, 1843.

The Court met pursuant to adjournment and after the reading of yesterday's minutes, the Court was cleared for consideration and decision respecting the application of Capt. Mackenzie for an inquiry into the mode by which extracts from the Log of Somers had been given for publication in The Standard.

On the reopening of the Court, Mr. Eld, Acting Master on board the North Carolina, presented the following letter to the Court, which he wished to be read, as explanatory of all he knew concerning this affair, as his name had been mentioned as having promised to take care of the log-book when left by Mr. Perry in the Ward-room of the North Carolina:

U. S. SHIP NORTH CAROLINA, }
January 14, 1843. }

GENTLEMEN: As my name has been used before this Honorable Court in connection with certain extracts said to have been taken from the Somers Log Book, which manuscript was in my possession for a short time, I would respectfully wish to certify that, from the date I volunteered to look out for the Log Book of the U. S. brig Somers for Acting Master Perry, which was on the day that he was examined as a witness before the Court of Enquiry, now sitting, so long as it was in my possession I was not knowing or aware of any improper use being made of or extracts being taken from it, in any way, manner or shape; and, moreover, that it did not, to my knowledge, during that time, go out of the private apartment of the Ward Room Officers of this ship. On Sunday, the 8th of January, Lieut. Gray requested to see the above book for a few moments, and I sent it to him. While in his possession, Captain Gregory sent the Orderly to the cabin door and took it from Mr. Gray, from which time I did not see or hear of the said book until the evening of the 11th, when Captain Gregory told me that Mr. Hoffman, the Judge Advocate, had requested him to take care of it. The evening of the 12th, Captain Gregory sent for and desired me to examine that document before Acting Master Perry, and bear witness to its not having been mutilated or altered, and see that no leaves or remarks had been extracted. Having done this, it was returned to Mr. Perry. I would also remark, although perhaps not incumbent upon me, that I do not know by what agency the extracts of the Somers Log Book, said to have appeared in the public prints of the 11th of January, was obtained or published. Respectfully,

HENRY ELD, Jr., Acting Master U. S. S. N. C.

The Court decided that it could not receive such a communication, but that Mr. Eld might address and hand it to Captain Mackenzie as an explanation to him. This was done.

The Court then gave as its decision on the application of Captain M. for an inquiry, that it could not travel out the sphere assigned to it by its instructions, and they could not, therefore, institute the inquiry which Capt. M. wished.

The proceedings of the Court were then continued by the examination of witnesses.

John English, 2d class apprentice—17 years of age.—Had seen Spencer sitting with Cromwell and Spmall—had a paper and pencil in his hand and seemed to be putting down something which Cromwell was telling him. One of the boys went near him, and he said "D——n you if you don't go away I will take you to the mast." Did not think the vessel could have been brought in without the execution had taken place.

Leander Frary, 2d class apprentice—17 years of age.—Had no opinion about the necessity of the execution.

Frederick Snyder, 2d class apprentice, — years of age—Thought the vessel could not have been brought in without the execution having taken place.

William Fry, 2d class apprentice, 17 years of age—The night Mr. Spencer was put in irons, heard Small say to the crew it is for going to commit a mutiny, but I don't believe anything about it. Did not think the vessel was safe if the execution had not taken place.

William Delling, 2d class apprentice, 18 years of age—Formed no opinion at the time of the necessity of the execution.

William Inglis, 2d class apprentice, 17 years of age—Saw Cromwell and Spencer on the forecastle one day.—Spencer was on the forecastle chest and Cromwell on the forescuttle. Spencer had a paper which he was showing to Cromwell; he would write on it with a pencil, and then show it to Cromwell, who would say Yes, sir. Witness went past, and as he passed looked over his shoulder at Mr. Spencer, who got up, and shook his fist at him—called him a d—d son of a b——b, and if he looked at him in that way again, he would have him at the gangway and get him flogged. Thought that there were more than the three engaged in the mutiny, and had seen Wilson making motions to Spencer, who returned them. He had also seen Wilson, McKinley and McKie standing about the main mast and whispering, while they were at the same time looking at Mr. Spencer. This was while Mr. Spencer was in confinement. He thought there would have been an attempt to take the vessel and release the prisoners if the execution had not taken place. Should know the paper he saw Mr. Spencer write on if he was to see it again.

By Captain Mackenzie—I think Spencer was writing names on the paper. He was writing straight down, and very few words in a line. At the time he was writing he was looking round at the boys. He would first look round then write down, and then show the paper to Cromwell.

William H. Rice, 2d class apprentice, 17 years of age, *Joseph S. Redman*, 2d class apprentice, 17 years of age, were then examined, but neither of them threw any additional light on the subject of the mutiny by their testimony.

Captain Mackenzie here rose and stated to the Court that he had said the evening previous, when informed that Mr. Eld had had charge of the Log-book of the Somers, he should communicate with the Secretary of the Navy and hold Mr. Eld responsible for the use which had been made of it in making extracts which had been published. He now wished to say that he had no doubt whatever but that Mr. Eld would be able satisfactorily and honorably to himself to account for the custody and use of it while under his charge.

Billinger Scott, 2d class apprentice, 15 years of age, had heard Spencer ask Cromwell if he could alter the appearance of the brig so that she could be brought into New-York without being known. Cromwell replied, "yes, in d—d short order."

Robert Alliston, 2d class apprentice, 16 years of age, *Alfred McGee*, 2d class apprentice, 18 years of age, were also examined, but nothing new elicited from them.

The Court then adjourned.

SIXTEETNH DAY.

MONDAY, Jan. 16, 1843.

The Court met pursuant to adjournment, and the minutes of Saturday's proceedings being read, the Court proceeded with the examination by calling

Henry W. Miller,	2d	class	apprentice,	15	years	of age.
John Ballatine,	3d	"	"	15	"	"
Henry Cowles,	3d	"	"	17	"	"
Richard Norwood,	3d	"	"	16	"	"
Jonas Humber,	3d	"	"	16	"	"

None of these witnesses threw any additional light on the subject by their testimony, which was merely a repetition of what has been reported over and over again, except the last, who testified that on the day of Spencer's arrest, he (witness) was handling an African dirk knife belonging to Wilson, when he said he had just been sharpening it up, and would as soon cut his throat with it as look at him. He also saw Wilson have that knife near No. 5 gun, (the one next to where Spencer was confined,) and he said he should like to dut it into Mr. Spencer's hand.

The Tuesday previous to Mr. Spencer's arrest, he heard Mr. Spencer ask McKie if he knew how to cut out clothes and sew them. McKie said he did. Spencer then asked him if he would like to sail with him; to which McKie replied that he would. Mr. Spencer said all he would have to do would be to cut out and make clothing for the crew, and that he would not have any winter clothing to make, because they were going to a warm place.

Charles W. Rouse	3d	Class	Apprentice,	aged	17
Charles Abrahams	3	"	"	"	15
Richard H. Gilmore	3	"	"	"	15
John Bradshaw	3	"	"	"	17
Peter Fenton	3	"	"	"	17
Samuel G. Van Norden	3	"	"	"	15
Stephen W. Swift	3	"	"	"	17
Andrew Page	3	"	"	"	16
John Armstrong	3	"	"	"	16
J. F. Leonard	3	"	"	"	16
William Rain	3	"	"	"	17

Thomas Bowen	3	"	"	" 15
Samuel Gilmore	3	"	"	" 16
Dennis Manning	3	"	"	" 14
Peter J. Hansen	3	"	"	" 15
James B. Travis	3	"	"	" 14

were then examined and the Court adjourned.

SEVENTEENTH DAY.

TUESDAY, Jan. 17, 1843.

The Court met pursuant to adjournment. The Judge Advocate stated that he had received certain papers from Washington, to use according to his discretion; but that he found they were merely private papers of Midshipman Spencer, and had no bearing on the Inquiry. He therefore should not trouble the Court with them.

The first witness called was

Edward Lego, landsman, 17 years old.—Did not think the Brig could have been brought in if the execution had not taken place.

William Reed, third class apprentice, 18 years of age—Thought the mutineers would have tried to destroy the vessel if they had not been executed.

William Conger, 2d class apprentice, 18 years of age.—This witness had a conversation with Mr. Spencer about boys being allowed to go home after a short cruise. Mr. Spencer told him they sometimes allowed boys to go home after a short cruise, and if *he*, Spencer, had command of the vessel, as *he shortly* should have, then he would allow witness to go home. About half an hour previous to Spencer's arrest, witness passed him—he appeared agitated, and witness heard him say "*The die will shortly be cast.*" Witness remarked it at the time to some boy, and wondered what was the matter with him. After Mr. Spencer's arrest, the witness asked what he was confined for, and one of the boys answered it was for fighting with Mr. Thompson. Thought in a squall or a gale, or if a boy had fallen overboard, that in the confusion an attempt might have been made to release the prisoners and take the vessel, and if made at such a moment, he thought it might have been succe sful. There was a violent squall the evening of the day on which the execution had taken place, a short time previous to the interment.

William S. Johnson sworn.—I reside at 127 Jackson-st., Brooklyn, and was introduced to a Mr. Spencer, a son of John C Spencer, though I can't tell whether it is the one this inquiry is about or not. He had a blemish in one eye. I gave him, I think, 12 months ago last fall, a key to some secret writing. He showed me several keys, one of which I think was Aaron Burr's cypher, and requested me to give him the key I had, which I did. (The paper of Spencer's which had a cypher at the top, and of which we gave a fac simile last week, was here shown to witness.) I do not know that cypher—it is not the one I gave Mr. Spencer.—I do not know any person of the name of Fairbanks. I never heard any thing from Mr. Spencer about the Somers at that time. It was not then launched. The key I gave Mr. Spencer was one he could speak as well as write, and that made him so anxious to get it.

Jeremiah Corry, 3d class apprentice, 17 years of age. The night Spencer was put in irons witness asked Wilson what it was for, and he said he suspected it was because he intended to raise a mutiny on board. Heard Wilson say one morning at mess that if the officers knew what he knew they would hang Spencer without judge or jury.

Augustus Leroy, 2d class apprentice, 16 years old, thought the brig could have been brought into St. Thomas without any necessity for the execution, but not home.

John Cavanagh, 1st class apprentice, 18 years of age, did not see any thing to make him afraid, and thought the execution unnecessary.

George H. Mallory, 2d class apprentice, 16 years of age, formed no opinion as to the necessity of the execution.—Thought if a rescue had been attempted in a storm it would have been successful.

Andrew J. Bovee, 3d class boy, 17 years of age, saw Spencer showing a paper to some man which resembled one of those found in Spencer's lockers, which was shown to the witness.

William N·well re-called, and identified one of the papers found in Spencer's locker as that which he saw him showing to Cromwell.

William Clark recalled.—Identifies one of the papers of Spencer's as that which he saw Spencer showing to Cromwell.

William Engles recalled.—Identified one of the papers, likewise, as that which he saw Spencer showing to Cromwell.

Edward Inglish recalled.—The papers shown him resemble, in color, the one he saw Spencer showing to Cromwell, but he cannot tell whether either of them is the paper he saw.

Captain Sands, sworn—I am the Commander attached to the Navy Yard. The Somers was fitted out under my superintendance at this Yard. She is 266 14-95 tons measurement. The Custom House length is 103 feet. Her beam is 25 feet and a little over. There is a trunk on deck which leaves a space between that and the binnacles of about two feet and a half. There is three feet and a little over from the after part of the wheel platform to the taffrail. The trunk extends forward to within a foot and a half of the pumps. The average width from the trunk to the bulwarks is 6 feet 4 inches. She has one gun there on each side, which occupies nearly 5 feet. Her booms commence at the mainmast and go forward about 45 or 50 feet. When the launch and the booms are in there will be about 6 feet between them and the sides of the vessel on each side. The guns and gun-carriages will occupy about 5 feet of that space. The space forward of the booms is occupied by the foremast, the bolts, the galley pipe, the combings of the scuttle, &c. The cabin is 8 feet long, 8 feet wide at the broad end, 4 feet at the narrow end.

There is the ladder to be taken of the length; from the foot of the ladder forward is five feet. The bulkhead separating it from the ward-room is common white pine about an inch and a quarter stuff. There are three moveable panels which can be taken out. They run in a groove below with a slide above. I should suppose one man could force that bulkhead out with his back. The ward-room is 8 feet long and ten feet wide. That is separated by a similar bulkhead from the steerage; it is however rather better secured. Two men could knock it down by working hard. The door way however which separates it from the steerage could be forced by two persons easily. The ladder from the deck leads down into the steerage and runs past them into the ward-room from there.

The steerage is about 9 feet long and 14 feet wide at the widest part. The pumps take about 3 feet of the space, and the ladder and the table interfere with the space left. The scuttle to the magazine is in the ward-room. The steerage is separated by a bulkhead similar to the others, grooved and tongued in a similar manner. The hight of the berth deck is 4 ft. 10 inches between the beams, and 4 ft. 4 ins. below the beams. The shot of the vessel, when she was first fitted out, were stowed in proper lockers about the masts. The entrance was from the berth deck. The crew would have access from the berth deck to the shot, and it would have been very easy to have forced the bulkheads by means of it. There was no other apartment on board the vessel than those I have described that were not occupied. The provisions and water were stowed under the berth deck.

If the crew had possession of the berth deck, they could have cut off communication with all the provisions but bread, which was stowed after. With the ship at sea, in a small vessel like that, to have only one prisoner on either side would be a great inconvenience, and interfere with the management and duties and working of the vessel. Any disturbance would have interfered with the working o the vessel. If the prisoners had been confined in the cabin, and guarded from the deck, their would have been no interruption to their release by the crew but the bulk heads, which a single round shot would have demolished.—Had the deck been in possession of the crew, and the officers below, one man at each end of the trunk, with a billet of wood in his hand, could have prevented the officers from coming on deck. Two men at each end would have been amply sufficient to have kept all below. The ladders are nearly perpendicular. Had the prisoners been confined in the ward room, they would have had access to the powder magazine.

By Capt. Mackenzie—The belaying pins would have been a very powerful and efficient weapon to keep the officers below. They are formed of iron, about 15 inches long, an inch in diameter, and thicker at one end than at the other. There is one remark I would make: By the English measurement, her capacity is 137 1-35 tons; but with swept hold, her total capacity is 120 tons.

By Judge Advocate.—I should suppose the usual number of hand irons and foot irons allowed to a brig of this size would be about 25 pairs of each. I don't know what number she had.

By Capt. Mackenzie—All small vessels sail from here so full, that they have stores and provisions stowed on the berth deck. I now recollect that the Somers had a spare anchor and stock stowed on the berth deck, which would have been a powerful weapon to have staved in the bulkheads, or even to have staved a hole in the ship's side. I have known prisoners to free themselves from their irons when not strictly looked after by the sentinels in whose charge they were.

Acting Master Mr. Perry, re-called.—I have the log-book of the Somers here. It is in the same condition as when I last produced it here. The day we first discovered the mutiny, was the 26th Nov., astronomical time, 12 o'clock. The 27th civil time, we were in north lat. 13 degrees 24m. 16s, and west long, 41 degrees 24m. 45s. On the 1st December, civil time, the day of execution, we were in north lat. 17 degrees 34m 28s, and west long. 57 deg. 57m. 45s. We arrived at St. Thomas on the 5th December, civil time, at 15 minutes after midnight. At the time of execution we were distant from St. Thomas 525½ miles by log.

The state of the weather the day after the execution, by log, was moderate breezes and pleasant weather. On the day of the execution, after the execution, it appears by the log that from 6 to 8 it was squally with showers of rain; after that it was moderate and pleasant. From that time

till we arrived at St. Thomas we had no squalls, except on the 3d December, from 8 P. M. to midnight, when we had moderate weather with squalls. The occurrences relating to the execution are truly related in the log-book.

By Commander Mackenzie.—I observed a confident air about Spencer, Cromwell and Small, which appeared as if they expected a rescue. It showed itself even when the petty officers were arming. They seemed under no fear or apprehension whatever during the whole time they were in confinement. The articles concerning mutiny on board a man-of-war were read to the officers and crew once a month. The officers when armed with the weight they carried and the watches they kept, as they were barely allowed to sit down, could not have held on more than 5 days from the discovery of the mutiny.

I should think the Commander passed two-thirds of his time on deck before the discovery of the mutiny; afterward, and until the execution, about 18 or 19 hours out of the 24. After the execution he was not so much on deck, as he was indisposed. My opinion respecting the guilt or innocence of the men executed was not influenced at all by the opinions or fears of the Commander. After the arrest, up to the execution, I noticed a change in the physical appearance of the officers. There seemed a drowsiness and weakness about them, which increased up to the execution. The officers did not get, during the time between the arrest and execution, more than 4 or 5 hours' sleep, and that not refreshing.

The Court then adjourned.

THE UNITED STATES BRIG-OF-WAR SOMERS.

THE above engraving accurately represents the appearance of the SOMERS as she sits upon the water. She is a beautiful craft of 266 tons measurement, though she is so sharply built that she carries only 120. She is a very swift sailer, and is pierced for 14 guns, though she mounts only 10. Her mainmast and foremast are each 21 inches in diameter at the deck. The dimensions of the several parts of the vessel are as follows:

Mainmast	60	from deck.	Foremast	56	
Main topmast	36		Fore top-mast	33	
Main top-gallant-mast	18	3 inches.	Fore top-gallant mast	16	9
Main royal top-gallant-mast	12	3 "	Fore royal top-gallant mast	11	3
Pole	4		Pole	3	8
Total hight from deck	130	6 "	Total hight	120	9

Length of Bowsprit outboard	21	feet.	
Length of the Jib-boom	17	"	
Length of Flying Jib	10	"	9 in.
Total length	48	"	9 "

Whole length of keel	85	ft.	3 in.
Length between perpendiculars	100	"	
Breadth of beam moulded	25	"	
Extreme breadth	25	"	7 "
Depth of hold	11	"	
Length from knight-heads to taffrail	105	"	

The following is a table of the distance run by the Somers on each day after the first discovery of the mutiny, up to her arrival at this port—copied from her log-book:—

Nov. 26	(day in which Spencer opened the plot to Wales)	210	miles.		
" 27	(day on which Spencer was arrested)	206			
" 28	(day of the arrest of Cromwell and Small)	184			
" 29		184			
" 30	(day of the arrest of McKee, McKinley, Wilson and Green)	177			
Dec. 1	(day of the execution of the three ringleaders)	190			
" 2		158			
" 3		155			
" 4	(arrival at St. Thomas)	174			
" 5	(left St. Thomas)	114	Dec. 10		143
" 7		179	" 11		116
" 8		176	" 12		118
" 9		116	" 14	(arrived at New York)	106

EIGHTEENTH DAY.

WEDNESDAY, Jan. 18, 1843.

The Court met pursuant to adjournment, and the minutes of yesterday's proceedings were read.

Commander Mackenzie then presented the following Document:

May it please the Court: I am prepared to prove that more than a year ago, it was one of the amusements of Mr. Spencer to relate to the young children of one of the professors of Geneva College, in whose family he was domesticated, "murderous stories and tales of blood;" that the chief and favorite theme of his conversation was piratical exploits, and the pleasures of a pirate's life; that the great object of his ambition was renown as a pirate; that the book which he oftenest read, and which, on leaving Geneva College to embark in a whaler, he presented to the students' library, was the "Pirate's Own Book," and that it still remains there with his name in it; that on stepping into the stage coach to leave Geneva, the last words he said to a friend who took leave of him were, that he would next be heard of as a pirate.

Witnesses are now in attendance upon the Court, to prove that throughout the period of his service in the Potomac, from Rio to Boston, the possibility of capturing her, and the use to be subsequently made of her as a pirate, were the object of his thoughts, and the theme of his conversation to three at least of her forward officers; to how many of the crew he may have unfolded his plans, is not known; that he detailed them in the presence of three can be proved.

It can be proved that he explained how the officers might be murdered in the night, and the ship captured—that, although he objected to the size of the Potomac, if he could obtain a smaller vessel, he was still desirous of undertaking his project in her—that he offered the first Lieutenantcy of the Potomac, if he could obtain possession of her, to one of her forward officers—that with her he proposed to capture some of the packets off New-York—that from the captured vessel he hoped to procure a few choice spirits, and gradually change and thin off his crew, until he got a perfect one—that he proposed also to get in the track of outward bound Indiamen, and made particular inquiry as to the part of those vessels in which they stowed the specie for the purchase of their return cargo—that he also inquired if the masters of the Indiamen did not usually carry their families with them—that he went minutely into all the details of the discipline necessary to restrain the crew of a pirate, the means of refitting and watering in remote and unfrequented seas.

I am prepared to prove that, during a passage of nearly fifty days from Rio to Boston, in the Potomac, this constituted Mr. Spencer's chief topic of conversation among the forward officers and among the crew, and that as an ulterior project, when he found his plans for carrying the Potomac could not be matured, he proposed to equip, by some means, a clipper brig at Baltimore, and arranged all the details for manning and arming her after he should be dismissed from the naval service.

I am prepared to prove by John Ford, former ward-room steward of the Somers, that the night before the Somers sailed, Daniel McKinley told him that there would probably be a mutiny on board the Somers.

With regard to Samuel A. Cromwell, I am prepared to prove that for mutinous conduct he was turned out of his ship, and towed ashore on a grating—that very shortly before the departure of the Somers from New-York, he asserted in a bar-room of the Bowery of New-York, that there would probably be a mutiny on board of her before her return, Charles A. Wilson being at the time in his company.

I am prepared to prove by Lieutenant Montgomery Lewis, that when employed in the Florida flotilla, under Lieut. McLaughlin, on one occasion, when in a boat expedition under Lieut. Rogers, Cromwell, having been put in irons for drunkenness and mutinous conduct, menaced Lieut. Lewis by telling him that the next time they fell in with Indians other shots would be received than those that were fired by Indians; and that there would be some killed.

By Edwin Alfred, a seaman now on board of this ship, that during the greater part of the night he paraded before the tent of Lt. Lewis, with a loaded carbine, and with the avowed purpose of shooting him, should he come out; that he had two separate projects for creating a mutiny among the seamen of the expedition: at one time to turn all the officers adrift in a boat with a single oar; to proceed with the boats to Cuba and the Isle of Pines, with all the recesses of which, and of the neighboring coast, he professed to be familiar, and then to engage in piracy.

Whatever the Court may decide, as to the evidence thus offered to prove the early piratical propensities, and the piratical project in another ship, of Mr. Spencer, I trust it will, at any rate, depart sufficiently from its rules to receive the entire testimony offered to prove the piratical tendencies of Cromwell. He alone, of the three mutineers who were executed, persisted to the last in protesting his innocence, even while asking forgiveness of Lieut. Gansevoort.

Such is the secret character of mutiny, and the precaution with which a practised pirate especially would hide his guilty plottings against the lives of his comrades and the honor of his country, that it is impossible to adduce, even before this Court, all the evidence which rendered the guilt of Cromwell palpable to his officers and messmates, and divested it of all doubt; many trifling incidents that had weight at the time, are forgotten; many, consisting of looks and motions, significant enough to those who see them, cannot be described.

Though it is believed that abundant evidence has been adduced before the Court to prove the guilt of Cromwell, yet, with the means of showing his previous mutinous and piratical propensities at hand, is it not desirable to go a step farther, and satisfy them who are strangers alike to the peculiar position of a ship's company alone upon the ocean, and the dire necessity that may grow out of a condition of that company, rare in any navy, and happily unparalleled in our own.

I have the honor to be, very respectfully, your obedient servant, ALEX. SLIDELL MACKENZIE.

U. S. Ship North Carolina, 16th Jan. 1843.

The Judge Advocate then stated that he should object most decidedly to the introduction of all the testimony offered as to Spencer's conduct or declarations on board the Potomac, or other vessels, or as to Cromwell's behavior while in the Florida Squadron, as he considered it decidedly inadmissible. He had also doubts as to whether the declarations alledged to be capable of proof as having been made by Spencer, Cromwell, and McKinley, previous to the sailing of the Somers from this port, could be received as testimony. He thought, however, that if those declarations had been made immediately previous to her sailing, they might be received as testimony.

After some conversation, in the course of which Captain Mackenzie said he did not wish to press the introduction of this testimony, but should wish his statement to appear on the record of the Court, and to which the Judge Advocate replied that he would have a perfect willingness that it should so appear, together with the objections and the decision thereon, the Court was cleared for deliberation.

After remaining closed about fifteen minutes, the Court re-opened, and the Judge Advocate announced the decision of the Court to be—

That they could not admit or receive testimony as to the conduct or declarations of Spencer on board the Potomac or previously, or of Cromwell's while in the Florida Squadron, but that testimony would be received as to any declarations made by Spencer, Cromwell, McKinley, or others, touching the intended mutiny, that occurred shortly previous to the sailing of the Somers.

Acting Master M. C. Perry recalled.—I was one of the Council of Officers on board the Somers, and was present during G. W. Warner's examination. The question was asked of him whether he thought Cromwell deserved to be hung, and he replied positively that he did. It was not a contingent, but a positive opinion. Mr. Heiskell read over the testimony as he wrote it down, and if he did not put it down correctly, I corrected him from my notes. These which I have in my hand are the notes I made at the time. I speak from them in relation to Warner's testimony. On the 28th November, civil time, a sail was discovered and is entered on the log as being seen three points on the larboard bow.

By Captain Mackenzie.—This is the Course Book, and night orders on board the Somers, (produced.) It contains the order relative to what was to be done on the cry, "A man overboard." The order was "Down with the helm, let go the life-buoy, clear away the boats, make ready to go about," &c. If Guzely had gone overboard at the time the

main-royal topgallant-mast was carried away, these orders being enforced would have caused great confusion on board, some of the officers would have had to have gone in the boat and some of the spars might have been carried away. Those nearest to hand would have jumped in the boats and they would not have waited for the regular crew in such a case.

Purser Heiskell, recalled—I took down the testimony of the witnesses as taken before the Council of Officers; correctly to the best of my belief. Warner there stated to the best of my belief, that Cromwell ought to be hung. He said so distinctly. It was not an hypothetical opinion, but positive. Warner's statement was read over to him twice. He made no objection to it and then signed it as a true statement. If he had objected to any part of it at the time it would have been altered to his suggestion. They were all told that it would be so done if they required it, and great care was taken to get it down in their own language as near as could be. To the best of my belief, Warner's statement was put down in his own language.

Lieut. Gansevoort recalled.—Was present at the Council of officers. He gave similar testimony to the purser in relation to the arrests. Wilson never made any report to me that he knew enough to hang Mr. Spencer. He came to me and told what he said had been a conversation with Mr. Spencer and himself which was evidently a lie, and I told him so. He did it, I think, to ward off suspicion from himself. The form of the oath administered to the witnesses before the council of officers was: "You do solemnly swear that the evidence you shall give before this Council of officers assembled, shall be the truth, the whole truth and nothing but the truth, so help you God." The two first witnesses were examined without the oath, but afterward sworn with the alteration, "the evidence you have given"—their evidence being read over to them at the time. In the opinions which I gave of the necessity of the execution, I was not influenced by the arts or fears of the Commander or any other man. I was influenced solely by the dictates of my conscience and from the knowledge I had of the facts. The Commander did not take measures to ascertain which of the crew were disaffected and which not, because he did not wish to make known any suspicions he might have of any man at large without immediately confirming them. He thought, too, that the greater part of the crew was implicated and told the Commander so. I had a better opportunity of judging from my situation than the Commander had. I don't think that the officers could have stood out more than one or two days longer, carrying the weight of arms they did and not being allowed to sit down, and in constant fear of a rescue.

I judge from myself, and I am one of the strongest. I think the younger officers could not have stood it so long. Previous to the discovery of the mutiny, I think the Commander passed two-thirds of his time on deck, and afterwards much more. I remarked that during the time Spencer, Cromwell and Small were in confinement, they appeared quite confident, and not at all alarmed at their situation. They seemed as if they expected a rescue, nor did their manner change until they were told they were to die. The article relative to mutiny was read once a month to the crew. The instructions of Secretary Paulding requires that apprentices should not be allowed to draw their spirit rations or tobacco. An order was promulgated to that effect od board the Somers, in pursuance of the Secretary's instructions. I am not aware of any injury Cromwell had done me to make him ask my forgiveness, except that he had meditated my death. The treatment of the crew was humane. There were more pains taken to procure good provisions, fresh fruit and vegetables, and make them comfortable, than I ever saw on board a man-of-war before. I have known the Commander to give the boys fruit that had been purchased for his children, in consequence of the mistake of the Purser in not having purchased what was ordered. There was no excess of punishment on board the Somers, and no offences were punished that are not punished on board others vessels. There appeared a reluctance on the part of Captain Mackenzie to punish. I have frequently reported some of the crew.

By the Court.—The punishments were generally inflicted with a colt—in a few instances with the cats. A colt is made of three stounds I think; it is lighter, much, than the cat. The punishment with the colt is always given without stripping, over the clothes. The punishment with the cat is a much more formal punishment than with the colt. When the cat is used the whole crew is called to witness punishment.

By Captain Mackenzie.—There were 90 or 95 belaying pins on the spar-deck of the Somers, in use. Those on the rail are about three-and a-half pounds in weight; those in the cat's tail about five pounds. It was impossible to remove them beyond the reach of the mutineers; they were all in use, and absolutely necessary for the working of the vessel.

(A colt was here produced; it was a piece of this rope about the size of a man's fore-finger in thickness.)

Witness.—That is such a colt as was used on board of the Somers.

Dr. Leecock re-called.—Was present at the Council of Officers and the testimony was correctly taken down. As Surgeon of the Somers, it is my opinion that the physical strength of the officers was much reduced and their health materially affected by constantly carrying heavy arms during the day and sleeping with them at night, physical and mental exertion, having so small a quantity of sleep, being almost constantly on the watch from the time of the discovery of the mutiny until the execution. I think the officers were worn down more and more every day. It was quite visible in their countenances, and it was confirmed by their constant complaints. During the watch the idlers had to go on deck every half hour, and to do so they had to crawl under the hammocks, as they were strung, to get out, being heavily armed at the same time.

J. W. Wales, re-called—The testimony of the witnesses before the council was read over to them, and they were informed if they wanted to make any corrections it would be done. Corrections were uniformly made when the witnesses desired. Previous to the conversation with Mr. Spencer on the boom, I had been as intimate with him as any of the officers. I had been found with him smoking and talking. Whenever he wanted to draw any tobacco or segars from the storeroom, he would always come to me for it. No conversation relating to any attemp to take the brig had been had by Mr Spencer with me previous to that night on the booms; neither had he given me any hints or intimations of such purpose, nor had Small, Cromwell, nor any person on board.

By Captain Mackenzie—I was present when Cromwell was ironed. I was standing on the trunk close to them.—Cromwell was seated on the trunk. The Commander told him that he was under the necessity of confining him; that he should take him home, where he would be tried by the laws of his country, punished if found guilty, and afforded an opportunity of proving his innocence if not guilty. I was present when Small was ironed, but did not hear what was said.

Judge Advocate. I have no more witnesses, unless the two witnesses of Capt. Mackenzie's are present.

Capt. Mackenzie. I have sent for them. The fact that Cromwell asked forgiveness of Lieut. Gansevoort, can be proved by the Captains of the foretop and forecastle, Stewart and Anderson.

Charles Stewart recalled. I heard Cromwell, shortly before his execution, ask Lieut. Gansevoort's forgiveness.

Andrew Anderson recalled. I saw Cromwell just before execution take hold of Lieut. Gansevoort's hand, and heard him ask him to forgive him.

John Ford, sworn. I am not now in the service; I have been. I was ward-room steward of the Somers; I left her six or eight days before her last cruise. The night before the Somers sailed Daniel McKinley, one of the crew of the Somers at the time, said something to me about a mutiny. I was on board in the afternoon waiting for Mr. Wales, who owed me some little change. Towards evening I went on shore, and after I got out of the boat McKinley took me on one side and said, "Steward, there will be mutiny on board this time for certain; you may be glad you are not going out in her, supposing we run out of little stores this time as we did before."

Capt. Mackenzie here stated that he wished to lay before the Court a fuller explanation of the motives which guided him in ordering the execution of those men than was contained in his report to the Secretary of the Navy, if they would allow him.

The Judge Advocate then read the preamble, which he said would raise the whole question whether it might be admitted or not. He saw no objection to it.

The President then said that it would be received by the Court as a statement of his reasons for ordering the execution.

It was then read by the Judge Advocate, as follows:

May it please the Court:

Although it has been determined by the Court that a written defence of my conduct, founded on an examination of the evidence that has been adduced, is unnecessary, and, under the circumstances, inadmissible, I trust that the Court will not refuse to receive from me a brief statement of the reasons that produced the conviction in my mind, on which I acted, that the execution of the ringleaders of the intended mutiny on board the Somers was necessary to the preservation of the vessel. It is true that these reasons may be collected from my report to the Secretary of the Navy, which has been read before the Court; but they are nowhere stated in connection, nor with that distinctness and brevity that are necessary to impress their force on the minds of others. My report to the Secretary was intended to be a full history of all the proceedings on board the Somers, for his information alone, and was far, very far, from being framed with any direct view to my own vindication.

I proceed, then, under the permission of the

Court, to submit the following facts and considerations as the reasons that chiefly determined my conduct. How far their reality or sufficiency is established by the evidence, are questions that, without a single remark, I shall leave to the judgement of the Court.

First, I was influenced by my deep conviction of the reality of the plot disclosed by Mr. Spencer to Mr. Wales. Although I received the first communication with incredulity, yet when I reflected upon the earnest and solemn manner in which the disclosure was made, and the strong impression of the reality and imminence of the danger made upon the mind of Mr. Wales himself, my doubts vanished and my mind was filled with the most earnest solicitude to discover and adopt the proper means for arresting the horrors with which we were threatened. I at once determined to adopt no measure but after mature deliberation, to shrink from none that the preservation of the lives of those entrusted to my care, the honor of my country and my sense of duty should demand. Whether the influence of this determination is not apparent in all my subsequent acts, I submit to the judgement of the Court. I believed then in the existence of a plot in which, by the declaration of Mr. Spencer, at least twenty of the crew were concerned.—The nature of this plot, involving the murder of the officers and a large portion of the crew, and the commission of almost every crime, convinced me that those who had agreed to it were capable of carrying it into execution and committing any atrocity. This opinion was further confirmed by my previous knowledge of the depraved character of the crew, and by the fact that many of them, although men in strength and size, were still boys in age, and consequently would be little likely to resist temptation and more easily allured by the pleasures held out to them as accompanying the life of a pirate. Having stated the reasons which produced the conviction in my mind of the existence of the plot, it only remains for me to state those which induced me to change my original determination to bring the prisoners to the United States for trial, and to deem their immediate execution necessary.

I was influenced—First, by the insubordination of the crew manifested after we had left the coast of Africa, and very much increased after the arrest of the prisoners; their gloomy and angry looks, their secret conferences, broken off when an officer appeared; their increased reluctance in the performance of their duty; the actual disobedience of some; the attempt of several to communicate with the prisoners. All these circumstances convinced me that there was danger of a rescue, and that this scheme was in constant agitation.

Secondly, by the uncertainty under which we labored as to the extent of the mutiny, and the inutility and danger of attempting to ascertain, by an examination of the crew, how many were to be relied on. Let us suppose that the whole crew had been examined, and all had protested their innocence and ignorance: Could we have believed and trusted them? Would the uncertainty have been removed or diminished? On the contrary, must not the universal denial have increased and justified our suspicions of universal guilt? We must still have believed that many were guilty, and could not have known that any were innocent. If the examination had resulted in the discovery of the certain guilt of many of the suspected, our difficulties would have been still greater. To confine and guard them was impossible. To leave them at large, with a knowledge that their guilt was known, and that, if they arrived in safety, death might be their doom, was to render them desperate and an outbreak inevitable.

Thirdly, by the exhaustion of the officers, and by the impossibility that they could much longer sustain the fatigue to which they were subjected; and by the fact that, from loss of rest and continual exertion, we were daily losing strength, whilst that of the mutineers, from increasing numbers, was daily becoming greater.

Fourthly, by the conviction that, even if it were possible for the officers to defend themselves and their vessel in fair weather, if a storm should arise, calling the attention of the officers and petty officers from the prisoners to the necessary duties of taking care of the vessel, it would have been easy for a few resolute men to have released the prisoners and taken possession of the vessel.

Fifthly. By the size of the vessel which rendered it impossible for me to confine any more prisoners and prevent those already confined from communicating with each other and with those of the crew who were at large.

Finally, by the conviction, that by the execution of the three ringleaders the mutineers would be deprived of the power of navigating the vessel, as no other person would be capable of taking charge of her, and that this was the only effectual method of bringing them back to their allegiance, and preserving the vessel committed to my charge.

Having thus briefly stated the motives which produced the belief that the immediate execution of the ringleaders was necessary, I would only add, that had any doubts existed in my mind as to the necessity of the course to be pursued, they would have been removed by the unanimous opinion of the commissioned, warrant and petty officers, whose means of judging were better than my own, that such a course was necessary and inevitable. Their opinion, concurring with my own, left me no room to doubt that in pursuing this course I was doing my duty faithfully to my God and to my country.

I have the honor to be, very respectfully,
Your most obedient,
ALEX. SLIDELL MACKENZIE,
Commander U. S. N.

U. S. S. North Carolina, 18th January, 1843.
To the Court of Inquiry.

The Court then adjourned to meet to-morrow, and hear the other witnesses of Captain Mackenzie's.

NINETEENTH DAY.

THURSDAY, Jan. 19, 1843.

The Court met pursuant to adjournment, and the minutes of the previous day's proceedings were read:

George W. Rice was then sworn.—I live at 240 Rivington street, N. Y. I think I knew Samuel Cromwell, who went out in the Somers, but I am not sure. I had a nephew on board the Somers named John Primrose. I heard he had been transferred from the North Carolina to the Somers and I went to see him. I hired a boat and when I got alongside I was told I could not come on board. This was before she made her first cruise round the harbor.

I went again and I was told he was confined in the brig. I afterward found he had been transferred to the North Carolina again. Some 4 or 5 days after, as near as I can recollect, two sailors came into Westbrook's, in the Bowery, No. 42. One of them said he was Boatswain's Mate of the Somers. I can't recollect at what period of the year this was, or whether it was before her first or last cruise.

On reference to the log book it was found that Cromwell was not on board the Somers until the 18th of August, while the Somers sailed on her last cruise, on the 13th of September.

On farther reference it was found that Primrose had been

transferred to the North Carolina, from the Somers, on the 5th July previous to the first cruise.

The Judge Advocate thereupon stated that all the conversation or declarations made at the time mentioned by the witness, being made previous to the first cruise of the brig, could not be received as evidence of what had been the intention previous to the last cruise, and would be excluded by the decision of the Court made the previous day.

It being also ascertained, by the description of the man given by the witness to Master Perry, that it had not been Cromwell, but resembled Phelps, who had been on board as Boatswain's Mate during the first cruise, but not during the last, the testimony of the witness, it was quite apparent, would be entirely irrelevant, and he was directed to retire.

The President then stated that the testimony being now closed the Court would be cleared, which was accordingly done. The Court will deliberate and frame their decision in secret, and it will then be sent to Washington for approval.

NEW-YORK TRIBUNE.

DAILY AND WEEKLY.

The Publishers of The New-York Daily Tribune respectfully announce to their readers and the public that they have made arrangements for the opening winter as follows:

AT WASHINGTON—1. A careful report of the daily proceedings of Congress will be made up expressly for The Tribune, so as to appear in its columns at the earliest moment. This department will be in the hands of the same gentleman who so ably and satisfactorily filled it through the last two Sessions.

2. A gentleman well informed on all Public topics and of eminent standing in the Political circles of the Metropolis, will act as our Confidential Correspondent, furnishing early advices of all Political movements in contemplation, whether with reference to the Legislative action of Congress, the corrupt vagaries of Tylerism, or to the warring intrigues and manœuvres of the partisans of the rival Loco-Foco aspirants to the Presidency.

AT NEW-YORK—1. In addition to our usual departments, an experienced and most capable Assistant Editor will attend all the Lectures of the Winter which shall possess a general interest, to report them either in full or in substance, as their character and worth shall seem to require. In this department, The Tribune achieved an acknowledged supremacy last winter: it is our purpose to confirm it this season.

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AT HOME AND EVERYWHERE—though we hope for a season to have less occasion than hitherto for devoting our columns to Political controversy—The Tribune will continue the ardent, unswerving, undaunted, determined advocate of WHIG Principles and Measures, and of the election of HENRY CLAY as President in 1844. Recent events, however discouraging in the view of the short-sighted, have but strengthened our confidence in the speedy triumph of those Principles, and our conviction that HENRY CLAY and he only can rally around him the now scattered hosts of the victors of 1840, and lead them on to a new triumph, as signal, as glorious, but more enduring and beneficent.

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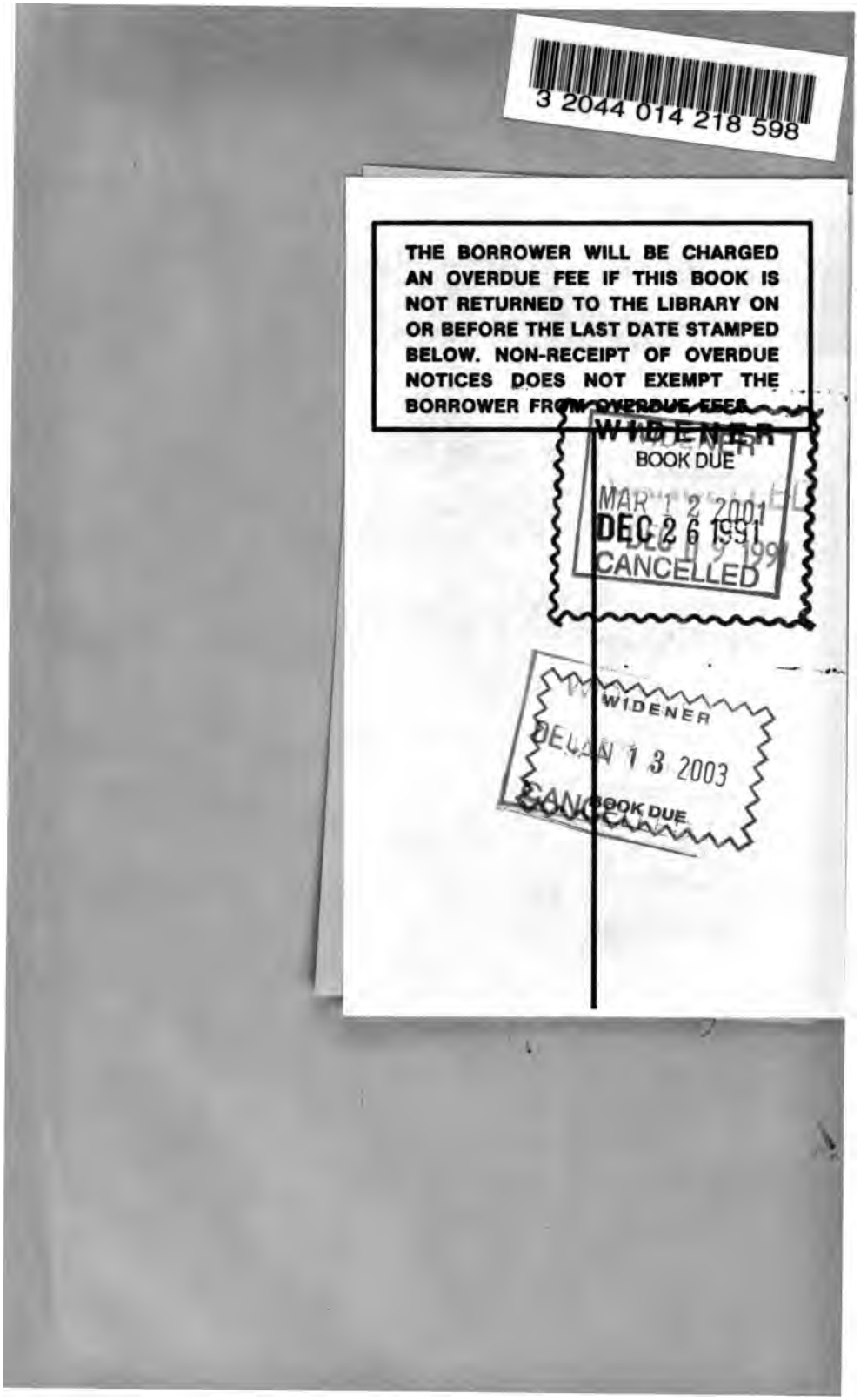
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